RAY KIM LAW, APC
Raymond Y. Kim (SBN 251210)
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832
Telephone: 833-729-5529
Facsimile: 833-972-9546
E-mail: ray@raykimlaw.com

Attorneys for Plaintiffs
Roberto Sandoval Carrillo,
and others similarly situated

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiffs,

vs.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT, and DOES 1-5.

Defendants.

Case No.: 8:25-cv-00191-SRM-KES

DECLARATION OF RAYMOND Y. KIM IN SUPPORT OF PLAINTIFF'S MOTION FOR CLASS CERTIFICATION

Date: April 15, 2026
Time: 1:30 p.m.
Ctrm: 5D
Judge: Hon. Serena R. Murillo

[Filed concurrently with Notice of Motion and Motion for Class Certification; Declaration of Roberto Sandoval Carrillo; and [Proposed] Order]

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

DECLARATION OF RAYMOND Y. KIM

1. I am principal of the law firm of Ray Kim Law, APC and counsel for plaintiff Roberto Sandoval Carrillo ("Plaintiff") in this matter. I submit this declaration in support of Plaintiff's Motion for Class Certification. I have personal knowledge of the facts set forth in this declaration.

2. For fifteen years I practiced in "big law" and am a former partner of Holland & Knight LLP. I have nineteen years of experience in the consumer protection arena. I also have seventeen years of experience in consumer class actions and litigated my first class action on behalf of Capital One Auto Finance in 2009.

3. I seek to be appointed as class counsel in this action. I will continue to vigorously prosecute this action until completion and will commit all resources necessary to represent the Megan's Law Class, Fair Chance Class, and Fair Credit Reporting Act ("FCRA") Class.

4. I have substantial experience in all aspects of litigation ranging from pre-litigation, pleadings, discovery, depositions, motion practice, and some trial experience.

5. I am familiar with all aspects of class action litigation, including post settlement/judgment administration of class action settlement funds and have served as the primary liaison and supervising attorney overseeing the administration of many class action settlements. I have been directly involved in the design and implementation of numerous class action settlements. A brief sample of my class action experience includes, but is not limited to, the following matters: *Sanders v. RBS Citizens, N.A.*, No. 13-cv-03136-BAS-RBB, 2021 U.S. Dist. LEXIS 22565 (S.D. Cal. Feb. 5, 2021); *Wright v. Nationstar Mortg. LLC*, No. 14 C 10457, 2016 U.S. Dist. LEXIS 115729 (N.D. Ill. Aug. 29, 2016); *Lee v. Winslow & Shoomaker, LLC, et al.* (Case No. BC705954); *Debra Johnson, et al. v. Hyundai Capital America d/b/a Kia Motors Finance* (LASC, Case No. BC565263 (the "Action"); *Davidson v. United Auto Credit Corporation* (E.D. Va., 1:20-cv-01263-LMB-JFA).

6. I have been personally involved in all aspects of this case since its inception to the filing of this Motion. I conducted the underlying investigation and assessment of Plaintiff's individual and class claims, prepared all aspects of the pleadings, and handled all discovery, including discovery disputes, and two informal discovery conferences with Judge Karen E. Scott, and depositions.

7. In my judgment, proposed class representative Roberto Sandoval Carrillo has diligently accepted his responsibility and easily meets the adequacy and typicality threshold. Mr. Sandoval Carrillo has taken the role of lead class representative very seriously, and I continue to have regular, thorough, and thoughtful discussions with him regarding the claims set forth in this case.

8. I have communicated by phone, Zoom, and email with Mr. Sandoval Carrillo countless times during the pendency of this case. I have discussed various aspects of this case with him, prepared him for his deposition, and defended his deposition. I worked extensively with Mr. Sandoval Carrillo to prepare his discovery responses and extensive document production of nearly six hundred (600) pages of communications, including hundreds of pages of emails with Mr. Sandoval Carrillo's probation officer, and the declaration in support of this motion for class certification. He has, without exception, been entirely responsive to all communications from my office and has unselfishly devoted a significant amount of time for the prosecution of this case. What is more, given Mr. Sandoval Carrillo's paralegal certificate and legal background, he has been tremendously helpful analyzing the factual and legal issues presented in this case.

9. On July 23, 2025, I caused to be served written discovery on defendant The Vons Companies, Inc. ("Vons"), including Requests for Production ("RFPs"), Set No. 1, Interrogatories, Set No. 1, and Requests for Admission ("RFAs"), Set No. 1. A true and correct copy of the RFPs, Set One, Interrogatories, Set One, and RFAs, Set One, are attached as **Exhibits 1, 2 and 3**, respectively.

10. On October 29, 2025, I took the Rule 30(b)(6) deposition of Toni North,

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

an Associate Employee Center manager. Vons presented Ms. North as its person most knowledgeable witness. A true and correct copy of the condensed version of Ms. North's deposition transcript is attached as **Exhibit 4**. A true and correct copy of Ms. North's operative Rule 30(b)(6) deposition notice is attached as **Exhibit 5**.

11. In response to Plaintiff's written discovery, Vons repeatedly served deficient responses and withheld documents. Following numerous meet and confer emails and meetings with Vons' counsel and two informal discovery conferences with Judge Karen E. Scott, on November 21, 2025 Vons served its Second Supplemental Responses to Plaintiff's Interrogatories, Set No. 1. A true and correct copy of Vons' Second Supplemental Responses to Plaintiff's Interrogatories, Set No. 1 is attached as **Exhibit 6**.

12. On November 21, 2025 Vons also served its Second Supplemental Responses to Plaintiff's RFPs, Set No. One and produced an updated excel spreadsheet containing class data ("Class Data"). Vons had produced a different version of the Class Data on October 10, 2025, with a significant amount of information redacted. I have not had an opportunity to depose Vons on the differences contained in its November 21 Class Data production. A true and correct copy of Vons' Second Supplemental Responses to Plaintiff's RFPs, Set No. One is attached as **Exhibit 7.** *See* Exhibit 6, at Second Supplemental Responses to Plaintiff's RFPs, Set No. One, at No. 15.

13. Ms. North's deposition testimony and Vons' discovery responses and production support granting certification of the Megan's Law Class, Fair Chance Class, and FCRA Class.

Megan's Law Class

14. Vons' deposition testimony confirms that Vons uses sex offender registry information from the Megan's Law site ("SOR information") for employment purposes. During her deposition, Ms. North testified that Vons "partially relied" on SOR information:

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112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

Q. So is it your understanding that Vons can rely on registry information contained in the Megan's Law?...

A. Not exclusively.

Q. What do you mean by "not exclusively"?...

A. If we were to make a final adverse action decision based only on Megan's Law, that would not be legal.

***

Q. But you relied partially on Megan's Law information; is that right?

A. Yes.

See **Exhibit 4**, Toni North Dep., at 52:3-25; 54:2-25.

15. Plaintiff's Interrogatory No. 8 asks, "State the total number of PERSONS in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry." In its Second Supplemental Response, Vons responded, *inter alia*, "There are approximately 43 persons in California through September 2025 who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with Responding Party, which includes Vons and Pavilions banner stores." *See* **Exhibit 6**, at Second Supplemental Response to Interrogatories, No. 8 (emphasis added).

16. In addition, the Class Data produced by Vons shows there are at least forty-three (43) job applicants who applied for a job with Vons and were denied as a result of SOR information found in their background reports. The Class Data contains a column of information (Column I) entitled, "Highest Crime." This "Highest Crime" column lists various convictions, including one entitled "Sex Offender." The Class Data shows that from 2021 to September 2025 there are at least 43 applicants whose "Highest Crime" was listed as "Sex Offender." The Class Data shows that all of these applicants were "Failed," meaning they were not hired or the conditional offer was

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

withdrawn. Ms. North confirmed at her deposition that Vons did not hire a single applicant with a Highest Crime listed as "Sex Offender":

> Q. So then what does -- so does Fail mean that they failed because of a conviction reported on their record?
>
> A. Yes.
>
> ***
>
> Q. So what's the difference between -- just to make it easy Row 189, Sex Offender. Does that mean that, like Mr. Carrillo, the information in the background report is that they are a registered sex offender on the registry?
>
> A. Yes.
>
> ***
>
> Q. Okay. Are you aware of any candidates with the highest crime as sex offender that were hired by Vons since 2021?
>
> A. No.

See **Exhibit 4**, Toni North Dep., at 119:2-5, 134:3-7, 144:21-24.

17. There is another column of information (Column J) in the Class Data entitled, "Category." One "Category" of crimes is labeled as "Sex Crimes," under which includes the lower/subset list of "Highest Crimes." The "Highest Crimes" when filtered for "Sex Crimes" includes *inter alia*, "Sex Offenders," failure to register on the Megans Law site, receipt of images of minors, and possession of obscene matter of minors. For clarity, a true and correct screenshot from the Class Data sheet is below:

G	H	I	J	K
OrderScore	Final Score	ReasonforFail	Highest Crime	Category
Fail	Fail	JobRelated	Sex Offender	Sex Crimes
Fail	Fail	JobRelated	Sex Offender	Sex Crimes
Fail	Fail	JobRelated	Sex Offender	Sex Crimes
Fail	Fail	JobRelated	Sex Offender	Sex Crimes

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112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

From 2021 to September 2025 there are at least fifty-six (56) applicants who are categorized as committing a "Sex Crime." The Class Data shows that all of these applicants were "Failed," meaning they were not hired. Ms. North confirmed at her deposition that Vons did not hire a single applicant categorized as committing a "Sex Crime."

> Q. Going to Column K. I'm going to go back to this drop-down, and then there is a category for sex crimes. Are you aware of any candidate who falls into the category of sex crimes who was hired by Vons since January of 2021?
>
> A. No.

See **Exhibit 4**, Toni North Dep., at 158:6-9.

18. Vons sent these Megans Law Class members the substantively same Adverse Action Notice as Plaintiff. These Adverse Action Notices stated Vons was withdrawing employment "based on" the applicant's status as a "Sex Offender" disclosed in the background report. On March 7 Plaintiff received an Adverse Action Notice from Vons and Asurint stating that Vons is withdrawing Plaintiff's employment offer "based on" Plaintiff's SOR information and the decision was "influenced" by the SOR information:

> Dear Applicant,
>
> We are writing to inform you that your conditional offer of employment, transfer or promotion with Vons/Pavilions has been withdrawn.
>
> This decision was ***influenced in whole or in part by a pre-employment screening report*** prepared by Asurint. Please note that Asurint did not make this employment decision on behalf of our company. This decision was made pursuant to Vons/Pavilions hiring policies.
>
> We have identified ***the following convictions on your report to be job-related:***

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112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

> ***Sex Offender***
>
> ***The decision to withdrawal*** [sic] the employment offer ***is based on the fact that one or more convictions were found during the pre-employment screening process***[.]

Thus, it is indisputable that Vons' employment was in whole or in part based on Plaintiff's SOR information. A true and correct copy of the Adverse Action Notice that Plaintiff received is attached to the Declaration of Roberto Sandoval Carrillo filed concurrently with this Motion, as Exhibit I.

19. Like Plaintiff, the Megans Law Class members received substantively identical Adverse Action Notices that were generated by Asurint. Ms. North testified:

> Q. Is this post-adverse action notice available to Vons through Asurint's web portal?
>
> A. Yes.
>
> Q. Did you search for an adverse action notice relating to Mr. Carrillo on Asurint's web portal?
>
> A. Yes.
>
> Q. And did you find one?
>
> A. Yes.
>
> Q. Was the substance of the notice identical to this one?...
>
> A. The substance was the same. The header is missing. My apologies, Mr. Drury.
>
> Q. Do you have any reason to believe that the adverse action notices contained in Asurint's portal are not true?
>
> A. No.
>
> Q. Do you have any reason to believe that the adverse action notices stored in Asurint's portal are not accurate?...

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

A. No.

***

Q. Okay. To your knowledge, candidates who are listed here with the highest crime of sex offender and who have an order score and final score of fail, do they receive a post-adverse action notice like Mr. Carrillo's stating that their background report information disclosed that they are sex offenders?...

A. Anyone who fails is going to get the pre-adverse action and then the FCRA 613 in their consumer report. If they remain a fail after the waiting period, they're going to get the adverse action.

Q. And if their highest crime is sex offender, it'll state in the adverse action notice "sex offender"?

A. Yes, because that's the format we have to follow in California.

See **Exhibit 4**, Toni North Dep., at 114:23-116:10; 145:16-146:8.

Fair Chance Class

20. Plaintiff's Interrogatory No. 6 asks, "State the total number of PERSONS in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history." In its Second Supplemental Response, Vons responded, *inter alia*, "There are approximately 901 persons in California through September 2025 with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party, which includes Vons and Pavilions banner stores." *See* **Exhibit 6**, Second Supplemental Response to Interrogatories, at No. 6 (emphasis added).

21. Despite Plaintiff's RFPs, Interrogatories and RFAs, and Plaintiff's discovery disputes with Vons (including two informal discovery conferences with Judge Karen E. Scott), Vons has produced no records showing it conducted an

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

individualized assessment of Plaintiff or any of the other 900 applicants who were denied employment as a result of their conviction backgrounds.

22. Vons only produced a single document from *Albertsons*, entitled "Standard Operating Procedures Regarding Use and Review of Retail Job Applicants' Criminal Conviction Histories – California" ("Standard Operating Procedures"). A true and correct copy of the Standard Operating Procedures are attached as **Exhibit 10**. These Albertsons' Standard Operating Procedures do not show that Vons conducted any individualized assessments, for Plaintiff or any Fair Chance Class members. Indeed, Vons' reliance on Albertsons' Standard Operating Procedures is misplaced and the Procedures are irrelevant here. Vons has gone on record stating that it is not affiliated with Albertsons for purposes of hiring. In response to Plaintiff's RFPs, Set No. 2, Vons responded to each of the RFPs as follows:

> Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence.

Attached as **Exhibit 8** is a true and correct copy of Vons' Response to Plaintiff's Requests for Production, Set No. 2, RFP Nos. 36-51.

23. In addition, in an email Vons' counsel also stated, "Albertsons, Safeway, and Andronicos are not associated with The Vons Companies, Inc. The Vons Companies, Inc. is the entity Mr. Carrillo was hired by and is the entity sued. He was never employed by the Albertsons Companies, Safeway, or Andronicos." Thus, Vons' production of Albertsons' Standard Operating Procedures does not show it conducted individualized assessments of Plaintiff or the 900 other members of the Fair Chance Class. Attached as **Exhibit 9** is a true and correct copy of Vons' counsel's

December 9, 2025 email stating that Vons is "not associated" with Albertsons.

24. In addition, in response to Plaintiff's RFP No. 17 seeking class documents evidencing individualized assessment conducted by Vons, Vons responded that "Responding Party does not have responsive documents other than the types of documents identified in its supplemental response to Request for Production 14 and will not provide that information as it is overbroad and seeks merits-based discovery." *See* **Exhibit 7**, Vons' Second Supplemental Responses to Plaintiff's RFPs, Set No. One, Supplemental Response to RFP No. 17. In RFP No. 14, Plaintiff sought documents relating to Vons' "individualized assessment" of Plaintiff. In response to RFP No. 14, Vons merely produced Plaintiff's post-conditional offer questionnaire, Pre-Adverse Action Notice and Adverse Action Notice, and Plaintiff's mitigating evidence submitted in response to the Pre-Adverse Action Notice. *See* **Exhibit 7**, Vons' Second Supplemental Responses to Plaintiff's RFPs, Set No. One, at Vons' Response and Supplemental Response to RFP No. 14. But Vons' responded that it was not in possession, custody, or control of any other records relating to other applicants evidencing individualized assessments. *See* **Exhibit 7**, Vons' Second Supplemental Responses to Plaintiff's RFPs, Set No. One, at Vons' Response and Supplemental Response to RFP No. 17. Plaintiff raised this issue with the Judge Karen E. Scott at the first IDC, and the Court ordered Vons to respond that no responsive documents exist reflecting individualized assessments of class members. *See* Court's IDC Order No. 1, Dkt. No. 42, ¶ 6 ("With respect to RFP No. 17, Vons shall serve a supplemental response by no later than **Friday, October 10, 2025,** stating that Vons conducted a reasonable and diligent search and no responsive documents exist with respect to other putative class members, other than the documents identified in response to RFP No. 14 with respect to Plaintiff.") (bold in original). Vons did just that. *See* **Exhibit 7**, Vons' Second Supplemental Responses to Plaintiff's RFPs, Set No. One, at Vons' Supplemental Response to RFP No. 17.

25. In addition, the Class Data shows that Vons denied employment to all

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

901 Fair Chance Class members. Pursuant to the Class Data, Vons denied employment to all applicants with convictions. There is no evidence in the Class Data showing that Vons conducted any individualized assessment of Plaintiff or anyone else, such as assessing: (i) whether the crime or harm was to property or people; (ii) the degree of the harm (e.g., amount of loss in theft); (iii) the permanence of the harm; (iv) the context in which the offense occurred; (v) whether a disability, including but not limited to a past drug addiction or mental impairment, played a role; (vi) the amount of time passed; (vii) the specific job duties; or (viii) whether the harm (e.g. possession of images of minors) is likely to occur in the workplace (e.g. behind a deli counter). Based on the Class Data and evidence Vons produced, Vons simply has a blanket practice of denying employment to those with a conviction history.

FCRA Class

26. Plaintiff's Interrogatory No. 8 asks, "State the total number of PERSONS in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry." In its Second Supplemental Response, Vons responded, *inter alia*, "There are approximately 43 persons in California through September 2025 who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with Responding Party, which includes Vons and Pavilions banner stores." *See* **Exhibit 6**, at Second Supplemental Response to Interrogatories, at No. 8 (emphasis added).

27. Each of these 43 persons are members of the FCRA Class because they applied for employment with Vons, Asurint conducted a background search and furnished a consumer report containing SOR on them, and Vons used the background report for employment decisions, namely withdrawing conditional offers of employment and denying employment. Whether or not Asurint's provision of background reports to Vons is a violation of the FCRA is a merits issue that is

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

irrelevant to the issue of class certification.

28. In fact, the Services Agreement produced by Vons governing the relationship between Vons and Asurint, expressly states, "[Asurint] shall not return Sex Offender Registry information in the states of California and Nevada." The Agreement was signed in 2011. However, in 2012 an Addendum was signed which provided that Asurint will provide sex offender registry information at $400.00 per background check.

I declare under penalty of perjury under the laws of California and the United States that the foregoing is true and correct.

Signed this 14th day of January 2026.

/s/ Raymond Y. Kim

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

EXHIBIT 1

RAY KIM LAW, APC
Raymond Y. Kim (SBN 251210)
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832
Telephone: 833-729-5529
Facsimile: 833-972-9546
E-mail:ray@raykimlaw.com

Attorneys for Plaintiffs
Roberto Sandoval Carrillo. and others similarly situated

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated, Plaintiffs, vs. THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT, and DOES 1-5. Defendants.	Case No.: 8:25−cv−00191−SRM−KES **PLAINTIFF ROBERTO SANDOVAL CARRILLO'S REQUESTS FOR PRODUCTION OF DOCUMENTS TO THE VONS COMPANIES, INC., SET ONE**

PROPOUNDING PARTY: Roberto Sandoval Carrillo

RESPONDING PARTY: The Vons Companies, Inc.

SET NUMBER: One

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

Pursuant to Federal Rules of Civil Procedure 26 and 34, Plaintiff Roberto Sandoval Carrillo hereby propounds the following Requests for Production of Documents, Set One, on defendant The Vons Companies, Inc. ("Vons"). Vons is requested to produce the following specified items which are in its possession, control, or custody within thirty (30) days.

DEFINITIONS

Unless the context indicates otherwise, the following words and phrases are defined and used herein as follows:

1. "ASURINT" refers to defendant One Source Technology LLC d/b/a Asurint ("Asurint") or anyone acting on behalf of Asurint, including but not limited to the employees, agents, representatives, and attorneys of Asurint.

2. "CARRILLO" or "Plaintiff" refers to plaintiff Roberto Sandoval Carrillo.

3. "COMMUNICATION" means any transmission or exchange of information, statements, ideas, thought or sentiment between or among two or more PERSONS, orally or in writing, and include any conversation or discussion, whether face-to-face or by means of a telephone, telegraph, telex, telecopier, facsimile transmission, letter, e-mail, electronic or other medium.

4. "CONSUMER REPORT" means any written, oral, or other communication of any information by a consumer reporting agency bearing on a consumer's credit worthiness, credit standing, credit capacity, character, general reputation, personal characteristics, or mode of living which is used or expected to be used or collected in whole or in part for the purpose of serving as a factor in establishing the consumer's eligibility for credit or insurance to be used primarily for personal, family, or household purposes; employment purposes; or another purpose authorized by Section 1681b of the federal Fair Credit Reporting Act. CONSUMER REPORT also means an "investigative consumer report" as defined in Cal. Civ. Code § 1786.2.

5. "DOCUMENTS" means written, printed, typed, or visually or orally

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112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

reproduced material of any kind, whether or not privileged, including, but not limited to, all letters, emails, correspondence, contracts, agreements, bills, orders, receipts, records, books, computer tapes and printouts, memoranda, notes, notebooks, maps, sketches, cablegrams, telegrams, reports, press releases, advertising and promotional literature, prints, drawings, plans, photographs, printed forms, manuals, brochures, lists, publications, videotapes, other tape recordings, films, microfilm, electronic media and all other writings, including drafts, typings, printings, minutes or copies or reproductions thereof in the possession, custody, or control of YOU.

6. "FAIR CHANCE ACT" means the California Fair Chance Act, Government Code § 12952.

7. "MEGAN'S LAW" means California Megan's Law, Penal Code § 290.46 ("Megan's Law"), which prohibits the use of information from the Megan's Law Website from being used for employment purposes.

8. "PERSON(S)" mean natural persons as well as other entities, including but not limited to businesses, corporations, associations, partnerships, firms, organizations, and governmental (municipal, state, or federal) agencies or bodies.

9. "RELATING TO" means all DOCUMENTS and/or COMMUNICATIONS constituting, containing, evidencing, showing, relating, recording, or referring in any way, directly or indirectly, to the subject matter of the Request, as well as all DOCUMENTS and/or COMMUNICATIONS underlying, supporting, attached or appended to such DOCUMENTS and/or COMMUNICATIONS.

10. "YOU," "VONS" and "YOUR" refer to defendant The Vons Companies, Inc. ("Vons") or anyone acting on behalf of Vons, including but not limited to the employees, agents, representatives, and attorneys of Vons.

INSTRUCTIONS

1. Unless otherwise stated, the applicable time period for these requests is from **January 31, 2021 to the present**.

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112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

2. YOU must produce all DOCUMENTS responsive to these requests that are in YOUR actual or constructive possession, custody or control, including all DOCUMENTS within the actual or constructive possession, custody or control of any representative, agent, employee, attorney, accountant, investigator or any PERSON acting for YOU or on YOUR behalf.

3. All DOCUMENTS are to be produced in the files in which such DOCUMENTS have been maintained and in the order within each file in which such DOCUMENTS have been maintained.

4. If YOU withhold any DOCUMENT(S) from production on the basis of a claim of attorney-client or any other privilege, or on the basis of the attorney work-product doctrine, set forth with specificity the privilege or work product claim and furnish a list identifying each DOCUMENT for which the privilege or work product doctrine is claimed, together with:

a. a brief description of the nature and subject matter, including the title and type of the DOCUMENT;

b. the date of preparation;

c. the name and title of the author(s);

d. the name and title of the addresses(s);

e. the name and title of all persons to whom the DOCUMENT was sent, including blind carbon copies;

f. the number of pages;

g. the document request(s) to which the withheld information or DOCUMENT is otherwise responsive; and

h. the complete basis upon which you contend you are entitled to withhold the information or DOCUMENT from production.

5. If YOU know of the existence, past or present, of any DOCUMENT described herein, but are unable to produce such DOCUMENT because it is not presently in YOUR possession, custody or control, YOU shall so state in the response

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

and shall identify (by title if any, nature of DOCUMENT and subject matter) such DOCUMENT and shall identify (by name, address and telephone number) the PERSON in whose possession, custody or control the DOCUMENT was last known to reside.

6. If any DOCUMENT requested herein has been lost, discarded or destroyed, the DOCUMENT so lost, discarded or destroyed shall be identified as completely as possible in YOUR response to the particular request, including, without limitation, the following information: date, content, author(s) and recipient(s) of the DOCUMENT(S); date of disposal; manner of disposal and PERSON disposing of the DOCUMENT(S). YOU shall further identify in YOUR response to the request the name, address and telephone number of the PERSON in whose possession, custody or control the DOCUMENT was last known to reside.

7. If, in responding to these document requests, YOU claim there is any ambiguity in either a particular request or in a definition or an instruction applicable thereto, such claim shall not be used by YOU as a basis for refusing to respond, but there shall be set forth as part of the response the language deemed to be ambiguous and the interpretation chosen or used in responding to the particular request.

8. For purposes of interpreting or construing the scope of the following document requests, the terms used are to be given their most expansive and inclusive interpretation unless otherwise specifically limited in the document request itself.

REQUESTS FOR PRODUCTION

REQUEST FOR PRODUCTION NO. 1:

YOUR and ASURINT's agreement RELATING TO recruiting, background checks, and all other services provided by ASURINT for VONS from January 2023 to the present.

REQUEST FOR PRODUCTION NO. 2:

YOUR policies and procedures for conducting individualized assessments of prospective employees from January 2023 to the present.

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

REQUEST FOR PRODUCTION NO. 3:

YOUR policies and procedures RELATING TO the handling of prospective employee applications with conviction histories from January 2023 to the present.

REQUEST FOR PRODUCTION NO. 4:

YOUR policies and procedures RELATING TO compliance with the FAIR CHANCE ACT.

REQUEST FOR PRODUCTION NO. 5:

YOUR COMMUNICATIONS RELATING TO compliance with the Fair Chance Act from January 2023 to the present.

REQUEST FOR PRODUCTION NO. 6:

YOUR employee training manuals RELATING TO compliance with the FAIR CHANCE ACT.

REQUEST FOR PRODUCTION NO. 7:

YOUR policies and procedures RELATING TO compliance with the MEGAN'S LAW.

REQUEST FOR PRODUCTION NO. 8:

YOUR COMMUNICATIONS RELATING TO compliance with the MEGAN'S LAW from January 2023 to the present.

REQUEST FOR PRODUCTION NO. 9:

YOUR employee training manuals RELATING TO compliance with the MEGAN'S LAW.

REQUEST FOR PRODUCTION NO. 10:

All COMMUNICATIONS RELATING TO CARRILLO between YOU and any PERSONS, including ASURINT and CARRILLO.

REQUEST FOR PRODUCTION NO. 11:

All DOCUMENTS RELATING TO CARRILLO, including all DOCUMENTS in his employment file and employment application file.

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Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

REQUEST FOR PRODUCTION NO. 12:

YOUR policies and procedures RELATING TO conducting an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position.

REQUEST FOR PRODUCTION NO. 13:

YOUR employee training manuals RELATING TO conducting an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position.

REQUEST FOR PRODUCTION NO. 14:

All DOCUMENTS RELATING TO YOUR "individualized assessment" (as that term is used in the FAIR CHANCE ACT) of CARRILLO in 2023, if any.

REQUEST FOR PRODUCTION NO. 15:

All DOCUMENTS showing the total number of persons in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history.

REQUEST FOR PRODUCTION NO. 16:

All DOCUMENTS identifying (by name, employment application number or some other unique identifying indicator) each PERSON in California who applied for employment with Vons and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history.

REQUEST FOR PRODUCTION NO. 17:

All DOCUMENTS showing the results of YOUR individualized assessments for the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16**.

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

REQUEST FOR PRODUCTION NO. 18:

All CONSUMER REPORTS for the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16**.

REQUEST FOR PRODUCTION NO. 19:

The job description (including posting, title, role, and responsibilities) for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO (or rescinded CARRILLO's employment offer) in March 2023.

REQUEST FOR PRODUCTION NO. 20:

YOUR hiring policies and procedures for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO (or rescinded from CARRILLO).

REQUEST FOR PRODUCTION NO. 21:

All DOCUMENTS showing the salary and/or hourly wage that YOU were going to pay CARRILLO for the position (e.g. Deli Clerk at Vons in San Diego) that YOU denied CARRILLO (or rescinded from CARRILLO) in March 2023.

REQUEST FOR PRODUCTION NO. 22:

All DOCUMENTS showing the benefits (e.g. medical, dental, retirement) that YOU were going to provide CARRILLO for the position (e.g. Deli Clerk at Vons in San Diego) that YOU denied CARRILLO (or rescinded from CARRILLO) in March 2023.

REQUEST FOR PRODUCTION NO. 23:

All DOCUMENTS showing the salary and/or hourly wage that YOU were going to pay the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16**.

REQUEST FOR PRODUCTION NO. 24:

All DOCUMENTS showing the benefits (e.g. medical, dental, retirement) that YOU were going to provide the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16.**

REQUEST FOR PRODUCTION NO. 25:

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

All COMMUNICATIONS (e.g. written notices, emails, or letters) YOU provided to the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16** stating YOUR final decision to deny an application solely or in part because of the applicant's conviction history, pursuant to the FAIR CHANCE ACT.

REQUEST FOR PRODUCTION NO. 26:

YOUR policies and procedures RELATING TO any procedure YOU have for the applicant to challenge the decision to deny employment or request reconsideration, pursuant to the FAIR CHANCE ACT.

REQUEST FOR PRODUCTION NO. 27:

YOUR organization chart (showing the titles, roles, and responsibilities) RELATING TO department/team responsible for compliance with the FAIR CHANCE ACT.

REQUEST FOR PRODUCTION NO. 28:

DOCUMENTS supporting CARRILLO's and class members' damages.

REQUEST FOR PRODUCTION NO. 29:

Written complaints to YOU relating to compliance with the MEGAN'S LAW.

REQUEST FOR PRODUCTION NO. 30:

Written complaints to YOU relating to compliance with the FAIR CHANCE ACT.

REQUEST FOR PRODUCTION NO. 31:

ASURINT's communications with YOU RELATING TO ASURINT's relationship and services with YOU.

REQUEST FOR PRODUCTION NO. 32:

All DOCUMENTS showing the total number of persons in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry.

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

REQUEST FOR PRODUCTION NO. 33:

All DOCUMENTS identifying (by name, employment application number or some other unique identifying indicator) each PERSON in California who applied for employment with Vons and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry.

REQUEST FOR PRODUCTION NO. 34:

All DOCUMENTS showing the results of YOUR individualized assessments for the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 33**.

REQUEST FOR PRODUCTION NO. 35:

All CONSUMER REPORTS for the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 33**.

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

DATED: July 23, 2025

RAY KIM LAW APC

By: _____
Raymond Y. Kim
Attorney for Plaintiff
Roberto Sandoval Carrillo and others similarly situated

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of **PLAINTIFF ROBERTO SANDOVAL CARRILLO'S REQUESTS FOR PRODUCTION OF DOCUMENTS TO THE VONS COMPANIES, INC., SET ONE** was served this 23rd day of July 2025 on all counsel of record below via electronic mail.

Rod M. Fliegel (SBN 168289)
rfliegel@littler.com
LITTLER MENDELSON, P.C.
101 Second Street, Suite 1000
San Francisco, California 94105
Tel: (415) 433-1940
Fax: (415) 399-8490

Karimah J. Lamar (SBN 246862)
klamar@littler.com
Christine Fitzgerald (SBN 259014)
cfitzgerald@littler.com
Robert Geiger (SBN 322914)
rgeiger@littler.com
LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
Tel (619) 232 -0441
Fax: (619) 232-4302
Attorneys for Defendant
THE VONS COMPANIES, INC.

Executed on July 23, 2025, at Fullerton, California.

By: _____
Thu Tran

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

EXHIBIT 2

RAY KIM LAW, APC
Raymond Y. Kim (SBN 251210)
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832
Telephone: 833-729-5529
Facsimile: 833-972-9546
E-mail:ray@raykimlaw.com

Attorneys for Plaintiffs
Roberto Sandoval Carrillo and others similarly situated

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated, Plaintiffs, vs. THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT, and DOES 1-5. Defendants.	Case No.: 8:25−cv−00191−SRM−KES **PLAINTIFF ROBERTO SANDOVAL CARRILLO'S INTERROGATORIES TO THE VONS COMPANIES, INC., SET ONE**

PROPOUNDING PARTY: Roberto Sandoval Carrillo

RESPONDING PARTY: The Vons Companies, Inc.

SET NUMBER: One

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

Pursuant to Federal Rules of Civil Procedure 26 and 33, Plaintiff Roberto Sandoval Carrillo hereby propounds the following Interrogatories, Set One, on defendant The Vons Companies, Inc. ("Vons"). Vons is requested to serve written responses within thirty (30) days.

DEFINITIONS

Unless the context indicates otherwise, the following words and phrases are defined and used herein as follows:

1. "ASURINT" refers to defendant One Source Technology LLC d/b/a Asurint ("Asurint") or anyone acting on behalf of Asurint, including but not limited to the employees, agents, representatives, and attorneys of Asurint.

2. "CARRILLO" or "Plaintiff" refers to plaintiff Roberto Sandoval Carrillo.

3. "COMMUNICATION" means any transmission or exchange of information, statements, ideas, thought or sentiment between or among two or more PERSONS, orally or in writing, and include any conversation or discussion, whether face-to-face or by means of a telephone, telegraph, telex, telecopier, facsimile transmission, letter, e-mail, electronic or other medium.

4. "CONSUMER REPORT" means any written, oral, or other communication of any information by a consumer reporting agency bearing on a consumer's credit worthiness, credit standing, credit capacity, character, general reputation, personal characteristics, or mode of living which is used or expected to be used or collected in whole or in part for the purpose of serving as a factor in establishing the consumer's eligibility for credit or insurance to be used primarily for personal, family, or household purposes; employment purposes; or another purpose authorized by Section 1681b of the federal Fair Credit Reporting Act. CONSUMER REPORT also means an "investigative consumer report" as defined in Cal. Civ. Code § 1786.2.

5. "DOCUMENTS" means written, printed, typed, or visually or orally

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Fullerton, CA 92832

reproduced material of any kind, whether or not privileged, including, but not limited to, all letters, emails, correspondence, contracts, agreements, bills, orders, receipts, records, books, computer tapes and printouts, memoranda, notes, notebooks, maps, sketches, cablegrams, telegrams, reports, press releases, advertising and promotional literature, prints, drawings, plans, photographs, printed forms, manuals, brochures, lists, publications, videotapes, other tape recordings, films, microfilm, electronic media and all other writings, including drafts, typings, printings, minutes or copies or reproductions thereof in the possession, custody, or control of YOU.

6. "FAIR CHANCE ACT" means the California Fair Chance Act, Government Code § 12952.

7. "MEGAN'S LAW" means California Megan's Law, Penal Code § 290.46 ("Megan's Law"), which prohibits the use of information from the Megan's Law Website from being used for employment purposes.

8. "PERSON(S)" mean natural persons as well as other entities, including but not limited to businesses, corporations, associations, partnerships, firms, organizations, and governmental (municipal, state, or federal) agencies or bodies.

9. "RELATING TO" means all DOCUMENTS and/or COMMUNICATIONS constituting, containing, evidencing, showing, relating, recording, or referring in any way, directly or indirectly, to the subject matter of the Request, as well as all DOCUMENTS and/or COMMUNICATIONS underlying, supporting, attached or appended to such DOCUMENTS and/or COMMUNICATIONS.

10. "YOU," "VONS" and "YOUR" refer to defendant The Vons Companies, Inc. ("Vons") or anyone acting on behalf of Vons, including but not limited to the employees, agents, representatives, and attorneys of Vons.

INSTRUCTIONS

1. Unless otherwise stated, the applicable time period for these requests is from **January 31, 2021 to the present**.

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

2. If, in responding to these interrogatories, YOU claim there is any ambiguity in either a particular interrogatory or in a definition or an instruction applicable thereto, such claim shall not be used by YOU as a basis for refusing to respond, but there shall be set forth as part of the response the language deemed to be ambiguous and the interpretation chosen or used in responding to the particular interrogatory.

3. For purposes of interpreting or construing the scope of the following interrogatories, the terms used are to be given their most expansive and inclusive interpretation unless otherwise specifically limited in the interrogatory itself. This includes, without limitation, the following:

a. Construing the words "and" and "or" used in any interrogatory in the disjunctive or conjunctive as necessary, to make the interrogatory more inclusive;

b. Construing the word "all" used in any interrogatory to mean "any and all" as necessary to make the interrogatory more inclusive;

c. Construing the singular form of any word to include the plural and the plural form to include the singular; and

d. Construing the masculine form to include the feminine and/or the gender neutral form.

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

INTERROGATORY

INTERROGATORY NO. 1:

State in detail the roles and responsibilities of ASURINT RELATING TO YOUR employee hiring process and procedures from January 2023 to the present.

INTERROGATORY NO. 2:

State all facts RELATING TO YOUR department/team responsible for compliance with the FAIR CHANCE ACT, including the name of the department, the number of employees in the department, the titles of each employee, and the number of employees with each title.

INTERROGATORY NO. 3:

State all facts RELATING TO why YOU hired CARRILLO for the Deli Clerk position with Vons in San Diego, California in 2023, including specifically what information regarding CARRILLO was considered and evaluated and the PERSONS (name and title) who were involved in the decision- making process.

INTERROGATORY NO. 4:

State all facts RELATING TO why YOU denied CARRILLO employment (or rescinded CARRILLO's employment offer) in 2023, including specifically what information regarding CARRILLO was considered and evaluated and the PERSONS (name and title) who were involved in the decision- making process.

INTERROGATORY NO. 5:

State all facts RELATING TO any "individualized assessment" (as that term is used in the FAIR CHANCE ACT) of CARRILLO YOU conducted in 2023, including the names and titles of the PERSONS who conducted the assessment, the date when it was conducted, specifically what information regarding CARRILLO was considered and evaluated, and whether YOU communicated with CARRILLO in connection with the assessment.

INTERROGATORY NO. 6:

State the total number of PERSONS in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history.

INTERROGATORY NO. 7:

Identify by name, employment application number or some other unique identifying indicator each PERSON in California who applied for employment with YOU and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history.

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

INTERROGATORY NO. 8:

State the total number of PERSONS in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry.

INTERROGATORY NO. 9

Identify by name, employment application number or some other unique identifying indicator each PERSON in California who applied for employment with YOU and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry.

INTERROGATORY NO. 10:

Describe the job description (including title, role, and responsibilities) for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO in March 2023.

INTERROGATORY NO. 11:

State the salary and/or hourly wage that YOU were paying CARRILLO for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO in March 2023.

INTERROGATORY NO. 12:

Explain in detail the benefits (e.g. medical, dental, retirement) that YOU were going to provide CARRILLO for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO in March 2023.

INTERROGATORY NO. 13:

State the salary and/or hourly wage that YOU were going to pay each of the PERSONS identified in YOUR response to **Interrogatory No. 7**.

INTERROGATORY NO. 14:

State the benefits (e.g. medical, dental, retirement) that YOU were going to provide each of the PERSONS identified in YOUR response **to Interrogatory No. 7**.

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

INTERROGATORY NO. 15:

State the salary and/or hourly wage that YOU were going to pay each of the PERSONS identified in YOUR response to **Interrogatory No. 9**.

INTERROGATORY NO. 16:

State the benefits (e.g. medical, dental, retirement) that YOU were going to provide each of the PERSONS identified in YOUR response to **Interrogatory No. 9**.

INTERROGATORY NO. 17:

Explain in detail the information YOU reviewed and/or relied on in terminating CARRILLO's employment (or rescinding his employment offer) in March 2023.

DATED: July 23, 2025

RAY KIM LAW APC

By: _____
Raymond Y. Kim
Attorney for Plaintiff
Roberto Sandoval Carrillo and others similarly situated

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of **PLAINTIFF ROBERTO SANDOVAL CARRILLO'S INTERROGATORIES TO THE VONS COMPANIES, INC., SET ONE** was served this 23rd day of July 2025 on all counsel of record below via electronic mail.

Rod M. Fliegel (SBN 168289)
rfliegel@littler.com
LITTLER MENDELSON, P.C.
101 Second Street, Suite 1000
San Francisco, California 94105
Tel: (415) 433-1940
Fax: (415) 399-8490

Karimah J. Lamar (SBN 246862)
klamar@littler.com
Christine Fitzgerald (SBN 259014)
cfitzgerald@littler.com
Robert Geiger (SBN 322914)
rgeiger@littler.com
LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
Tel (619) 232 -0441
Fax: (619) 232-4302
Attorneys for Defendant
THE VONS COMPANIES, INC.

Executed on July 23, 2025, at Fullerton, California.

By: _____
Thu Tran

Ray Kim Law, APC
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832

EXHIBIT 3

RAY KIM LAW, APC
Raymond Y. Kim (SBN 251210)
112.E. Amerige Avenue, Suite 240
Fulllerton, CA 92832
Telephone: 833-729-5529
Facsimile: 833-972-9546
E-mail:ray@raykimlaw.com

Attorneys for Plaintiffs
Roberto Sandoval Carrillo and others similarly situated

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated, Plaintiffs, vs. THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT; and DOES 1-5. Defendants.	Case No.: 8:25-cv-00191-SRM-KESx **PLAINTIFF ROBERTO SANDOVAL CARRILLO'S REQUESTS FOR ADMISSION TO THE VONS COMPANIES, INC., SET ONE**

PROPOUNDING PARTY: Roberto Sandoval Carrillo

RESPONDING PARTY: The Vons Companies, Inc.

SET NUMBER: One

Ray Kim Law, APC
112 E. Amerige Ave., Suite 240
Fullerton, CA 92832

Pursuant to Federal Rules of Civil Procedure 26 and 36, Plaintiff Roberto Sandoval Carrillo hereby propounds the following Requests for Admission, Set One, on defendant The Vons Companies, Inc. ("Vons"). Vons is requested to produce the following specified items which are in its possession, control, or custody within thirty (30) days.

DEFINITIONS

Unless the context indicates otherwise, the following words and phrases are defined and used herein as follows:

1. "ASURINT" refers to defendant One Source Technology LLC d/b/a Asurint ("Asurint") or anyone acting on behalf of Asurint, including but not limited to the employees, agents, representatives, and attorneys of Asurint.

2. "COMMUNICATION" means any transmission or exchange of information, statements, ideas, thought or sentiment between or among two or more PERSONS, orally or in writing, and include any conversation or discussion, whether face-to-face or by means of a telephone, telegraph, telex, telecopier, facsimile transmission, letter, e-mail, electronic or other medium.

3. "CARRILLO" or "Plaintiff" refers to plaintiff Roberto Sandoval Carrillo.

4. "CONSUMER REPORT" means any written, oral, or other communication of any information by a consumer reporting agency bearing on a consumer's credit worthiness, credit standing, credit capacity, character, general reputation, personal characteristics, or mode of living which is used or expected to be used or collected in whole or in part for the purpose of serving as a factor in establishing the consumer's eligibility for credit or insurance to be used primarily for personal, family, or household purposes; employment purposes; or another purpose authorized by Section 1681b of the federal Fair Credit Reporting Act. CONSUMER REPORT also means an investigate consumer report as defined in Cal. Civ. Code § 1786.2.

5. "DOCUMENTS" means written, printed, typed, or visually or orally

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Fullerton, CA 92832

reproduced material of any kind, whether or not privileged, including, but not limited to, all letters, emails, correspondence, contracts, agreements, bills, orders, receipts, records, books, computer tapes and printouts, memoranda, notes, notebooks, maps, sketches, cablegrams, telegrams, reports, press releases, advertising and promotional literature, prints, drawings, plans, photographs, printed forms, manuals, brochures, lists, publications, videotapes, other tape recordings, films, microfilm, electronic media and all other writings, including drafts, typings, printings, minutes or copies or readmissions thereof in the possession, custody, or control of YOU.

6. "FAIR CHANCE ACT" means the California Fair Chance Act, Government Code § 12952.

7. "MEGAN'S LAW" means California Megan's Law, Penal Code § 290.46 ("Megan's Law"), which prohibits the use of information from the Megan's Law Website from being used for employment purposes.

8. "PERSON(S)" mean natural persons as well as other entities, including but not limited to businesses, corporations, associations, partnerships, firms, organizations, and governmental (municipal, state, or federal) agencies or bodies.

9. "RELATING TO" means all DOCUMENTS and/or COMMUNICATIONS constituting, containing, evidencing, showing, relating, recording, or referring in any way, directly or indirectly, to the subject matter of the Request, as well as all DOCUMENTS and/or COMMUNICATIONS underlying, supporting, attached or appended to such DOCUMENTS and/or COMMUNICATIONS.

10. "YOU," "VONS" and "YOUR" refer to defendant The Vons Companies, Inc. ("Vons") or anyone acting on behalf of Vons, including but not limited to the employees, agents, representatives, and attorneys of Vons

INSTRUCTIONS

1. Unless otherwise stated, the applicable time period for these requests is from **January 31, 2021 to the present**.

Ray Kim Law, APC
112 E. Amerige Ave., Suite 240
Fullerton, CA 92832

2. If, in responding to these requests, YOU claim there is any ambiguity in either a particular interrogatory or in a definition or an instruction applicable thereto, such claim shall not be used by YOU as a basis for refusing to respond, but there shall be set forth as part of the response the language deemed to be ambiguous and the interpretation chosen or used in responding to the particular interrogatory.

3. For purposes of interpreting or construing the scope of the following requests, the terms used are to be given their most expansive and inclusive interpretation unless otherwise specifically limited in the interrogatory itself. This includes, without limitation, the following:

a. Construing the words "and" and "or" used in any interrogatory in the disjunctive or conjunctive as necessary, to make the interrogatory more inclusive;

b. Construing the word "all" used in any interrogatory to mean "any and all" as necessary to make the interrogatory more inclusive;

c. Construing the singular form of any word to include the plural and the plural form to include the singular; and

4. Construing the masculine form to include the feminine and/or the gender neutral form.

REQUESTS FOR ADMISSION

REQUEST FOR ADMISSION NO. 1:

Admit that YOU rescinded the employment offer to CARRILLO based on information contained in the CONSUMER REPORT from ASURINT dated February 28, 2023 about CARRILLO.

REQUEST FOR ADMISSION NO. 2:

Admit that YOU terminated CARRILLO's employment based on information contained in the CONSUMER REPORT from ASURINT dated February 28, 2023 about CARRILLO.

Ray Kim Law, APC
112 E. Amerige Ave., Suite 240
Fullerton, CA 92832

REQUEST FOR ADMISSION NO. 3:

Admit that YOU did not conduct an "individualized assessment" (as that term is used in the FAIR CHANCE ACT) of CARRILLO in 2023 before YOU decided to take back the job offer.

REQUEST FOR ADMISSION NO. 4:

Admit that YOU denied CARRILLO employment based on the following information contained in the CONSUMER REPORT from ASURINT about CARRILLO:

SEX OFFENDER REPORT

CALIFORNIA

ROBERTO SANDOVAL **DOB: 4/24/XXXX**

Address(es): 551 S 35TH ST, SAN DIEGO, 92113
Alias(es): ROBERTO A SANDOVAL

CASE #CA31_46117241F7968 - CALIFORNIA SEX OFFENDER

CASE SUMMARY

Case #	File Date	Court Type	Case Disposition	Disposition Date
CA31_46117241F7968	n/a	SEX OFFENDER	n/a	n/a
Offense(s)	**Offense Date**	**Level**	**Offense Disposition**	**Disposition Date**

CASE DETAILS

REQUEST FOR ADMISSION NO. 5:

Admit that there are more than thirty (30) persons in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, or employment terminated) as a result of their registry information RELATING TO MEGAN'S LAW.

REQUEST FOR ADMISSION NO. 6:

Admit that there are more than thirty (30) persons in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, or employment terminated) as a result of their criminal or conviction history.

///

Ray Kim Law, APC
112 E. Amerige Ave., Suite 240
Fullerton, CA 92832

REQUEST FOR ADMISSION NO. 7:

Admit that there are more than thirty (30) persons in California who applied for employment with YOU and for whom YOU did not conduct an "individualized assessment" (as that term is used in the FAIR CHANCE ACT) before YOU denied them employment (e.g. no employment offer given, conditional offer of employment rescinded, or employment terminated).

DATED: July 23, 2025 RAY KIM LAW APC

By: _____
Raymond Y. Kim
Attorney for Plaintiff
Roberto Sandoval Carrillo and others similarly situated

Ray Kim Law, APC
112 E. Amerige Ave., Suite 240
Fullerton, CA 92832

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of **PLAINTIFF ROBERTO SANDOVAL CARRILLO'S REQUESTS FOR ADMISSION TO THE VONS COMPANIES, INC., SET ONE** was served this 23rd day of July, 2025 on all counsel of record below via electronic mail.

Rod M. Fliegel (SBN 168289)
rfliegel@littler.com
LITTLER MENDELSON, P.C.
101 Second Street, Suite 1000
San Francisco, California 94105
Tel: (415) 433-1940
Fax: (415) 399-8490

Karimah J. Lamar (SBN 246862)
klamar@littler.com
Christine Fitzgerald (SBN 259014)
cfitzgerald@littler.com
Robert Geiger (SBN 322914)
rgeiger@littler.com
LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
Tel (619) 232 -0441
Fax: (619) 232-4302
Attorneys for Defendant
THE VONS COMPANIES, INC.

Executed on July 23, 2025, at Fullerton, California.

By: _____
Thu Tran

Ray Kim Law, APC
112 E. Amerige Ave., Suite 240
Fullerton, CA 92832

EXHIBIT 4

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated, Plaintiffs, vs. THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT, and DOES 1-5. Defendants.	)	**CASE NO.** 8:25-cv-00191-SRM-KES

DEPOSITION OF

TONI NORTH
PERSON MOST KNOWLEDGEABLE OF
THE VONS COMPANIES, INC.

DATE: Wednesday, October 29, 2025

TIME: 9:03 AM to 6:03 PM

REPORTER: Michelle Dichirico, CSR No.13779

VIA REMOTE VIDEO TECHNOLOGY

Hines Reporters

INTERNATIONAL TOWER
888 S. FIGUEROA STREET, SUITE 940, LOS ANGELES, CALIFORNIA 90017
866.432.4300

LOS ANGELES * SAN FRANCISCO * SAN DIEGO

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiffs,

vs.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT, and DOES 1-5.

Defendants.

Case No.: 8:25-cv-00191-SRM-KES

VIDEOCONFERENCE DEPOSITION OF

THE PERSON MOST KNOWLEDGEABLE FOR

THE VONS COMPANIES, INC.

BY AND THROUGH

TONI NORTH

OCTOBER 29, 2025

Reported by:
Michelle Dichirico
CSR Number 13779

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiffs,

vs.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT, and DOES 1-5.

Defendants.

Case No.: 8:25-cv-00191-SRM-KES

Videoconference deposition of the PERSON MOST KNOWLEDGEABLE for THE VONS COMPANIES, INC., by and through TONI NORTH, taken on behalf of Plaintiffs, beginning at 9:03 a.m., on Wednesday, October 29, 2025, before Michelle Dichirico, Certified Shorthand Reporter Number 13779.

A P P E A R A N C E S

FOR PLAINTIFFS:

RAY KIM LAW, APC
BY: RAYMOND Y. KIM, ESQ.
112 East Amerige Avenue
Suite 240
Fullerton, California 92832
213.204.3547
ray@raykimlaw.com

FOR DEFENDANT THE VONS COMPANIES, INC.:

LITTLER MENDELSON P.C.
BY: KARIMAH J. LAMAR, ESQ.
MICHELLE PEREZ-YANEZ, ESQ.
501 West Broadway
Suite 900
San Diego, California 92101
619.232.0441
klamar@littler.com
mperezyanez@littler.com

FOR DEFENDANT ONE SOURCE TECHNOLOGY, LLC d/b/a ASURINT:

SEYFARTH SHAW LLP
BY: JOHN DRURY, ESQ.
233 South Wacker Drive
Suite 8000
Chicago, Illinois 60606
312.460.5623
jdrury@seyfarth.com

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(None)

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WEDNESDAY, OCTOBER 29, 2025

9:03 A.M.

DEPOSITION REPORTER: Good morning, Counsel. My name is Michelle Dichirico, and I am a California licensed stenographic reporter. My license number is 13779.

TONI NORTH,

having previously been duly sworn, was examined and testified as follows:

EXAMINATION

BY MR. KIM:

Q Good morning, Ms. North. My name is Raymond Kim. I'm the attorney for the plaintiffs in this case, "Roberto Sandoval Carrillo versus The Vons Companies." Thank you for joining us here today for this deposition.

Could you please provide your full name for the record?

A It's Toni North, T-o-n-i, last name is North, N-o-r-t-h.

Q And where are you located currently?

A I'm in my home in the San Francisco Bay Area.

Q Got it.

And do you work remotely?

A Not all the time. I am today because I needed a private place and there wasn't one at the office.

Q Where is your office located?

A Pleasanton, California.

Q And how often do you normally go into the office to work versus working from home?

A We work from two to four days a week.

Q Is that in the office or from home?

A In the office.

Q Have you been deposed before?

A Yes.

Q How many times?

A I don't remember.

Q Could you provide us an estimate?

A I'd guess three to four times.

Q And when did these depositions take place?

A I don't remember.

Q Were any in the past year?

A No.

Q Were any in the past three years?

A No.

Q Were any in the past five years?

A No.

Q Were these depositions for matters related to

The Vons Companies?

MS. LAMAR: I'm going to object that this is outside the scope of the notice topics.

THE DEPONENT: No.

BY MR. KIM:

Q So, Ms. North, even though we're in this informal setting via Zoom, you do understand that your testimony today is still under oath and would have the same effect as if you were testifying in court.

Do you understand that?

A Yes.

Q Okay. And so I'm going to be asking you a number of questions and, throughout the deposition, also presenting exhibits on the screen.

When I ask you questions, I am entitled to your best answer; however, I do not want you to guess. So if you don't know, you don't know, but I am entitled to your best estimate.

And do you understand the difference between a guess and an estimate?

A Yes.

Q Okay. What's the difference?

A A guess would be how much change I have in my purse -- or an estimate. I'm sorry.

A guess would be how much change you have in

your pocket.

Q Perfect.

All right. So with us here is a court reporter, Ms. Dichirico, and she's going to be taking down all of my questions and all of your responses.

So it's important that only one of us talk at a time. There may be moments where you're anticipating my question, but I ask that you allow me to complete my question and then you provide your response.

Is that all right?

A Yes.

Q Okay. Also, I ask that your responses be verbal instead of nods or shakes of the head.

Is that okay?

A Yes.

Q Okay. And if at any time you don't understand my question, please just let me know, and I'll try to restate it or rephrase it so you do understand.

And after -- if at any point you need to take a break, please let us know. We can go off the record for five or ten minutes or however long you need.

And then after we finish this deposition, you're going to be given an opportunity to review the transcript. And to the extent you make any changes, substantive changes, I can comment on those changes at

trial.

Do you understand that?

A Yes.

Q Okay. Now, is there any reason why you cannot give your complete and honest testimony today?

A No.

Q All right. So could you provide me with your employment for the past ten years?

A I've been employed with Vons for the last ten years.

Q So what is your -- what's your current title?

A I don't know. I don't remember, I should say.

Q Okay. Could you tell me, maybe, what kind of department?

A I believe it says AEC onboarding manager. I really don't know.

Q Okay. Is that related to human resources?

A Yes.

Q Okay. So you work in the HR department, then; is that right?

A Yes.

Q Okay. And are you -- do you have a managerial role in the HR department?

A Yes.

MS. LAMAR: Objection; calls for a legal

conclusion.

And, Toni, I just ask you kind of pause so that I can get an objection in.

THE DEPONENT: My apologies.

Yes.

BY MR. KIM:

Q And then what does "AEC" stand for?

A Associate Employment Center.

Q Okay. And is that like a fancy way of saying HR?

A It's a part of human resources. It's a support organization for human resources.

Q Okay. And then so are you the manager of the AEC group?

A No, I'm not.

Q Okay. You said, though, you are an onboarding manager; is that right?

A Yes.

Q Okay. So is that one of the managers in the AEC department?

A Yes.

Q Okay. How many onboarding managers are there in the AEC department?

A I don't know.

Q More than one?

A Yes.

Q Are there more than five?

A Yes.

Q Are there more than ten?

A I don't know.

Q So are you estimating maybe between five and ten?

MS. LAMAR: Asked and answered.

THE DEPONENT: I really don't know. There could be a lot more.

BY MR. KIM:

Q Okay. Are the onboarding managers all located in the Pleasanton, California office?

A No.

Q Are they all over the U.S.?

A Yes.

Q As an onboarding manager, are you responsible for a certain region?

A No.

Q So what are your responsibilities?

So are you responsible for the hiring of prospective employees or candidates across the U.S.?

MS. LAMAR: Objection; compound.

BY MR. KIM:

Q I'm sorry. Could you restate your response?

A No.
Q Okay. So as the onboarding manager, are you responsible for the hiring of candidates?
And when I say "candidates," I'm just referring to individuals who apply for a job with The Vons Companies. And when I say "prospective employees," it's the same idea, people who are applying for jobs at The Vons Companies.
So as an onboarding manager, are you responsible for overseeing candidates across the United States?
MS. LAMAR: Objection to the extent it calls for a legal conclusion.
THE DEPONENT: No.
BY MR. KIM:
Q So what regions do you cover?
A I cover every state where Albertsons operates.
Q Do you know what states those are?
A I don't remember.
Q Could you provide some of the states?
A California, Oregon, Washington, Colorado, Texas.
Q And why is it that you cover the regions where Albertsons operates?
MS. LAMAR: Objection; outside the scope, calls

for speculation.
THE DEPONENT: I'm responsible for the banners underneath Albertsons.
BY MR. KIM:
Q I didn't catch that last part. I'm sorry.
So you said you're responsible for the banners?
A Underneath Albertsons.
Q And by "banners," do you mean the grocery stores that fall under Albertsons?
MS. LAMAR: Objection; outside the scope, calls for speculation.
THE DEPONENT: The banner would be the name that shows on the outside of the store. For example, Vons, Pavilions, Carrs, Gottsteins.
BY MR. KIM:
Q I'm sorry. So you said Vons, Pavilions.
What were the other two?
A Carrs, Gottsteins.
Q And you said Carrs, C-a-r-r-s?
A Yes.
Q And then would Albertsons also be one of those names?
A Yes.
Q So are you an employee of The Vons Companies or of Albertsons?

MS. LAMAR: Objection; outside the scope, relevance.
THE DEPONENT: I'm an employee of Safeway.
BY MR. KIM:
Q Of Safeway. Is Safeway one of the banner stores?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: Yes.
BY MR. KIM:
Q And is Safeway a subsidiary of the Albertsons Companies?
MS. LAMAR: Objection; outside the scope, calls for a legal conclusion, relevance.
THE DEPONENT: I don't know.
BY MR. KIM:
Q So can you kind of try to explain for me the relationship between Vons, Albertsons, and Safeway?
MS. LAMAR: I'm going to object that this is outside the scope.
We actually objected to her being a PMK for this topic, and I'm going to instruct her not to answer.
MR. KIM: Ray, follow up.
BY MR. KIM:
Q So, Ms. North, at times you might hear me just talk to myself and say "follow up," and that's just to

put an indication in the depo transcript for myself. So just to give you a heads-up about that.
MR. KIM: Okay. I'm going to put on the screen here Exhibit 1.
(Exhibit 1 was marked for identification.)
BY MR. KIM:
Q Ms. North, do you see a PDF document on your screen?
A Yes.
Q Okay. So this is the amended notice of deposition of the person most knowledgeable for The Vons Companies that my office had served on Vons's counsel.
Have you seen this document before?
A Yes.
Q Okay. So I'm just going to scroll down here.
And did you review the definitions here?
A Yes.
Q Okay. I'm going to scroll down here.
Now, this next section beginning on page 4 entitled "Matters for Examination," did you review this section here?
A Yes.
Q Okay. Do you understand that you've been called as a witness and representative for Vons on these topics?

MS. LAMAR: Subject to our objections.
THE DEPONENT: Yes.
BY MR. KIM:
Q Okay. Are there -- I'm just going to scroll down here.
Do you want to take a moment to review these on page 4?
A No.
Q Okay. How about page 5, Categories 7 through -- would you like a moment to review these?
A No.
Q How about the next page?
A No.
Q Okay. Could you still see it? I know I zoomed out a little.
A Kind of.
Q Okay. Let me -- is that better?
A Yes.
Q Okay. So are there any categories here -- I'm sorry. Strike that.
So are there any categories listed in this amended deposition notice for which you are not appearing today?
MS. LAMAR: Objection; calls for speculation.
We served an objection to this deposition

notice which states which topics she's not appearing for.
THE DEPONENT: I don't know.
BY MR. KIM:
Q So late yesterday afternoon, around five o'clock, there were objections that were served.
Are you aware that there were objections to this deposition notice that were served, Ms. North?
A No.
Q So as far as you know, you are appearing as Vons's person most knowledgeable witness for all of these topics; is that correct?
MS. LAMAR: Objection; misstates testimony, also calls for speculation, asked and answered.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Okay. Well, let's continue and maybe we will revisit this when we need to.
So, Ms. North, why do you believe that your employer is Safeway?
MS. LAMAR: Objection; outside the scope, relevance.
THE DEPONENT: That's the name that appears on my paycheck.
BY MR. KIM:
Q Okay. All right. So for purposes of hiring --

strike that.
Okay. So for purposes of this deposition, I'm going to use the term "Vons," but Vons is going to refer to Vons as well as the other companies or banners underneath Albertsons.
So that would include Pavilions, Gottsteins, Carrs, Albertsons, Safeways.
Do you understand that?
MS. LAMAR: I'm actually going to object to that. She's here only for Vons.
BY MR. KIM:
Q Ms. North, do you understand that?
A No.
MS. LAMAR: Regardless, I'm going to instruct you not to adopt that naming convention.
MR. KIM: Because at this point, I'm confused.
And this is a discussion, Ms. Lamar, that you and I had, I believe, last week where I was told on a phone call with you and Bobby that I would get clarity on the issue during the deposition, and now you've instructed your client not to respond to this line of questions.
Ms. North is employed by Safeway. She works in the AEC in the HR department and covers every state where Albertsons operates.

BY MR. KIM:
Q So let me ask you this, then, Ms. North. Maybe this could help clarify the issues.
Do The Vons Companies and Albertsons have the same hiring policies and procedures?
MS. LAMAR: Objection; outside the scope.
I'm going to instruct her not to answer. She's only here on behalf of Vons.
If you want to go off the record, we can have a discussion. But you're misrepresenting what specifically I said as to what she could testify to today.
MR. KIM: I disagree.
Ray, follow up.
BY MR. KIM:
Q So, Ms. North, what is The Vons Companies, then? Like, who are The Vons Companies?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Ms. North, who are you here representing today?
A Vons.
Q So who is Vons?
MS. LAMAR: Asked and answered.
THE DEPONENT: I don't know.
MR. KIM: Okay. I think we're going to have to

get some guidance from Judge Scott on the parameters of this deposition.

At this point, we have a PMK witness who has testified that she is representing Vons as the 30(b)(6) witness but does not know who Vons is.

She is employed by Safeway. The communications that my client received say Albertsons. And, Ms. Lamar, you're not allowing her to respond as to the relationship between Albertsons, Vons, and Safeway.

I'm not sure I see a point in continuing with this deposition at this time, and if I am -- if my client is going to have to call Ms. North back for a deposition, I'm going to ask that Vons cover all the costs of that deposition.

MS. LAMAR: Okay. We're not paying for it. She's here. She's the PMK for Vons, and she's ready and available to testify on behalf of Vons. That does not require that she understands what constitutes The Vons Companies.

But any testimony she gives here on the topics that you have noticed are on behalf of Vons.

MR. KIM: But she does not know who Vons is.

MS. LAMAR: Why does she need to know who Vons is to testify on behalf of Vons?

You have the notice topics. She's here to

testify on the notice topics subject to the ones that we objected to.

MR. KIM: She doesn't know who she's representing here in this deposition. That's the problem.

MS. LAMAR: She's representing Vons. You --

(Simultaneous colloquy.)

MR. KIM: Who's Vons?

MS. LAMAR: She doesn't have to know what that is. She's here representing Vons. Her testimony is going to bind Vons, whatever that legal entity is. It doesn't require her to know how that entity is structured.

MR. KIM: I'm not asking how the entity is structured. I'm asking who Vons is.

MS. LAMAR: What do you mean by that?

MR. KIM: Who is Vons? Is Vons the Vons stores and Pavilions? Is that it?

Is Vons the Vons stores, Pavilions, and Andronico's? Does it include Safeway and Albertsons?

And you're not allowing her to respond to that line of questioning.

MS. LAMAR: Let me talk to her. We can go off the record, and let me talk to her.

MR. KIM: Okay. Off the record.

(A recess was held.)

MR. KIM: Back on the record.

BY MR. KIM:

Q So, Ms. North, earlier you testified that you are responsible for hiring in every state where Albertsons operates; is that correct?

MS. LAMAR: Objection; misstates testimony.

THE DEPONENT: No.

BY MR. KIM:

Q Then what regions do you cover as a part of your employment with Vons or Safeway?

MS. LAMAR: Objection; outside the scope, asked and answered.

THE DEPONENT: I cover all regions.

BY MR. KIM:

Q In the United States?

A Yes.

MS. LAMAR: Same objections.

BY MR. KIM:

Q So earlier when you testified about where Albertsons operates and their banner companies, what did you mean by that?

MS. LAMAR: Objection; outside the scope.

THE DEPONENT: I don't understand the question.

///

BY MR. KIM:

Q So you said -- you testified that with respect to hiring, you're responsible for banners underneath Albertsons.

MS. LAMAR: Objection; misstates testimony.

BY MR. KIM:

Q Do you recall that testimony?

A No.

Q Do you recall testifying about Gottsteins and Carrs?

A Yes.

Q Okay. And do you recall testifying that those are banners?

A Yes.

MS. LAMAR: Objection; outside the scope.

Ms. North, I just ask that you pause after the question so I can get my objections in.

BY MR. KIM:

Q Why did you testify about banners?

MS. LAMAR: Objection; argumentative.

THE DEPONENT: I don't understand the question.

BY MR. KIM:

Q So earlier you mentioned the word "banner"; is that right?

A Yes.

Q In what context were you testifying about banners?
MS. LAMAR: Objection; asked and answered, outside the scope.
THE DEPONENT: Vons is one of the banners of Albertsons.
BY MR. KIM:
Q As well as Gottsteins?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: Yes.
BY MR. KIM:
Q And Carrs?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: Yes.
BY MR. KIM:
Q And Pavilions?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: Yes.
BY MR. KIM:
Q And Safeway?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: Yes.
BY MR. KIM:
Q Are there any other Albertsons banners in California?

MS. LAMAR: Objection; outside the scope.
THE DEPONENT: I don't remember.
BY MR. KIM:
Q So all of these banners under Albertsons, are they governed by the same hiring policies?
MS. LAMAR: Objection; outside the scope.
I'm going to instruct you not to answer.
MR. KIM: Ray, follow up.
Ms. Lamar, this is directly relevant to class certification issues.
MS. LAMAR: She's here as the PMK, and this is not one of the topics that you noticed her here for.
MR. KIM: Policies and procedures with respect to the Fair Chance Act, policies and procedures with respect to the Megan's Law.
MS. LAMAR: Okay. If you want to ask her about that in that context separate and apart from the structure of Albertsons, you can do that.
I'm not going to have her testify as to the structure of Albertsons. She's here representing Vons.
MR. KIM: My question was not about the structure of Albertsons. I'll repeat the question.
BY MR. KIM:
Q Ms. North, are these banner brands or banner stores that are underneath Albertsons, are they governed

by the same hiring policies?
MS. LAMAR: Objection; outside the scope.
I'm going to instruct you not to answer.
MR. KIM: Ray, follow up.
BY MR. KIM:
Q Ms. North, do Albertsons and Vons have the same hiring policies and procedures?
MS. LAMAR: Objection; outside the scope, asked and answered.
You asked it already. I've already objected to it. I'm instructing her not to answer.
She's not going to be answering any questions regarding any hiring policies to any other entity other than to Vons, Inc.
MR. KIM: Ms. Lamar, how can Ms. North be a PMK witness for Vons, Inc. when she is employed by Safeway?
MS. LAMAR: This is not my deposition. This is the PMK that has been produced. You can ask her the questions that we did not object to.
MR. KIM: That's not how this works, though.
BY MR. KIM:
Q Ms. North, what is your relationship with respect to The Vons Companies?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: I don't understand the question.

BY MR. KIM:
Q So are you employed by The Vons Companies?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: No, I'm employed by Safeway.
BY MR. KIM:
Q Ms. North, did Safeway conditionally hire my client, Roberto Sandoval Carrillo?
MS. LAMAR: Objection; outside the scope, calls for speculation.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Did Vons conditionally hire Mr. Sandoval Carrillo?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: I don't remember.
BY MR. KIM:
Q Did Albertsons conditionally hire Mr. Sandoval Carrillo?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: I don't remember.
BY MR. KIM:
Q Okay. Ms. North, I'm going to put on the screen Exhibit 2.
(Exhibit 2 was marked for identification.)
MR. KIM: This is a portion of Vons's

production, Bates Numbers Vons 1 -- I'm sorry -- Bates Numbers Vons (Carrillo) 1 to Vons (Carrillo) 120, and at this time, we are looking at Bates Numbers 118 to 119 in Exhibit 2.

BY MR. KIM:

Q Ms. North, have you seen this document before?

A Yes.

Q Could you tell us what this document is?

A The standard operating procedures regarding reviewing --

(Failure in transmission.)

BY MR. KIM:

Q I'm sorry. You cut out there. Could you say that again?

A I apologize. Standard operating procedures regarding reviewing criminal histories.

Q Do you see at the top right it says "Albertsons"? Do you see that?

A Yes.

Q So are these the standard operating procedures regarding reviewing criminal histories for the Albertsons Companies?

MS. LAMAR: I'm going to object. It's outside the scope.

And I'm going to instruct you not to answer.

MR. KIM: So Ms. North has been produced as the PMK witness for, among other topics, Vons's document production. I'm not sure how this is outside the scope.

MS. LAMAR: My objection stands. You can go on with your next question.

MR. KIM: Madam Court Reporter, could you repeat my question for me, please, my last question?

(Record read.)

BY MR. KIM:

Q Ms. North, when was this procedure document created?

A I don't remember.

Q Who created this procedure document?

A Myself in conjunction with our legal team.

Q Do you recall approximately when you created this procedure document?

A I don't remember.

Q Who on the legal team did you work with in creating this procedure document?

A It would have been Sarrie Devore and/or Elena Dietrich.

Q Could you spell those two names for me, please?

A Sarrie Devore is S-a-r-r-i-e D-e-v-o-r-e.

Elena Dietrich is E-l-e-n-a D-i-e-t-r-i-c-h.

Q Is Ms. Devore a lawyer?

A Yes.

Q Is she employed by Vons?

MS. LAMAR: Objection; outside the scope, calls for speculation.

THE DEPONENT: I don't know.

BY MR. KIM:

Q Is Ms. Dietrich a lawyer?

A Yes.

Q Who is she employed by?

MS. LAMAR: Objection; outside the scope, calls for speculation.

THE DEPONENT: I don't know.

BY MR. KIM:

Q Do you have communications with these attorneys regarding creation of this procedure document?

MS. LAMAR: Objection; outside the scope.

THE DEPONENT: I don't remember.

BY MR. KIM:

Q Did you search for communications relating to the creation of this procedure document?

A No.

Q Why not?

A I don't know.

Q Was this procedure document in effect in January of 2023?

A Yes.

Q How do you know that?

A Because this is exactly what I did when I reviewed Mr. Carrillo.

MR. KIM: And just for the record, we're going to refer to my client, Mr. Roberto Carrillo Sandoval, as Mr. Carrillo and Mr. Sandoval interchangeably throughout this deposition.

BY MR. KIM:

Q So you said this is what you did when you reviewed Mr. Carrillo.

What do you mean by that?

MS. LAMAR: Misstates testimony.

THE DEPONENT: These are the steps I would follow when reviewing criminal history.

BY MR. KIM:

Q So were these procedures in effect before January of 2023?

A Yes.

Q Were they in effect before January of 2022?

A Yes.

Q Were they in effect before January of 2021?

A Yes.

Q Are there any other procedures regarding reviewing criminal histories at Vons?

A Yes.
Q What are they?
A They would have been in communication with our legal team.
THE DEPONENT: Can I answer that, Ms. Lamar?
MS. LAMAR: You can answer what it would be. You are not to discuss any communications that you had, just whatever the -- well, you can just limit it to the other communications. What you testified to is fine.
THE DEPONENT: We have an operating manual that goes through each of these procedures in detail.
BY MR. KIM:
Q When was that operating manual created?
A It has been revised many times, so I don't know the answer to that.
Q Why wasn't that operating manual produced in this case?
MS. LAMAR: Objection; outside the scope.
MR. KIM: It's certainly within the scope.
MS. LAMAR: I'm going to instruct you not to answer to the extent you would be disclosing any attorney-client communication.
THE DEPONENT: It all would be attorney-client privileged because it was created with our legal team.
///

BY MR. KIM:
Q Well, this procedure document on the screen was created with your legal team. This was produced.
MS. LAMAR: Objection; argumentative, asked and answered.
And separately, we provided objections to producing the operating manual that she's referencing, both when it was a request for production of documents as well as in this PMQ deposition notice.
MR. KIM: That's not true. I feel like there's something really wrong going on here.
BY MR. KIM:
Q Could you describe this operating manual for me, please?
What's the name of this operating manual?
A It's just titled "Background Check Program." It's basically everything you see in front of you, but it goes through what the screens look like in the Asurint website, what the screens look like in our applicant tracking system. It's a procedural manual.
Q Did you say, "what the screens look like in the Asurint website"?
A Correct, yes.
Q And I'm sorry. You said what screens look like in what?

A Applicant tracking system.
Q Is that like a propriety hiring system that Vons uses?
MS. LAMAR: Objection. At this point, I've allowed you to ask enough questions as to understand what it is; so I'm going to instruct her not to answer. It's subject to attorney-client communication.
MR. KIM: It's not.
MS. LAMAR: Well, that's my objection. I'm instructing her not to answer. You can move on.
BY MR. KIM:
Q What is the applicant tracking system, Ms. North?
A The applicant tracking system is what the hiring personnel use to track applicants as they come through the system. So it's from the initial application through to the process of onboarding.
Q Was Mr. Carrillo tracked in the applicant tracking system?
A Yes.
Q Were documents produced with respect to Mr. Carrillo from the applicant tracking system?
MS. LAMAR: Objection; calls for speculation.
THE DEPONENT: Yes.
///

BY MR. KIM:
Q Does the applicant tracking system include any review of an applicant's conviction history?
A No.
Q Why not?
A That's done through the Asurint site and specifically through me.
Q When you say "it's done through the Asurint site," what do you mean by that?
A That would be the adjudication process that we follow. So that means that I would be going in and looking at the background check report.
Q So you go into Asurint's site to look at the background check report?
A Yes.
Q Did you personally go into the Asurint site to look at Mr. Carrillo's background report?
A Yes.
Q What else did you look at with respect to Mr. Carrillo's hiring and rescission of his conditional employment?
A All the information I review is part of the background check report.
MR. KIM: I'm going to strike that as nonresponsive.

BY MR. KIM:
Q So what else did you look at with respect to Mr. Carrillo's hiring?
MS. LAMAR: Asked and answered.
THE DEPONENT: I guess I don't understand the question. I don't understand what you're talking about.
BY MR. KIM:
Q So would you agree with me that Albertsons conditionally hired Mr. Carrillo for employment at a Vons store?
MS. LAMAR: Objection; outside the scope, calls for speculation, asked and answered.
THE DEPONENT: Yes.
BY MR. KIM:
Q So what information was reviewed when Mr. Carrillo was conditionally hired?
MS. LAMAR: Objection; vague and ambiguous.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Did you respond you don't know?
A Yes.
Q Are you aware that Mr. Carrillo's conditional offer of employment was rescinded?
A Yes.
Q Why was it rescinded?

A If you mean initially, it was the review of his previous conviction, if he disclosed at time of offer, and his criminal convictions.
Q What do you mean by "initially"?
A The initial process starts the pre-adverse action, but I'm referring again to the standard operating procedures.
That notice initiates the adverse action process and allows disputing, and we review all of that information provided to us by the potential candidate.
Q Where is all of that information stored?
A Some of it, when it comes through Asurint, is tracked as part of the background check report.
Some of it comes through our criminal.checks mailbox that is referred to in the pre-adverse action letter. Those e-mail communications are saved indefinitely.
Q Which e-mail communications?
A To the criminal.checks@albertsons.com.
Q Is there a name for the Asurint site --
MS. LAMAR: Objection; vague and ambiguous.
THE DEPONENT: I don't know.
MR. KIM: So if you can let me finish my question.
///

BY MR. KIM:
Q Is there a name for the Asurint site that you review to look at background check reports?
A I just go to the www.asurint.com. Of course access is limited, and I have to enter a password.
Q So there's a specific portal for Asurint's clients that Albertsons would use to obtain the background report information?
MS. LAMAR: Objection; outside the scope as it relates to what Albertsons does, also calls for speculation.
You can answer with respect to Vons.
THE DEPONENT: Yes.
BY MR. KIM:
Q Ms. North, this document here, again, Bates Numbers 118 to 119, the standard operating procedures, again, this says "Albertsons Companies" at the top right; isn't that right?
MS. LAMAR: The document speaks for itself.
THE DEPONENT: Yes.
BY MR. KIM:
Q And this is the standard operating procedures used by the Albertsons Companies; isn't that correct?
MS. LAMAR: Objection; outside the scope.
I'm going to instruct you not to answer. You

can answer as it relates to Vons.
THE DEPONENT: Yes.
MR. KIM: Okay. I'm going to introduce Exhibit 3.
(Exhibit 3 was marked for identification.)
BY MR. KIM:
Q Ms. North, have you seen this document before?
A Yes.
Q Could you read the title for us, please?
A "Defendant The Vons Companies, Inc.'s Supplemental Objections and Responses to Plaintiff Roberto Sandoval Carrillo's Requests for Production of Documents, Set One."
Q Did you assist your counsel in searching for documents in response to Mr. Carrillo's requests for production?
A Yes.
Q Did you review this document before it was served to my office on October 10th?
A Yes.
Q And then did you review this document in preparation for today's deposition?
A No.
Q So you'll see here Request for Production Number 2:

"Your policies and procedures for conducting individualized assessments of prospective employees from January 2023 to the present."

Do you see that?

A Yes.

Q Okay. So it states:

"Responding Party will produce its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories."

Do you see that?

A Yes.

Q Was that the document that we had looked at as Exhibit 2?

A Yes.

Q Okay. Are there other documents, other policies and procedures for conducting individualized assessments of prospective employees from January 2023 to the present?

A Yes, the procedure guide I referred to earlier.

Q Did you produce that document?

A No.

Q Why not?

A It was developed in conjunction with the legal

team. It's --

Q But that's a -- I'm sorry. Go ahead.

A It's therefore privileged.

MR. KIM: Well, I'll state for the record that this document was not identified in the privilege log.

BY MR. KIM:

Q Now, Ms. North, didn't you say that the procedures, Exhibit 2, was also produced with the legal team?

A Yes.

Q So why was that produced? But this other procedure guide, why is this not being produced?

A I don't --

MS. LAMAR: Objection.

I'm going to instruct you not to answer to the extent that you will be disclosing any communications with counsel. Other than that, you can answer.

THE DEPONENT: I don't know.

BY MR. KIM:

Q Did you say you don't know?

A Yes.

MR. KIM: Ray, follow up.

BY MR. KIM:

Q Who uses that other procedure guide that was not produced?

A Myself and Courtney Jones.

Q Who is Courtney Jones?

A Courtney Jones is my direct report. She's a compliance adjudicator.

Q So she reports to you?

A Yes.

Q Is she a part of the AEC department?

A Yes.

Q How many other compliance adjudicators report to you?

A Zero.

Q How many other compliance adjudicators are there in California?

A Zero.

Q I'm sorry?

MS. LAMAR: Objection; calls for speculation.

THE DEPONENT: Zero.

BY MR. KIM:

Q What does a compliance adjudicator do?

A They go through each of the background check reports that are returned from Asurint and adjudicate them.

Q What do you mean by "adjudicate"?

A Make a preliminary decision as to whether the person is to be hired or not.

Q I'm sorry. You said make a preliminary decision?

A As to whether the person is hired or not.

Q And what procedure guide does Ms. Jones follow in making this preliminary decision?

MS. LAMAR: Objection; calls for speculation.

THE DEPONENT: The SOP that you just produced.

BY MR. KIM:

Q Of Exhibit 2?

A Yes.

Q Anything else?

MS. LAMAR: Objection. Exhibit 2 is Vons 1 through 120. So specifically, 118 and 119.

BY MR. KIM:

Q So was that the standard operating procedure regarding reviewing criminal histories? Is that what you're referring to, Ms. North?

A Yes.

Q Are there any other guides that Ms. Jones relies on?

MS. LAMAR: Objection; calls for speculation.

THE DEPONENT: I don't know.

BY MR. KIM:

Q Didn't you earlier testify that she relies on another procedure guide?

MS. LAMAR: Objection; asked and answered.
THE DEPONENT: The procedure guide is a training guide. When she would be up and running, she would be using the standard operating procedures.
MR. KIM: Ray, follow up.
BY MR. KIM:
Q So other than the standard operating procedures that we looked at earlier, is there any other guide that Ms. Jones would use in --
MS. LAMAR: Objection; calls --
BY MR. KIM:
Q -- in adjudicating and making the preliminary decision?
MS. LAMAR: Objection; calls for speculation.
THE DEPONENT: No.
BY MR. KIM:
Q So I'm going to scroll down to Request for Production Number 6 here in Exhibit 3.
Ms. North, do you see Request for Production Number 6, your employee training manuals relating to compliance with the Fair Chance Act?
Do you see that?
A Yes.
Q And then here in the supplemental response, which was served on October 10th, Vons responded:

"Responding Party has conducted a reasonable and diligent search and no non-privileged documents exist."
Do you see that?
A Yes.
Q That's not true; correct?
MS. LAMAR: Objection; asked and answered, argumentative.
THE DEPONENT: No.
BY MR. KIM:
Q What do you mean by "no"?
A The initial adjudication --
(Failure of transmission.)
DEPOSITION REPORTER: Ms. North, I'm sorry but you're coming across so muffled, and I'm going to need you to repeat your answer from the beginning.
THE DEPONENT: I'm so sorry.
Mr. Kim, can you state the question again?
MR. KIM: Ms. Dichirico, could you repeat the last question, please?
(Record read.)
THE DEPONENT: So there are portions of the Fair Chance Act that are in that document you just referred to, but a lot of it relates to disputes and reviewing mitigating information.

We did not have documents related to that that were non-privileged.
BY MR. KIM:
Q Oh, okay. I'm -- so, Ms. North, does Vons have employee training manuals relating to compliance with the Fair Chance Act?
A I don't know how to answer the question. In part, yes.
MS. LAMAR: We've been going an hour. So after you're done with this line of questioning, we need to take a break.
BY MR. KIM:
Q So what are those employee training manuals?
MS. LAMAR: And again, to the extent that they're covered by attorney-client communications, I'm going to instruct you to just describe the document.
THE DEPONENT: And that would be the document that I described previously.
BY MR. KIM:
Q That is used by Ms. Jones; is that right?
MS. LAMAR: Objection; asked and answered.
THE DEPONENT: I don't know.
MR. KIM: Ray, follow up.
So I'm going to ask that Vons, Albertsons produce this employee training manual responsive to

RFP Number 6.
Okay. Ms. Lamar, would you like to take a break?
DEPOSITION REPORTER: Yes, please.
MR. KIM: Okay. All right. So off the record.
(A recess was held.)
MR. KIM: Okay. I'm going to put Exhibit 3 back on the screen.
BY MR. KIM:
Q So, Ms. North, do you see -- so we're looking again at Vons's supplemental objections and responses to Plaintiff's requests for production, set one.
We're looking at Request for Production Number 6 -- actually, I'm sorry. Now we're going to look at Request for Production Number 7.
Could you read that for us, please?
A (Reading):
"Your policies and procedures relating to compliance with the Megan's Law."
Q Okay. So here Vons stated:
"Responding Party will produce its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories."
Is this the standard operating procedures that

we looked at earlier that said "Albertsons Companies" on the top right?

A Yes.

Q Okay. Are there any other policies, procedures, guides used by Vons related to compliance with the Megan's Law?

A No.

Q Okay. Going to RFP Number 8:

"Your communications relating to compliance with the Megan's Law from January 2023 to the present."

I'm going to scroll down here in the supplemental response, which I'll highlight:

"After agreement with counsel, Responding Party searched for non-privileged communications from Toni North that are reasonably identifiable without an ESI search and did not locate documents responsive to this request."

Do you see that?

A Yes.

Q Did you search for communications relating to compliance with the Megan's Law from January 2023 to now?

A Yes.

Q Did you find any communications?

A None that were not privileged.

Q Did you find communications that were privileged?

A I don't remember.

Q Where did you search for this information?

A I searched in the criminal.checks e-mail as well as my own work e-mail.

Q And the criminal.checks e-mail, who has access to that e-mail address?

A Myself and Courtney Jones.

Q Anyone else?

A No.

Q Do you exchange communication through any other platforms, such as Slack or Teams or text message, for instance?

A We have access to Teams. I don't use it.

Q And how did you conduct the search through your criminal.checks e-mail and your work e-mail?

A Both are part of the Outlook system, and I used the search function to search all mailboxes.

Q So what is the Megan's Law?

MS. LAMAR: Objection; outside the scope, calls for a legal conclusion.

THE DEPONENT: I know the portion that responds to background checks, which is that we need to not rely

exclusively on Megan's Law for adverse action.

BY MR. KIM:

Q So is it your understanding that Vons can rely on registry information contained in the Megan's Law?

MS. LAMAR: Objection; outside the scope, calls for a legal conclusion.

You can answer based on your own knowledge but not on behalf of Vons.

THE DEPONENT: Not exclusively.

BY MR. KIM:

Q What do you mean by "not exclusively"?

MS. LAMAR: Same objections; outside of the scope, calls for a legal conclusion.

THE DEPONENT: If we were to make a final adverse action decision based only on Megan's Law, that would not be legal.

BY MR. KIM:

Q So just to make sure I heard you right, you said, "If we were to make a final adverse action decision based on the Megan's Law, that would not be legal"?

MS. LAMAR: Objection; asked and answered, outside of the scope, calls for a legal conclusion.

Ms. North can answer based on her own personal knowledge but not on behalf of Vons.

THE DEPONENT: Yes.

BY MR. KIM:

Q So based on your understanding as an AEC manager, in what circumstances can Vons use registry information from the Megan's Law for employment decisions?

MS. LAMAR: Objection; outside the scope, calls for a legal conclusion.

I'm going to instruct her not to answer with respect to her role or on behalf of Vons, but she can answer based on her own knowledge.

THE DEPONENT: It doesn't apply to Mr. Sandoval Carrillo because he gave us a lot of mitigating information that we also used.

More importantly, he disclosed the conviction at the time of offer.

BY MR. KIM:

Q How do you know that he disclosed the conviction at the time of offer?

A Through their personal identifying information, the first thing I see on the background check from Asurint, the report, comes over from our applicant tracking system and shows precisely what the person responded to that question at time of offer.

Q So you receive that information at the time you receive the background report?

A Yes.

MS. LAMAR: Wait. I think Mr. Drury just put an objection on. I can see his mouth moving, but nothing came out. So I just want to make sure that if he had an objection, that we get it on the record.

DEPOSITION REPORTER: Thank you, Mr. Lamar. I did not see that.

MR. DRURY: I'm sorry. Can you hear me now?

DEPOSITION REPORTER: Yes.

MS. LAMAR: Yes.

MR. DRURY: I just said, "Objection; misstates testimony."

BY MR. KIM:

Q So, Ms. North, you said the Megan's Law doesn't apply here; is that right?

MS. LAMAR: Objection; misstates testimony, calls for a legal conclusion.

I'll allow her to answer it in her own individual capacity but not on behalf of Vons.

THE DEPONENT: No, it always applies. What I said was we were not relying exclusively on Megan's Law.

BY MR. KIM:

Q But you relied partially on Megan's Law information; is that right?

A Yes.

MR. KIM: So, Ms. Lamar, I'm a little confused because Ms. North is the PMK, and she has been produced as the 30(b)(6) witness and corporate representative.

And to state that she is not representing Vons, and it's unclear whether she's representing Albertsons --

MS. LAMAR: You're asking her to interpret a law. That's just calling for a legal conclusion. We did not produce her to interpret the Fair Chance Act or to interpret Megan's Law.

I'm allowing you to ask her the questions, but her answers, as it relates to interpreting law, is not going to be binding on Vons.

MR. KIM: Well, that's your opinion.

But at this point, is there somebody else that Vons will produce --

MS. LAMAR: We're not going to produce --

MR. KIM: -- to address these questions?

Because there is going to be a second deposition -- right? -- because there is additional information that hasn't been produced.

MS. LAMAR: I've stated my objection. Move on.

If you want to point to a specific topic that she's not answering, then we can have that conversation.

But at this point, we're talking about RFPs. You're asking her to interpret the Megan's Law, and I'm

instructing her that she is not to answer that on behalf of Vons.

We don't need to debate this. If you want to take this up with the judge, then do that later. Let's just move on so we can get on with her deposition.

MR. KIM: Ray, follow up.

Okay. I'm going to RFP Number 9.

BY MR. KIM:

Q So, Ms. North, Request for Production Number 9 seeks your employee training manuals relating to compliance with the Megan's Law.

Do you see that?

A Yes.

Q Okay. Did you search for this information?

A I don't remember.

Q So here in the supplemental response, which I'll highlight, it says:

"Responding Party has conducted a reasonable and diligent search, and no non-privileged documents exist."

So does that help you remember whether or not you searched for this information?

A Yes.

Q Okay. So did you search for this information?

A Yes.

Q Okay. And so there are no training manuals relating to compliance with the Megan's Law; is that correct?

MS. LAMAR: Misstates what the response says. It says "no non-privileged documents."

BY MR. KIM:

Q Ms. North, you can go ahead and respond.

A No non-privileged documents exist.

MR. KIM: Okay. Ms. Lamar, I'm going to ask you -- that's not even a speaking objection. You're just testifying on behalf of your client. That needs to stop.

Ray, follow up.

BY MR. KIM:

Q So, Ms. North, are you aware of privileged documents that were withheld on the basis of privilege in response to RFP 9?

A No.

Q So would it be fair to say that there are no employee training manuals relating to compliance with the Megan's Law that Vons has?

A No. I think it's implicit and part of the whole process.

Q Then those documents should be produced.

Are there any other -- are there employee training manuals?

A The one I referred to earlier, yes.
Q Is that that procedure guide that Courtney Jones relies on to adjudicate?
MS. LAMAR: Objection; misstates testimony.
THE DEPONENT: No, it's the guide that we provide to train people in case Courtney and I are not there.
BY MR. KIM:
Q Who are those people?
A They currently do not exist.
Q I'm utterly confused at this point.
A If something were to happen to Courtney and I --
MS. LAMAR: Ms. North, there's no question pending. It's just a statement.
THE DEPONENT: Thank you.
BY MR. KIM:
Q So has anyone used this procedure document before?
MS. LAMAR: Objection; calls for speculation.
THE DEPONENT: Yes.
BY MR. KIM:
Q Who has used it?
A Courtney Jones, when being trained.
Q Okay. So Courtney Jones has used this

procedure document when she was trained; correct?
A Yes.
Q Does this procedure document reference the Megan's Law?
A I don't remember.
Q Are there any other documents aside from this procedure document that Courtney Jones used when she was trained?
A The SOP document that you referred to earlier.
Q Okay. Are there any other employee training manuals relating to compliance with Megan's Law?
A No.
MR. KIM: I've scrolled down to Request for Production Number 12.
BY MR. KIM:
Q Request for Production Number 12 seeks:
"Your policies and procedures relating to conducting an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position."
Do you see that, Ms. North?
A Yes.

Q Okay. So Vons responded:
"Responding Party will produce its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories."
Do you see that?
A Yes.
Q Okay. Did you search for policies and procedures responsive to RFP Number 12?
A Yes.
Q Other than the standard operating procedures referenced here, were any other documents found?
A The training guide.
Q Is that the training guide that we just referenced that Courtney had used when she was trained?
A Yes.
Q And when was Courtney Jones hired?
A I don't remember.
Q Has she been employed with you for more than five years?
A No.
Q Has she been employed for more than two years?
A Yes.
Q Was she working for Vons -- and when I say "Vons," I'm including Safeway and Albertsons.

Was she working for Vons in 2022?
MS. LAMAR: Objection; outside the scope.
You can answer as it relates to Vons, if you know.
THE DEPONENT: I don't remember.
BY MR. KIM:
Q Was she working in January of 2023 for Vons?
A Yes.
Q So other than this training guide, are there any other documents, privileged or non-privileged, that would be responsive to Request for Production Number 12?
A No.
Q So Request for Production Number 13 seeks:
"Your employee training manuals relating to conducting an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position."
Do you see that?
A Yes.
Q Okay. Did you search for information responsive to RFP 13?
A Yes.

Q Okay. And did you find anything?
A **The two documents we referred to earlier.**
Q Is that the SOP and the -- we're going to refer to it as the procedure document --
A **Yes.**
Q -- that Courtney Jones used?
A **Yes.**
Q Is there a name for that procedure document?
A **As I said, it's -- I call it the background check program binder.**
Q How many pages is it?
A **I don't remember.**
Q Is it less than five pages?
A **No.**
Q Less than ten pages?
A **No.**
Q Less than 15 pages?
A **No.**
Q Less than 20 pages?
A **No.**
Q Is it less than 30 pages?
A **I don't remember.**
Q So you'd estimate maybe 20 to 40 pages?
MS. LAMAR: Asked and answered.
THE DEPONENT: Yes.

BY MR. KIM:
Q Okay. So Vons's supplemental response stated:
"Responding Party has conducted a reasonable and diligent search, and no non-privileged documents exist."
Do you see that?
A **Yes.**
Q Okay. However, there is the background check program binder that you just mentioned; is that right?
A **Which we consider privileged, yes.**
Q So other than you and Courtney, who else has used that background check program binder?
MS. LAMAR: Objection; calls for speculation.
THE DEPONENT: I don't remember all their names.
BY MR. KIM:
Q Could you tell me what their titles were?
A **I don't remember.**
Q Are there others who have used it?
A **Yes.**
Q Are they in the AEC department?
A **I don't remember.**
Q Are some of them -- are they in the HR department?
A **Yes.**

Q Are they all lawyers?
A **No.**
Q How do you know they're not all lawyers?
A **These would have been people who previously did the adjudication role but are no longer with the company.**
Q So this would be like Courtney Jones's equivalent?
A **Yes.**
Q So, Ms. North, could you describe the guidance provided in the background check program binder?
MS. LAMAR: I'm going to instruct her not to answer.
Outside the scope.
We've already said that that's a privileged document.
MR. KIM: Well, it's clearly not privileged because you have non-attorneys all over it, and it's a training manual that should have been produced.
MS. LAMAR: I'm not changing my objection. We can move on to the next question.
MR. KIM: Ray, follow up.
BY MR. KIM:
Q Ms. North, I'm going to put Exhibit 2, Bates 118 and 119 back on the screen.
So with respect to hiring for Albertsons, you

rely on this procedure document; correct?
MS. LAMAR: Objection; outside the scope.
You can answer with respect to Vons.
THE DEPONENT: We use this document for conducting background checks and responding to background checks in California for Vons.
BY MR. KIM:
Q And what do you mean by "Vons," "for Vons"? What do you mean?
MS. LAMAR: Objection; asked and answered, argumentative.
THE DEPONENT: I don't know how you'd define Vons, Inc.
BY MR. KIM:
Q Well, does Vons, Inc. include Vons stores?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: Yes.
BY MR. KIM:
Q Does it include Pavilions stores?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Do you use this document in your role as a part of hiring candidates for Pavilions?
MS. LAMAR: Objection; outside the scope.

I'm going to instruct you not to answer.
MR. KIM: Ray, follow up.
BY MR. KIM:
Q Okay. To ensure we're on the same page, when we talk about The Vons Companies, are we also including Pavilions, Ms. North?
MS. LAMAR: Objection; outside the scope, asked and answered.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Doesn't Pavilions fall under The Vons Companies?
MS. LAMAR: Objection; outside the scope, asked and answered.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Doesn't Safeway fall under The Vons Companies?
MS. LAMAR: Objection; asked and answered.
I'm going to instruct you not to answer.
MR. KIM: Ray, follow up.
BY MR. KIM:
Q So, Ms. North, when does this standard operating procedure that we're looking at, when does it come -- when is it used as a part of the hiring process?
MS. LAMAR: Objection; lacks foundation,

assumes facts.
THE DEPONENT: This would be used after a conditional offer of employment was made.
BY MR. KIM:
Q So is it after every conditional offer of employment is made the standard operating procedures regarding use and review of retail job applicants' criminal conviction histories in California is used?
A For Vons, yes.
Q So it is used whether or not the background report includes conviction history information?
A Yes.
Q So how is it used when the background report does not have conviction history information?
A Anyone who has disclosed a previous conviction will return to Courtney and I for review.
Q At that point, what do you and/or Courtney do?
A That would be Step 3.
We would look at what they put in and determine the nature and gravity of the offense, the time that has passed, the nature of the job being sought, et cetera.
Q So what is Step 2?
A Step 2 is to make sure that we are not getting anything back, and this is followed by Asurint.
They don't give us anything that's an arrest,

that's a probation before judgment, that's been statutorily eradicated. Those things simply are not returned on the background check report.
Q How do you do that?
A I don't know.
Q You don't know how you make sure that you're not getting anything back that has an arrest or probation before judgment or that has been statutorily eradicated?
A No, Asurint does that for us.
Q So Asurint does Step 2; is that right?
A Yes.
Q Okay. What's Step 1?
MR. DRURY: I have an objection.
Object to the question, and that misstates her prior testimony. That is not what she testified to.
BY MR. KIM:
Q What is Step 1?
A Step 1 is basically ensuring that we're not conducting or starting to conduct a background check until an offer has been extended.
Q So with respect to Step 3, could you describe Step 3 in further detail?
MS. LAMAR: The document speaks for itself.
THE DEPONENT: I literally would just be reading from the document.

I'm looking at what job they're applying for, what their convictions are for, how long ago the conviction were, how serious the conviction was, the nature of the conviction, and whether I feel it poses a threat to employees, customers, or vendors.
BY MR. KIM:
Q Okay. So -- oh, so you're looking actually at Step 3 here in the document?
A Yes.
Q Got it. Okay.
And then is it in this order that you follow?
A Not necessarily. It's comprehensive but not necessarily in that order.
Q So what do you mean by "not necessarily," "it's comprehensive"?
A We do all those steps. Whether we do A before B before C, not always. We might do C first.
Q Will you do Step 3 before Step 2?
A Perhaps.
Q So you'll do the conditional offer of employment --
A Oh, I'm sorry. No, I'm sorry. I was looking at A, B, C. I apologize.
No, these steps always go in the order that are there.

Q So it will go Step 1, 2, 3, 4, 5? In that order?

A I believe so. I would have to read the document comprehensively. You're scrolling kind of fast.

Q Okay. Do you want me to start -- where should I -- I'll go to page 1 first.

A So yes, the conditional offer of employment would be the first step, and then the receipt of the background check request to Asurint.

And then following through on it would be Step 2, which would include making sure all that information is redacted.

And then Step 3 would be us actually doing the preliminary, first run adjudication.

Yes, that's correct.

Q And here I scrolled down to Step 4 and 5.

A And this is going through the pre-adverse action process, that's correct. That would happen after the adjudication.

And Step 5, the adverse action, would be after that.

Yes, those are in order.

Q So you generally follow these five steps in this order; is that right?

MS. LAMAR: Asked and answered.

THE DEPONENT: Yes.

BY MR. KIM:

Q And then with respect to Step 2, I believe you said information is redacted?

A That's my understanding. That's completed by Asurint.

Q What do you mean by "information is redacted"?

A My understanding is that if something comes up that's an arrest not followed by a conviction, for example, that that gets removed from the report that's sent on to us. That's part of their quality assurance process.

Q Got it.

So Asurint will remove that information before you get the background report; is that right?

A Yes.

Q So with respect to Step 3, what information is considered?

MS. LAMAR: Asked and answered.

THE DEPONENT: What's listed there: the nature and gravity, the time that's passed, nature of the job being sought.

BY MR. KIM:

Q Does Vons, as a part of its individualized assessment, interview candidates?

A No. We may interview them if we go through a dispute process, but not during the initial review.

Q What do you mean by "dispute process"?

A If someone disagrees once they get the pre-adverse action, they have a time period to respond on that letter, either to Asurint or an FCRA dispute or to criminal.checks or an 800 number for a job-related dispute.

Q So has Vons interviewed as a part of the individualized assessment?

A In Step 3, no.

Q Is there another individualized assessment that's not in Step 3?

A Yes, the dispute process.

Q Okay. And where is the dispute process? What step?

A That would, if followed appropriately, be between Steps 4 and 5, and that's -- Step 4(d) is the dispute process.

Q So 4(d), it states:

"If, after undertaking the individualized assessment described above, a preliminary decision is made that an applicant's conviction history disqualifies the applicant from

employment, written notification shall be provided to the applicant of this preliminary decision (the Pre-Adverse Action Letter), which shall include the following information."

And D states:

"Notice that the applicant's response to the preliminary decision may include submission of evidence challenging the accuracy of the conviction history report that is the basis for rescinding the job offer, evidence of rehabilitation and evidence of mitigating circumstances, or both."

And it cites to the Fair Chance Act.

So 4(d) describes what needs to be included in the pre-adverse action letter; isn't that right?

A Yes, and that also is a good description of the process. The applicant then submits that information to us, and we review it.

Q Where in here does it say that it's reviewed?

A I don't see it.

Q Does it say anywhere in here that the candidate may be interviewed?

MS. LAMAR: The document speaks for itself,

asked and answered.
THE DEPONENT: I don't see it.
BY MR. KIM:
Q Are you aware of any instance when Vons interviewed a candidate as a part of this process?
A Yes.
Q Who was that?
MS. LAMAR: I'm going to instruct you not to answer.
MR. KIM: On what basis?
MS. LAMAR: For Topic 1. We objected to that topic in here, providing information about other candidates.
Also, at the IDC with the judge, we agreed that you wouldn't be getting information about the other candidates.
Just their privacy. We're not giving the name of somebody who's been convicted of a crime.
BY MR. KIM:
Q I don't need a name, but could you give an example?
MS. LAMAR: You asked for a name, so that's what I'm objecting to.
BY MR. KIM:
Q Could you provide an example based on a

characteristic, an ID number, the time the applicant applied?
A It's difficult to answer the question only because there's so many of them. Anyone who does not pass the background check can open a dispute.
Q But I'm asking specifically an example of somebody that was interviewed.
And by "interview," I mean either a phone call or a Zoom videoconference or an in-person interview to discuss the conviction and the candidate's fitness for the specific position.
A I don't know how to respond. It happens all the time.
Q Who conducts those interviews?
A Myself and Courtney Jones.
Q When you say "all of the time," what do you mean by "all of the time"?
A I don't have a track on this, so I would be entirely guessing.
Q Well, I'll represent to you that Vons responded that there are approximately 717 persons in California, through February of 2025, with conviction histories who applied for employment, went through the background check process, and were denied employment.
A Yes.

Q So that's from January 2021 to February of 2025.
How many of those 717 persons were interviewed?
MS. LAMAR: Objection; calls for speculation.
THE DEPONENT: I don't remember.
BY MR. KIM:
Q But you said it happens all the time?
A Yes.
Q So is that all 717?
MS. LAMAR: Objection; asked and answered, calls for speculation.
THE DEPONENT: No.
BY MR. KIM:
Q Would it be 50 percent?
MS. LAMAR: Objection; asked and answered, calls for speculation.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Would it be 90 percent?
MS. LAMAR: Objection; calls for speculation, asked and answered.
THE DEPONENT: I don't know. I would really be guessing.
BY MR. KIM:
Q Would it be 10 percent?

MS. LAMAR: Objection; calls for speculation, asked and answered.
THE DEPONENT: I don't know.
BY MR. KIM:
Q How long do these interviews normally last?
MS. LAMAR: Calls for speculation.
THE DEPONENT: It varies tremendously.
BY MR. KIM:
Q On what?
A Whether I can get ahold of the person, whether they call me back, what their disclosure was on their application, what their criminal conviction was, what job they're applying to.
All of the factors we reviewed previously.
Q Where are the records of these interviews?
MS. LAMAR: Objection; assumes facts.
THE DEPONENT: We make a note in the background check report saying we received a voicemail on such and such a date or we have an e-mail on such and such a date.
BY MR. KIM:
Q So that information is in the background check report?
MS. LAMAR: Objection; misstates testimony.
THE DEPONENT: It's included in the remarks that had been stored with the background check report.

BY MR. KIM:
Q Were those remarks produced for Mr. Carrillo's file?
A I don't know.
Q So those remarks will include notes from the interview?
A No.
Q So where are records of these interviews stored? Okay. Strike that.
Are records of these interviews stored?
A Yes.
Q Where are they stored?
A They're stored in the e-mail criminal.checks@albertsons.com.
Q Could you explain that, that it's stored in the e-mail?
A I'm not sure I understand the question.
Q Yeah, I'm not sure if I understand your response. That's my point.
So you said the records of the interview are stored in the e-mail criminal.checks@albertsons.com?
A Yes.
Q So how are records of the interviews stored in the e-mails?
A We save all of the responses from the

applicants to our questions and put them in the dispute box with their name.
Q So it sounds like -- so this interview, that is not like an oral interview, then; is that right?
A It can be. Most often it's by e-mail.
Q Was Mr. Carrillo interviewed?
A No.
Q Why not?
A He provided us with a lot of mitigating information, which is what we would have asked for.
Q So because he proactively provided that information, he was not given an interview?
MS. LAMAR: Objection; misstates the testimony, also assumes facts.
BY MR. KIM:
Q What information did he provide that warranted not giving him an interview?
MS. LAMAR: Objection; assumes facts.
THE DEPONENT: I don't remember it all. It's in the documents that are there.
It's -- he basically provided some certificates from some completions and some letters of recommendation. He also provided some statements that were taken by Asurint and at criminal.checks relating to the nature of his conviction.

MS. LAMAR: We've been going about an hour. We need to take a break.
MR. KIM: Okay. How long should we take?
MS. LAMAR: Ten minutes is fine.
Let's go off the record.
(A recess was held.)
MR. KIM: Back on the record.
BY MR. KIM:
Q Ms. North, I hope you had a good break, a good lunch.
We are going back to Exhibit 2, Bates page 118 to 119, the standard operating procedures. So I'm just going to pull that up here and share that on the screen.
Could you see that?
A Yes.
Q Okay. So just to make sure we're clear.
So you stated that these were in effect before January of 2023; is that right?
A Yes.
Q Okay. And was it this exact version?
A I don't remember.
Q Okay. Has this standard operating procedures been modified since 2022?
A I don't remember.
Q And how do you know that this was in effect in

January of 2023?
MS. LAMAR: Asked and answered.
THE DEPONENT: I read through it, and it's what we do.
BY MR. KIM:
Q But just because you read through it, that doesn't -- how does that tell you that it was in effect in January of 2023?
MS. LAMAR: Asked and answered, argumentative.
THE DEPONENT: I worked with the attorneys to put it together.
BY MR. KIM:
Q Could you give us an estimated time of when that was?
MS. LAMAR: Asked and answered.
THE DEPONENT: In some form or another, this has been around since the beginning of our background check program.
BY MR. KIM:
Q And when was that?
A 2008.
Q So these standard operating procedures, which include provisions from the Fair Chance Act, you're saying were around since 2008?
MS. LAMAR: Objection; misstates testimony.

THE DEPONENT: I don't know. There have been many changes to this, and I don't remember the law changes that have happened during that time.
BY MR. KIM:
Q Do you know when the provisions in Number 3 and 4 were added?
MS. LAMAR: Objection; asked and answered.
BY MR. KIM:
Q In Steps 3 and 4?
MS. LAMAR: Same objection.
THE DEPONENT: I don't.
BY MR. KIM:
Q Do you know if those steps were there in January of 2023?
A I don't remember. I would say yes, if I guessed.
Q You said you don't remember, and then you said yes?
A If I guessed, it would be yes. But I don't remember is the proper answer.
Q Who at Vons would know?
MS. LAMAR: Calls for speculation.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Is it possible Courtney Jones would know?

MS. LAMAR: Calls for speculation.
THE DEPONENT: No.
BY MR. KIM:
Q Why not?
A She would only know what has happened since she's been here.
Q And when did she join?
A As I said before, I don't remember.
Q But didn't she join before January of 2023?
MS. LAMAR: Asked and answered.
THE DEPONENT: Yes.
BY MR. KIM:
Q So because she was here in January of 2023 with Vons, she might know; isn't that right?
MS. LAMAR: Calls for speculation.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Is Courtney Jones still employed by Vons?
A Yes.
Q So you had said that there have been many changes to this procedure document.
Does Vons have the prior versions of this procedure document?
A I don't know.
Q Who would know?

MS. LAMAR: Calls for speculation.
THE DEPONENT: Perhaps one of the attorneys.
BY MR. KIM:
Q Where is this document stored?
A I don't know.
Q Where did you obtain this document from?
A From our confidential shared drive.
Q So it's stored in Vons's confidential shared drive?
MS. LAMAR: Asked and answered.
THE DEPONENT: I have a copy of it there. I don't know where the official document is stored.
BY MR. KIM:
Q And who has access to the shared drive?
A Myself, Courtney Jones.
Q Anyone else?
A No.
Q So are you and Courtney Jones the two Vons employees responsible for conducting individualized assessments for the Fair Chance Act?
A Yes.
Q Anyone else?
A No.
Q Did anyone else other than you work on gathering documents in response to Plaintiff's request

for production?
A I don't know.
Q Did you ask anyone else to gather documents for you?
A No.
Q Are you aware of anyone else who was searching for documents in response to the request for production?
A No.
Q Okay. I'm going to share with you Exhibit 4.
(Exhibit 4 was marked for identification.)
BY MR. KIM:
Q This is Exhibit 4, and it includes the pre-adverse notice and post-adverse action notices. And right now we are looking at Bates page PLAINTIFF 39 to Bates page 40.
Ms. North, have you seen this document before?
MR. DRURY: I'll just object to the form and the characterization of the document, which speaks for itself and misstates it.
BY MR. KIM:
Q So we're looking at a document. It is an e-mail. It says:
"From: compliance@asurint.com.
"Date: Tuesday, January 24, 2023, at 7:04 a.m.

"Subject: FCRA 613 Notification Roberto Sandoval.

"To:"

And then Mr. Sandoval's e-mail address.

And then there's an Asurint logo here at the top, and it's -- bottom right is Bates page 39.

Ms. North, have you seen this document before, this e-mail?

A No.

Q This is the first time you've seen this e-mail?

A Yes.

Q Okay. Well, I'll represent to you that this is an e-mail that Mr. Sandoval received on January 24, 2023, from compliance@asurint.com, stating that it is notifying Mr. Carrillo that Asurint, a consumer reporting agency, is reporting criminal or other public record information that may be adverse to Mr. Carrillo.

Do you see that?

A Yes.

Q Okay. And then it says -- I've highlighted it here. It's "Vons - San Diego Number 2784."

Is that a store number?

A Yes.

Q Okay. And then what is 515 West Washington Street care of Albertsons San Diego, California?

What does that mean?

MS. LAMAR: Objection. It's outside the scope of the deposition topics.

You can answer.

THE DEPONENT: I don't know. I assume it's the address of the store.

BY MR. KIM:

Q Okay. And then it states:

"The above listed employer/agency has certified that it is using such public record information to determine your eligibility for employment, promotion, reassignment, and/or retention or volunteer placement."

Do you see that?

A Yes.

Q Okay. So does Vons contract with Asurint to issue these types of pre-adverse action notices to consumers?

MR. DRURY: I'll just object to that because it mischaracterizes the document.

This is not a pre-adverse action notice. You're not showing her the document that I believe is further in the production, which is a 613 notice sent by Asurint. It is not a pre-adverse action notice --

(Simultaneous colloquy.)

MR. KIM: Your objection now is a speaking objection. You don't need to explain --

(Simultaneous colloquy.)

DEPOSITION REPORTER: One at a time, please.

MR. KIM: I ask that --

(Simultaneous colloquy.)

DEPOSITION REPORTER: I'm not getting any of that.

MR. DRURY: You are misrepresenting the record. It is not a pre-adverse action notice.

BY MR. KIM:

Q Ms. North, does Vons contract with Asurint to provide these types of e-mail notices?

MS. LAMAR: Objection; outside the scope of the notice topics.

THE DEPONENT: I don't know. The FCRA 613 document, I believe, is something required of the third party. I don't know.

BY MR. KIM:

Q Should Asurint be sending these types of e-mail notices to candidates without Vons's authority?

MR. DRURY: Object to form.

MS. LAMAR: Objection; outside the scope, calls for speculation.

THE DEPONENT: My understanding is that this is required by law, so yes.

BY MR. KIM:

Q Based on this notice -- based on the first sentence in the e-mail:

"The purpose of this letter is to notify you that Asurint, a consumer reporting agency, is reporting criminal or other public information that may be adverse to you."

Based on this statement, do you believe that Asurint had generated a background report for Vons about Mr. Carrillo?

MS. LAMAR: Objection; outside the scope, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: No. My understanding is that they're saying that they're going to.

BY MR. KIM:

Q What is the basis of that understanding based on the sentence that I just read?

MS. LAMAR: So, Ms. North, for all of this line of questioning, I'm going to be objecting that it's outside the scope and, likely, that it calls for speculation.

Try and speak slow enough so that the court reporter can get everything written down.

So just try and pause so I can get the objection in, and then after I'm done, pause a little longer just in case Mr. Drury wants to get objections in as well.

MR. DRURY: And I'll join in those objections. Thank you.

THE DEPONENT: Thank you.

I would be speculating on all of it. I'm not familiar with this notification. I don't know exactly when it goes out.

BY MR. KIM:

Q Would you agree with me that it says that Asurint, quote, is reporting criminal or other public information that may be adverse about you?

Would you agree that the e-mail states that?

MR. DRURY: Objection; the document speaks for itself.

The witness doesn't have to be here today to repeat what's in the document that she's already testified she hasn't seen before.

MS. LAMAR: I'm joining. It's also outside the scope of the notice topics and calls for speculation.

THE DEPONENT: That's what it states, correct,

yes.

BY MR. KIM:

Q Do you have any reason to believe that that statement is not true?

MS. LAMAR: Objection; outside the scope of the notice topics and calls for speculation.

MR. DRURY: Join in the objection.

THE DEPONENT: No.

BY MR. KIM:

Q Do you have any reason to believe that Vons sent this e-mail?

MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: No. It's clearly from compliance@asurint.com.

BY MR. KIM:

Q Does Vons have the ability to send e-mails from this e-mail address, compliance@asurint.com?

MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: No.

BY MR. KIM:

Q Do you know whether all candidates who have

criminal information in their background report receive this same e-mail?

MS. LAMAR: Objection; outside the scope, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: I don't know.

BY MR. KIM:

Q Does Vons maintain a record of these e-mail notices?

MS. LAMAR: Objection; outside the scope, calls for speculation.

THE DEPONENT: No.

BY MR. KIM:

Q Does Vons have records of who receives these e-mail notices?

MS. LAMAR: Objection; outside the scope, calls for speculation.

MR. DRURY: Join. Also vague.

MS. LAMAR: Join.

THE DEPONENT: I can go into a background check report in the Asurint site and see if an FCRA 613 has been sent.

BY MR. KIM:

Q And so is that like the Asurint web portal that you had mentioned earlier?

MS. LAMAR: Objection; outside the scope, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: Yes.

BY MR. KIM:

Q So what is a 613 notice?

MS. LAMAR: Objection; outside the scope. I'm also objecting to the extent it calls for a legal conclusion.

MR. DRURY: Join. Also asked and answered.

MS. LAMAR: Join.

THE DEPONENT: My understanding is exactly what it says here, and it's to let someone know that there is something coming up on their background check that could potentially cause an adverse action.

BY MR. KIM:

Q So, for example, are you able to go into the Asurint site and identify how many candidates received this 613 notice in 2024?

MS. LAMAR: Objection; outside the scope, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: No.

BY MR. KIM:

Q You are able to identify who received a

613 notice; isn't that right?
MS. LAMAR: Objection; outside the scope, vague and ambiguous, lacks foundation.
MR. DRURY: Join.
THE DEPONENT: I would have to open each individual background check report and then open a subsequent tab with all the attachments and page through the list to see if the FCRA 613 was there.
BY MR. KIM:
Q Do you know if a query could be conducted to identify every candidate who had received a 613 notice in 2024?
MS. LAMAR: Objection; outside the scope, calls for speculation.
MR. DRURY: Join.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Have you ever tried?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: No.
BY MR. KIM:
Q Do you know if anyone has ever tried?
MS. LAMAR: Objection; outside the scope, calls for speculation.
THE DEPONENT: No.

BY MR. KIM:
Q Okay. I'm going to scroll down. We're still in Exhibit 4. We are on Bates page 41. This is an e-mail, as you can see from the top, from compliance@asurint.com, dated February 28, 2023, at 2:54 p.m., Subject: Pre-adverse Notification, to Plaintiff's e-mail address.
Have you seen this document before --
MS. LAMAR: Objection --
BY MR. KIM:
Q -- Ms. North?
MS. LAMAR: So, one, I'm objecting that it's outside the scope of the notice topics.
Also, you previously identified Exhibit 4 as PLAINTIFF 39 through 40.
So are you marking this as Exhibit 5, or are you now adding pages to what you previously marked as Exhibit 4?
MR. KIM: I believe I had said Exhibit 4 are the pre-adverse action and post-adverse action notices.
And if I could clarify for the record, Exhibit 4 would be communications including pre-adverse action and post-adverse action notices from Asurint and communications between Plaintiff and Asurint, Plaintiff and Vons. All in Exhibit 4.

MS. LAMAR: Identify the Bates number, please, and then give my client time to look at what you're saying is Exhibit 4, because you identified 39 through 40 initially.
MR. KIM: Okay. So now we are looking at Bates page 41 -- that's here at the bottom -- and Bates page 42 to 43. And I'll just go back to Bates page 41.
BY MR. KIM:
Q Ms. North, do you see this here, this e-mail?
MS. LAMAR: I need to get clarification on what is Exhibit 4.
Are you claiming that Exhibit 4 are Plaintiff's Bates stamp 39 through 43?
MR. KIM: No, I'm saying it's all of it: the pre-adverse action, the post-adverse action, and communications.
MS. LAMAR: What are the Bates numbers?
It's important to have because this is a remote deposition. If we were in person, you would be giving us the exhibit for her to look at.
So I want to make sure, one, that I know what she's testifying to; two, that she knows what she's testifying to; and three, we have a clear record of what constitutes Exhibit 4.
Your description of it absent the Bates numbers

is not appropriate.
MR. KIM: I thought I just gave -- this is all a part of Exhibit 4.
But how about this? For purposes of clarity, why don't we just make this Exhibit 5 --
DEPOSITION REPORTER: Okay. So --
MR. KIM: -- Bates Numbers 41 to 43, Plaintiff Bates Numbers 41 to 43.
(Exhibit 5 was marked for identification.)
MS. LAMAR: Okay. And so for clarification, Exhibit 4 is Plaintiff's Bates Numbers 39 through 40?
MR. KIM: Yes.
MS. LAMAR: Okay. Ms. North, take a look at Exhibit 5, Bates Numbers 41 through 43 before you answer any questions.
THE DEPONENT: Scroll down. Scroll down. Scroll down.
Is this the end of it?
BY MR. KIM:
Q Yes.
A Okay. Thank you.
Q So, Ms. North, have you seen this e-mail before, Subject: Pre-Adverse Action Notification?
MS. LAMAR: Objection; outside the scope of the notice topics.

MR. DRURY: Join.
THE DEPONENT: I have not seen this as an e-mail. I saw this as an attachment to his background check.
BY MR. KIM:
Q I'm sorry. You saw that as an attachment to?
A His background check.
Q Background check. Okay.
But when you saw it as an attachment, you did not see it in an e-mail form; is that right?
MS. LAMAR: Objection; outside the scope of the notice topics, asked and answered.
MR. DRURY: Join.
THE DEPONENT: Yes.
BY MR. KIM:
Q So how do candidates normally receive pre-adverse action notices -- I'm sorry. Strike that.
Other than via e-mail, do candidates receive pre-adverse action notices in some other way?
MS. LAMAR: Objection; outside the scope of the notice topics, also vague and ambiguous.
MR. DRURY: Join in the objection.
THE DEPONENT: If they cannot be reached by e-mail, then Asurint will send the physical snail mail copy of the pre-adverse action and adverse action to the

candidate.
BY MR. KIM:
Q Via mail?
MS. LAMAR: Objection; outside the scope of the notice topics, asked and answered.
MR. DRURY: Join.
THE DEPONENT: Yes.
BY MR. KIM:
Q Okay. Thank you.
And this e-mail came from Asurint; is that correct?
MS. LAMAR: Objection; outside the scope of the notice topics, the document speaks for itself, calls for speculation.
MR. DRURY: Join in the objection.
THE DEPONENT: Yes.
BY MR. KIM:
Q And Vons does not use this e-mail address, compliance@asurint.com, does it?
MS. LAMAR: Objection; outside the scope of the notice topics, asked and answered.
MR. DRURY: Join.
THE DEPONENT: No.
BY MR. KIM:
Q And so was this e-mail sent by Asurint

authorized by Vons?
MS. LAMAR: Objection; outside the scope of the notice topics.
MR. DRURY: Join.
THE DEPONENT: Yes.
BY MR. KIM:
Q Do you have any reason to believe that this is not an e-mail that Asurint had sent to Mr. Carrillo?
MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.
MR. DRURY: Also objection; asked and answered multiple times.
MS. LAMAR: Join.
THE DEPONENT: No.
BY MR. KIM:
Q So I'm going to just read this first paragraph -- no, strike that.
Ms. North, if you can just take a minute to read this first paragraph.
A (As read):
"In evaluating your conditional offer of employment, transfer or promotion with Vons/Pavilions, we received the enclosed screening report that we procured with your authorization from Asurint. This

notification is provided because an adverse employment decision (for example, the withdrawal of a conditional offer of employment, or transfer or promotion) may be based, in whole or in part, on this screening report or on information regarding past criminal convictions that you identified during the application process. Please carefully review this screening report. We have identified the following convictions on your report to be job-related."
Q And what does it say there?
MS. LAMAR: Objection; outside the scope of the notice topics, the document speaks for it itself.
MR. DRURY: Join.
THE DEPONENT: "Sex Offender."
BY MR. KIM:
Q So this notice is stating that "an adverse employment decision may be based, in whole or in part," based on this past criminal conviction, here being sex offender; is that right?
MS. LAMAR: Objection; outside the scope of the notice topics, misstates the document, and the document speaks for itself.

MR. DRURY: Join in the objections.
THE DEPONENT: No. It clearly says "criminal convictions that you identified during the application process" as well.
BY MR. KIM:
Q Okay. So it states:
"This notification is provided because an adverse employment decision" -- and I'm skipping what's in parens -- "may be based, in whole or in part, on this screening report or on information regarding past criminal convictions that you identified during the application process."
MS. LAMAR: Objection; outside the scope of the notice topics, the document speaks for itself.
MR. DRURY: Join.
BY MR. KIM:
Q It continues:
"We have identified the following convictions on your report to be job-related: Sex Offender."
So that sex offender is the conviction that's on the report; is that right?
MS. LAMAR: Objection; outside the scope of the

notice topics, the document speaks for itself, calls for --
MR. DRURY: Join in the objection.
I apologize, Karimah.
MS. LAMAR: I'm just adding calls for speculation.
MR. DRURY: And I join in the objections, and also to the mischaracterization of the document.
MS. LAMAR: Join.
THE DEPONENT: Mr. Kim, can you restate the question?
MR. KIM: Madam Court Reporter, could you just repeat the question for me, please?
(Record read.)
MS. LAMAR: Same objections. It's outside the scope of the notice topics, the document speaks for itself, calls for speculation.
MR. DRURY: Join.
THE DEPONENT: Yes.
BY MR. KIM:
Q Do you have any reason to believe this is not an actual e-mail notice sent to the plaintiff?
MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation, the document speaks for itself.

MR. DRURY: Join. Also asked and answered.
MS. LAMAR: Join.
THE DEPONENT: No.
MR. KIM: So I just have to put this out there.
There have been so many objections that it's outside the scope of the deposition notice, but all of this is within the scope of the deposition notice -- right? -- compliance with the Megan's Law, compliance with the Fair Chance Act.
I don't know how this could be outside. This has to do with what Vons and Asurint does with respect not only to Plaintiff but all the other candidates.
So at this --
(Simultaneous colloquy.)
MR. KIM: This is an interruption, but I just want to state that for the record.
MS. LAMAR: It's not an interruption. You put before her a document that she says she's unfamiliar with and that she's never seen, and then you start to ask her questions interpreting it.
If you want to ask her anything about the Megan's Law outside of this document or the Fair Chance Act outside of this document, you won't receive an objection, but I don't think it's appropriate to ask her to interpret a document that she's never seen.

And again, I'm allowing --
(Simultaneous colloquy.)
MS. LAMAR: And I'm allowing her to answer. So if I'm wrong, then you have an answer. She's not not answering. I'm not instructing her not to answer.
MR. KIM: She stated that she --
(Simultaneous colloquy.)
MR. KIM: -- this document in Asurint's portal.
MR. DRURY: I'll just further object to the commentary by counsel.
BY MR. KIM:
Q So, Ms. North, does Vons maintain records of which candidates receive these pre-adverse action notices?
MS. LAMAR: What pre-adverse action notices are you referring to?
MR. KIM: These types of pre-adverse action notices.
MS. LAMAR: I'll object that it's outside the scope and calls for speculation, and also vague and ambiguous as to what "these" is referring to.
MR. DRURY: Join.
MR. KIM: Okay. Let me clarify.
BY MR. KIM:
Q Does Vons maintain records of candidates who

have received pre-adverse action notices that state "We have identified the following convictions on your report to be job-related: Sex offender"?

MS. LAMAR: Objection; outside the scope the notice topics, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: No.

BY MR. KIM:

Q Do you know if Asurint maintains records of which candidates receive pre-adverse action notices such as this one stating "We have identified the following convictions on your report to be job-related: Sex offender"?

MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: I don't know.

BY MR. KIM:

Q Does Vons have access to pre-adverse action notices through Asurint's portal?

A Yes.

Q Have you checked Asurint's portal for any pre-adverse action notices relating to Mr. Carrillo?

A Yes.

Q What did you find?

A A document similar to what you're showing me here without the header.

Q So do you have any reason to believe that the pre-adverse action notices maintained in the Asurint's portal are not true?

MS. LAMAR: Objection; outside the scope of the notice topics, vague and ambiguous, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: No.

BY MR. KIM:

Q Do you have any basis to believe that they are not accurate?

MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.

MR. DRURY: Objection; also vague and ambiguous.

MS. LAMAR: Join.

THE DEPONENT: No.

BY MR. KIM:

Q And forgive me. I may have asked this already. Is there a name for Asurint's portal?

MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: I think I answered this. It's just the www.asurint.com, and then we have to log in using that secured password.

MR. KIM: Okay. I'm going to move now to Exhibit 6. This is going to be -- this will be Exhibit 6, Bates Plaintiff 49, here at the bottom, to Bates 52.

(Exhibit 6 was marked for identification.)

BY MR. KIM:

Q And then if you can see here at the top left:

"Subject: Adverse Action Notification.

"From: compliance@asurint.com.

"Date: Tuesday, March 7, 2023, at 9:07 p.m."

And then it's addressed to Mr. Carrillo.

Do you see that, Ms. North?

A Yes.

Q Okay. I'm just going to scroll down. If you can just take a moment to look at the substance of it.

A Is there more at the bottom?

Q Yes. I'll just scroll down.

A Thank you.

Q So this -- would it be fair to call this the post-adverse action notice?

MS. LAMAR: Objection; outside the scope of the

notice topics, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: We call it the adverse action notice.

BY MR. KIM:

Q Adverse action notice. Okay.

So was this adverse action notice sent -- was it authorized by Vons to be sent to Mr. Carrillo?

A Yes.

Q I'm sorry. I think you cut out there for a second.

A Yes.

Q Yes. Okay.

So although the e-mail here, you'll notice at the top, says Tuesday, March 7, 2023, the body states March 8, 2023.

Do you have any idea why there's a discrepancy in the date?

MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: I do not.

BY MR. KIM:

Q Okay. So here it says:

"Dear Applicant,

"We are writing to inform you that your conditional offer of employment, transfer or promotion with Vons/Pavilions has been withdrawn.

"This decision was influenced in whole or in part by a pre-employment screening report prepared by Asurint. Please note that Asurint did not make this employment decision on behalf of our company. This decision was made pursuant to Vons/Pavilions hiring policies.

"We have identified the following convictions on your report to be job-related: Sex Offender."

So based on this adverse action notice, what is this e-mail stating was the basis for withdrawing Mr. Carrillo's conditional offer of employment?

MS. LAMAR: Objection to the extent this says that it's an e-mail, misstates the document.

MR. DRURY: Join.

THE DEPONENT: That we made a decision in whole or in part on the pre-employment screening report.

BY MR. KIM:

Q And what information in the pre-employment screening report did Vons/Pavilions rely on in

withdrawing the offer?

A His previous conviction disclosure and his conviction as a sex offender.

Q Does this letter mention a previous conviction disclosure?

MS. LAMAR: The document speaks for itself.

THE DEPONENT: No. It's covered in the pre-adverse, and it's included in the background report.

BY MR. KIM:

Q So would you agree with me that this adverse action notice only states that the decision to withdraw the conditional offer of employment was based on the sex offender information contained in the background report?

MS. LAMAR: Objection; misstates the document, asked and answered, argumentative.

MR. DRURY: Join in the objections.

THE DEPONENT: No.

MR. KIM: I'm sorry. Madam Court Reporter, can you repeat my question and the response?

(Record read.)

BY MR. KIM:

Q So why would you say no, Ms. North?

MS. LAMAR: Objection; the document speaks for itself, misstates what the document says, and asked and answered, argumentative.

MR. DRURY: Join in all.

THE DEPONENT: Because it says in whole or in part on the screening report and then identifies what was on the screening report.

BY MR. KIM:

Q And what was on the screening report?

A Sex offender.

Q So do you have any reason to believe that this is not an accurate notice that Asurint had sent to Plaintiff?

MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.

MR. DRURY: Join. Also argumentative.

MS. LAMAR: Join.

MR. DRURY: Asked and answered.

MS. LAMAR: Join.

THE DEPONENT: No.

BY MR. KIM:

Q Do you have any reason to believe that this is not a complete copy of the adverse action notice that was sent to Plaintiff?

MS. LAMAR: Objection; outside the scope, misstates the document, lacks foundation.

MR. DRURY: Join.

THE DEPONENT: I believe that there are

attachments to this. I think the report gets attached, so I don't think this is complete.

BY MR. KIM:

Q I'm sorry. You said what gets attached?

A I believe a copy of the consumer report. I don't -- there's other things that get attached to this when it's sent to the applicant, but I haven't seen any of that here.

Q Okay. Well, here at the bottom, it says:

"This secure login will direct you to a site where you can download, view, or print, one, a copy of the report we obtained from Asurint, two, a summary of your rights under the Fair Credit Reporting Act."

Do you see that?

A I do.

Q Okay. So would you agree that Asurint made it available, the report and the summary of rights under the FCRA, but --

MS. LAMAR: Objection --

I'm sorry. Are you done, Mr. Kim?

BY MR. KIM:

Q -- but it was not provided, actually, in the e-mail?

MR. DRURY: Objection; vague and ambiguous.
I'm sorry. Go ahead.
MS. LAMAR: Objection; outside the scope of the notice topics, vague and ambiguous, calls for a legal conclusion, and calls for speculation.
MR. DRURY: Join in those objections.
I'll also note we're looking at the adverse action notice right now.
BY MR. KIM:
Q So I don't think I got a response.
A Yes, you're correct. The attachments are not on here, the pre-adverse.
And on here they have the opportunity to go online, use that and to see that information.
Q Okay. Does Vons maintain records of post-adverse action notices such as this one that state "We have identified the following convictions on your report to be job-related: Sex offender"?
MS. LAMAR: Objection; lacks foundation.
MR. DRURY: Join.
THE DEPONENT: No.
BY MR. KIM:
Q Is this information available to Vons through the Asurint web portal?
MS. LAMAR: What is the "this" that you're

referring to?
BY MR. KIM:
Q Is this post-adverse action notice available to Vons through Asurint's web portal?
A Yes.
Q Did you search for an adverse action notice relating to Mr. Carrillo on Asurint's web portal?
A Yes.
Q And did you find one?
A Yes.
Q Was the substance of the notice identical to this one?
MS. LAMAR: Objection; calls for speculation, vague and ambiguous.
THE DEPONENT: Again --
MR. DRURY: Join.
THE DEPONENT: -- the substance was the same. The header is missing.
My apologies, Mr. Drury.
BY MR. KIM:
Q Do you have any reason to believe that the adverse action notices contained in Asurint's portal are not true?
MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.

MR. DRURY: Join. Also vague, ambiguous.
THE DEPONENT: No.
BY MR. KIM:
Q Do you have any reason to believe that the adverse action notices stored in Asurint's portal are not accurate?
MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.
MR. DRURY: Join.
THE DEPONENT: No.
BY MR. KIM:
Q I'm scrolling up here. So this is -- well, it was an e-mail that was printed; so I know the formatting is a little screwy. But there's the header information for the e-mail, and then we see this big Albertsons logo here.
Do you see the Albertsons logo, Ms. North?
A Yes.
Q Okay. Do you know why there's an Albertsons logo on this e-mail?
MS. LAMAR: Objection; outside the scope of the notice topics, misstates this document as an e-mail, and calls for speculation.
THE DEPONENT: I don't know.
///

BY MR. KIM:
Q And just for the record, do you have any reason to believe that this was not an e-mail that was sent by Asurint to Mr. Carrillo?
MS. LAMAR: Objection; asked and answered, outside the scope of the notice topics, calls for speculation.
MR. DRURY: Join. Asked and answered several times now.
THE DEPONENT: No.
DEPOSITION OFFICER: Quick restroom break, Mr. Kim?
MR. KIM: Yes. You want to take a break right now?
DEPOSITION REPORTER: Yes, please.
(A recess was held.)
MR. KIM: All right. Back on the record.
BY MR. KIM:
Q Ms. North, I'm going to put on the screen -- this is a document, an Excel spreadsheet that was produced by Vons in response to Plaintiff's request for production. This document was produced on October 10th.
Have you seen this document before?
A Yes.
Q Okay. Are you able to tell or describe what

this document represents?
A Yes.
Q What is that?
A So each period, fiscal period, we log all of our adjudications. So anybody that was not cleared is put onto a report.
We go through and keep track of all of it to make sure that we're being consistent and to keep track of what the candidate fail rates were like in various groups.
Q So -- okay. So as you can tell, there's been a lot of information that was redacted.
All right. Let's start with this, then, Column G.
Do you see that here?
A Yes.
Q It says "Order Score."
What does "Order Score" stand for?
A If you can show me in the filter all the entries in that column.
Q Disclosure and Fail?
A Yeah. So what that's showing is whether the person was failed because of a conviction that was reported on their record or whether they were failed because of something that's disclosed on there at the

time of their offer.
Q So then what does -- so does Fail mean that they failed because of a conviction reported on their record?
A Yes.
Q And then does Disclosure mean that they failed because of information they disclosed?
A Yes, previous conviction information that they disclosed.
Q And then I'm in the 2024 California Vons All Divisions.
Do you see that here at the bottom?
A Yes.
Q Okay. So does this reflect all of the fails for The Vons Companies?
A I don't know. It's all of the fails with the Vons banner.
Q Okay. By "Vons banner," are you referring just to the stores called Vons?
A Yes.
Q Okay. So then this would not include Pavilions; is that right?
A Yes.
Q And it would not include Albertsons; is that right?

A Yes.
Q So here for Vons only in Column G -- well, not in Column G. But in Vons only for 2024, we have -- in California, we have 115 rows.
Do you see that?
A Yes.
Q So if we included Pavilions, would it be reasonable to assume that it would be more than just --
(Simultaneous colloquy.)
BY MR. KIM:
Q -- 115?
MS. LAMAR: Are you done, Mr. Kim?
MR. KIM: Now I am, yes.
MS. LAMAR: I apologize. I thought you were done.
Objection; outside the scope of the notice topics, calls for speculation.
THE DEPONENT: Yes.
BY MR. KIM:
Q And would it be reasonable to assume that if Albertsons stores were also included, the number would be greater than 115?
MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.
THE DEPONENT: Yes.

BY MR. KIM:
Q Was Safeway included in these numbers?
A No.
Q So same question.
Would it be reasonable to assume that the 115 number would be higher if Safeway was included?
MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Would you agree with me that Pavilions is one of The Vons Companies?
MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation, asked and answered.
THE DEPONENT: I don't know.
BY MR. KIM:
Q Okay. So going back to Column G. So we see here fails and disclosures and fails.
Then Column H?
A Nothing useful is there. It's just showing one thing. So that's everybody in that column is going to say Fail.
Q Okay. So what does "Final Score" mean?
A Whether they were a fail, a clear, meaning they had absolutely no criminal convictions, or they were a

pass. We reviewed them, and we passed them.

Q Okay. Sorry, Ms. North. I had a hard time understanding you. Could you say that again?

A Sorry. So there either would be three here. There's fail, which is obvious. There's clear, which means they had no criminal conviction. Or there's pass, which means they had a criminal conviction that we determined was not job-related and we passed them. I should say one or more criminal convictions, though --

(Failure in transmission.)

BY MR. KIM:

Q Sorry. Could you say that again?

A I should say one or more criminal convictions that we considered to be job-related. I said one, but there could be more than one.

Q Okay. So is Final Score like the final decision?

A It's the final decision at the moment this report is pulled. But it's possible that the person could provide mitigating information, and we may change them to a pass.

Q So where would that be reflected?

A It would just be in the next report with that

ID number. Since this report was pulled two years or so after these were done, I assume that these final scores are the final scores.

Q Okay.

A It is possible for someone to dispute at any time.

Q So when I go here to Final Score -- sorry. I think I screwed that up.

So the Final Score drop-down, all I see are fails. Why is that?

A That was what was requested. So I pulled the fails for Vons.

Q So do you know if there were passes?

A Yes.

Q So do you know how many candidates had an order score of fail but had a final score of pass?

MS. LAMAR: Objection; outside the scope of the notice topics.

THE DEPONENT: No.

BY MR. KIM:

Q You said you don't know?

A No.

Q Do you have an estimate?

MS. LAMAR: Objection; outside the scope of the

notice topics, calls for speculation.

THE DEPONENT: It's typically about 30 percent of the people that dispute that we change to a pass.

BY MR. KIM:

Q And what would be the basis for changing to a pass?

A Complicated question. It could be that somebody just wrote "yes" on a previous conviction without an explanation, and then once they provided the explanation, we decided it wasn't job-related. It could be that they had one of those catch-all convictions like disorderly conduct or reckless endangerment where we need to do more research and find out if it was just something that they jumped a fence to get into the swimming pool or whether they were throwing bricks on the freeway onto passing cars.

Q How about for someone who had an order score of fail?

So disregarding the order score of disclosure, do you know if -- is it typically 30 percent that had an order score of fail had a final score of pass?

MS. LAMAR: Objection; calls for speculation.

THE DEPONENT: I don't know.

///

BY MR. KIM:

Q Can you provide an estimate based on a percentage in --

A I would estimate --

Q If you can let me finish.

Can you provide an estimate based on 2024 candidates how many had an order score of fail and a final score of pass?

MS. LAMAR: Objection; calls for speculation, asked and answered.

THE DEPONENT: I don't know. I'd have to go back and say it's that 30 percent, but I have not separated it by disclosure versus a record.

BY MR. KIM:

Q That information is readily available -- right? -- from the system where you pulled this data?

A No, it would take work. I'd have to pull up each individual report.

Q These days I feel like everything could be queried.

But here it's like the final score. So there previously was a drop-down for pass; isn't that right?

A No, that's all I pulled for this document.

Q Okay. So you ran a query and just pulled the fails, then?

A I didn't run a query. I actually manually put together all of my adjudication logs and put them together into this document.
Q How long did that take?
A About six hours.
Q So what is Reason for Fail?
A The Reason for Fail -- if you look at the drop-down again for me.
Q One second.
A So you can see that there's three on there.
The "Both" means that they didn't tell us about a previous conviction. So it's falsification and there was a job-related conviction on their record.
The "Job Related" means that there is a job-related conviction on their record that they did disclose.
"Disclosure" means there is a disclosure that they gave to us, but their criminal record was clear.
Q Okay. And when you say "job-related conviction," what does that mean?
A That's part of that individualized assessment. So that means I'm looking at the crimes that they committed and determining which, if any, of them are related to the job to which they are applying.
Q So, for instance, looking at Row 35.

They disclosed, and reason for fail is the conviction did not appear on their record; is that right?
A That's correct.
Q But then they failed, a final score?
A Yes.
Q So how would that happen?
A If someone discloses something to me that I feel it is of concern to protect our property or to protect people, I will mark them as a fail.
Q Can you give us an example of a recent disclosure fail?
A Well, this morning I had someone who admitted to being convicted of selling alcohol to minors, and I declined them.
Q So they were previously convicted of that?
A That's what they said on their disclosure, yes.
Q Okay. Column J. What does "Highest Crime" mean?
A So for those who have a criminal record, we indicate which of the crimes on their criminal record we consider to be more serious.
Q Who makes that determination?
A Myself and Courtney Jones.
Q So I'm going to, then -- so if we go to this drop-down here.

So these are all convictions that appeared on the background report?
A Correct, yes.
Q So this one, for instance, this person was convicted of abuse of elder or dependent adult causing physical pain or mental suffering.
So there may have been more than one conviction, but this was what you and/or Courtney determined was the most significant crime; is that right?
A Yes. And if you look in Column M, you can see that they had two convictions we considered to be job-related.
Q So I'm to go here to the drop-down.
So if I uncheck everything and I just go to Sex Offender, Sexual Intercourse With Minor, I believe those are the two sex-related crimes.
Are there any others? How about Possession - Depicting Sexual --
A I don't know. Probably the easier way to do that is to go to K and go to Sex Crimes there, Column K.
Q Okay. So what is Column K, Category?
A Column K is just a summary for us.
We get questions sometimes from upper management about how many people did we decline for murder or selling to minors. So we track that so that we

can give them percentages and numbers.
Q So here I'm going to count. One, two, three, four, five, six, seven, eight, nine, ten.
So then this would be ten candidates who were rejected as a result of a sex crime in their background report?
A Or potentially a disclosure.
I don't see any disclosures here. So no, they're all -- you're correct. They're all from the report.
And the last person also lied to us.
Q Oh, that they didn't put it in their disclosure?
A Yes.
Q So Major Category, what does that signify?
A Again, that's for reporting purposes. You would have to go to the drop-down for me to know them for sure.
I believe it's violence, property crimes, selling to minors. We also consider drug crimes job-related if the person is in the pharmacy.
Q Is Disclosure failure to disclose the conviction?
A No, Disclosure is they disclosed a conviction we believe to be job-related.

Q For Major Category?
A Yes, because we don't log what the crime was. We don't have that information, necessarily.
Q I'm sorry. So you said Disclosure signifies what again?
A Disclosure signifies that somebody disclosed a previous conviction at time of offer that we think is job-related.
Q And Column M?
A That's the number of convictions on the background check report that we consider to be job-related.
Q And then I believe the rest of these are redacted.
So going back to -- in Category. So again, we said here there are ten candidates, if we count these, ten out of 115 records.
So does the same analysis with respect to each of the columns apply for 2023?
A You mean the description of the columns?
Q Yes.
A Yes.
Q Okay. And then also the descriptions of each -- let me just do this -- of like the Highest Crime, would what we discussed for 2024 also apply to this 2023

tab?
A Yes.
Q Okay. Does the same apply for the category?
A Yes.
Q Okay. So if I go to Category here and I click Sex Crimes and I hit Okay.
So then here this wasn't a failure to disclose. Again, this was something that -- this was information that was found in the background report; is that correct?
A Yes.
Q So then for 2022, I'm going to click here.
So I clicked on Sex Crimes under Category, and these were all fails as a result of sex crimes convictions in the background report; is that right?
A And some of those failure to disclose as well. So in Column I where it say "Both," that means they also lied to us.
Q Okay. And then going to 2021, the same filter has 14 records showing here as sex crimes.
Do you see that at the bottom?
A Yes.
Q Okay. So then here, all 14 had the sex crime information in the background report; is that right?
A Yes.
Q Okay.

MS. LAMAR: Objection; calls for speculation.
BY MR. KIM:
Q Well, that's also based on Order Score that says "Fail," which means the conviction was reported in their background report; is that correct?
A Yes.
Q What is Column N, Newest Date?
A That's for the number of job-related crimes --
(Failure of transmission.)
THE DEPONENT: We look at which one was the most recent.
BY MR. KIM:
Q I'm sorry. Could you say that one more time?
A That's when we look at the criminal convictions that are revealed to be job-related, which one is the most recent.
Q And again -- so job-related meaning Vons is taking into account the crime and whether the candidate is fit for the position.
And if Vons determines they are not, it would be considered job-related, then; is that right?
A Yes.
Q So then why does it say "Unknown"?
A For those that are sex offenders, Asurint does not give us a date.

Q So meaning, for instance, Row 179 here, their registry status appeared on the background report, and the background report did not contain a date; is that right?
A Yes.
Q So then here where it says 2016, do you see that for Row 192?
A That must be a typo. I apologize.
Q Why do you say it's a typo?
A It's too old to be reported. Oh, wait we're in 2021.
Q Right.
A That's right, yes.
Q Okay.
A My apologies. Yes, that would be the most recent date there.
Q Okay. So are you saying if it was older than seven years, it would not be included?
A I wouldn't even see it. It would be redacted by Asurint.
Q The conviction would be redacted?
A Correct, yes.
Q So for this one, then, Asurint included the year of the conviction; is that right?
A Yes.

Q So what's the difference between -- just to make it easy.

Row 189, Sex Offender. Does that mean that, like Mr. Carrillo, the information in the background report is that they are a registered sex offender on the registry?

A Yes.

Q And then for Row 190, Possess Obscene, is this more specifically a court record showing that there was a conviction in 2019 for possession?

A Yes.

Q And then the same applies for Row 191 --

A Yes.

Q -- that the conviction -- that the specific conviction along with the date was reported in the background report?

A Yes.

Q And is this information considered different? Or why is this tagged differently from Sex Offender?

A Literally, we're just copying it from the Asurint website. It's what actually shows up in the criminal section.

Q And when you say you're literally copying it from the Asurint website, do you mean from the background report in the Asurint website?

A Yes.

Q And so this spreadsheet, to your knowledge, covers January 31, 2021, to approximately February of 2025?

A I don't think that's quite right. It's our fiscal calendar, so it usually is around March to February, somewhere in there. We included the entire year, but it's the fiscal year.

Q Okay. So you're saying you included the entire year 2025?

A As much as we could until the end of the last period when the reporting was done.

Obviously, the year is not complete for us and won't be until March 1st of next year.

MR. KIM: I want to go to another spreadsheet. This is Bates 137.

MS. LAMAR: Is this Exhibit 8?

DEPOSITION REPORTER: You did not mark the other one as Exhibit 7. So did you want to mark that, too?

MR. KIM: Oh, sorry. Let me just make sure. Yeah, Exhibit 7 for the last Excel spreadsheet.

DEPOSITION REPORTER: Thanks.

(Exhibit 7 was marked for identification.)

MR. KIM: So this is an Excel spreadsheet

produced by Vons on October 10th, Bates Number 137.

This first summary, 2021 to 2025, is all redacted. I'm going to go to the second tab here at the bottom, P1 through P7.

BY MR. KIM:

Q Ms. North, could you explain what this second tab is, P1 through P7?

A So that covers Period 1 through Period 7 of 2025.

Q Okay. What is Period 1?

A I don't remember. Probably March 1st to around April 1st.

Q Okay. So -- okay. Do you know at what point this ends, like the most recent?

A I don't remember.

Q Okay. So are the columns the same -- scratch that.

Are the titles of these Columns G through N the same as -- do they reflect the same information as Bates 138, the prior Excel spreadsheet?

A Yes.

Q Okay. And then I'm just going to go here to -- so what does "Highest Crime NA" mean in Column J?

A So whenever there's a disclosure, we don't fill in Highest Crime, Category, Number Job Related until the

next year because they could be really nebulous in that area.

Q Okay. But you're saying if it's disclosed but it -- because it's unclear, it's not stated in the Highest Crime column?

A It can be included.

Q Okay. But this person ultimately did not get a job; is that right?

A Since this is the most recent report, it's possible that they could have been passed at a later date.

Q But based on what we see here, they did not?

A Yes.

Q Okay. And then if I go to Highest Crime Sex Offender, this would be the three in Periods 1 through 7 where sex offender was reported in the background report and the candidate did not receive -- or ultimately did not obtain employment; is that right?

A Yes.

Q Okay. Are you still seeing the P1 through P7 tab?

A Yes.

Q So would it be fair to say if I filter to Highest Crime Sex Offender -- strike that.

So would it be fair to say that if I filter the

Highest Crime to Sex Offender and the reason for fail is job-related and the order score is fail, then that candidate did not receive employment as a result of their sex offender status?

A No.

Q Why not?

A They also could have disclosed a sex crime that we consider job-related.

Q I'm sorry. I didn't understand what you said. Could you say that again, please?

A They could also have disclosed a crime that we consider to be job-related. So we would be looking both at the sex offender and their disclosure.

Q But then it would say Disclosure --

A Well, it only says --

Q -- here, wouldn't it?

A It only says Disclosure if they did not have a criminal conviction in their background report.

Q Okay. So you're stating that it could have also been like Mr. Carrillo, that the candidate disclosed that they had some type of sexual crime --

MS. LAMAR: Asked and answered.

BY MR. KIM:

Q -- in their history?

MS. LAMAR: Asked and answered.

THE DEPONENT: Yes.

BY MR. KIM:

Q Okay. Now, is there any type of column in the report which would disclose that?

A No.

Q Now, I don't just mean these, you know, Columns G through N. But there has been a ton of information that has been redacted, and, obviously, I'm not privy to what's in those columns.

But in the redacted information, is there information that would disclose whether the candidate's disclosure played a role in whether or not they received employment?

THE DEPONENT: Ms. Lamar, can I answer regarding the redacted information?

MS. LAMAR: I don't know.

Let me go off the record and talk to her, please.

MR. KIM: No, no, no, no, no. We're in the middle of a question. We can't do that.

MS. LAMAR: Then if you think it is going to reveal attorney-client communication or something that you shouldn't disclose, don't disclose it.

MR. KIM: That's a terrible instruction, "something that you shouldn't disclose, don't disclose

it."

MS. LAMAR: I'll withdraw the instruction.

If you think it's going to provide either some type of propriety or confidential information or attorney-client communication, then don't disclose it.

THE DEPONENT: When somebody discloses a previous conviction, they get a different package through Asurint. It's exactly the same background check, but it doesn't clear.

So it makes sure that Courtney and I review every previous conviction if anyone has disclosed at time of offer, and that's indicated in one of these columns. I don't know which one.

BY MR. KIM:

Q I'm not sure that addressed my question.

Could you say that again, please, Ms. North?

A So if somebody discloses a previous conviction on the time of offer, they get a different package from Asurint, which is one of the columns that's been redacted on this report.

That package is the same content as far as criminal searches go, but it simply does not pass. They all go to Courtney and I for review.

So the package indicates whether or not there's been a disclosure.

Q And that is signified in this report in a column?

A I don't know. I believe so.

MR. KIM: So I think the problem here is this entire report should have been produced unredacted except for PII, person identifying information.

Ray, follow up.

BY MR. KIM:

Q So, for example -- maybe this will clarify things -- Mr. Carrillo had disclosed conviction information; is that right?

A Yes.

Q Okay. Would that information be reflected in this report, Bates 137?

A As it is currently, no.

Q Is that information reflected in one of the columns that has been redacted?

A I don't know. I believe so.

Q How would that information appear in this report?

A There would be a column with Package Name.

If the package name was a three, that would mean that they did not disclose anything. If the package name was a four, that would mean that they disclosed a conviction at the time of offer.

Q At the time of?
A Offer.
Q But if they had failed because of information that they had disclosed, wouldn't the order score reflect Disclosure?
MS. LAMAR: Objection; asked and answered.
THE DEPONENT: Disclosure means that they did not have a criminal conviction on their background check report but they did disclose something potentially job-related at the time of the conditional offer.
BY MR. KIM:
Q I'm sorry. Could you say that again?
A Disclosure means that their background check came back clear but that they disclosed a conviction that we believe may be job-related at the time of the conditional offer.
Q So is there a Both option under Order Score?
MS. LAMAR: Objection; asked and answered.
THE DEPONENT: No.
BY MR. KIM:
Q I'm sorry?
A No.
Q Why not?
A I don't know.
Q Was there a Both option previously?

A No.
Q So then for Order Score Fail, wouldn't that mean that there was conviction information reported on their record, and as a result, they failed?
MS. LAMAR: Objection; asked and answered.
THE DEPONENT: No, it could also mean that they disclosed the conviction as part of the offer process.
BY MR. KIM:
Q And again, you believe that might be reported in this report, but it's just not here; is that right?
MS. LAMAR: Objection; asked and answered, calls for speculation.
THE DEPONENT: Yes.
MR. KIM: Okay. Ms. Lamar, I'm going to ask you to produce an unredacted copy of this, and you could redact personal identifying information.
But I believe the columns are material and should have been produced a couple of weeks ago when this document was produced.
Ray, follow up.
I'm going to go back to Exhibit 7, which was the spreadsheet labeled "Bates page 137."
DEPOSITION REPORTER: Did you want to mark this spreadsheet as Exhibit 8?
MR. KIM: Oh, I'm sorry. Yes. The last one

was Exhibit 8, yes.
(Exhibit 8 was marked for identification.)
BY MR. KIM:
Q So, Ms. North, we're now looking at the 2023 California Vons tab.
Do you see that here at the bottom?
A Yes.
Q Okay. So, as you know, Mr. Carrillo's conditional offer, background report, and ultimate withdrawal of the conditional offer occurred in 2023.
So would he be -- Mr. Carrillo's criminal sex offender history be reflected in this tab?
A Yes.
Q So, as you know, as we discussed earlier, he had disclosed his conviction, but again, none of these columns reflect that.
Would you agree with me that that's the case?
MS. LAMAR: Asked and answered.
THE DEPONENT: Yes.
BY MR. KIM:
Q Okay. Are you aware of any candidates with the highest crime as sex offender that were hired by Vons since 2021?
A No.
Q Why is that?

MS. LAMAR: Objection; argumentative.
THE DEPONENT: Because we look at job-relatedness. We have -- every person in the store has interaction with other people and potentially minors as well. So we consider it job-related.
BY MR. KIM:
Q I'm looking at Row 143 here, Column N, for Latest Year.
Why does this column say zero?
A That looks like human error.
Q I'm sorry?
A It looks like human error.
Q Human error. Okay.
How about Number Job Related Unknown?
A Same. Human error.
Q Okay. To your knowledge, candidates who are listed here with the highest crime of sex offender and who have an order score and final score of fail, do they receive a post-adverse action notice like Mr. Carrillo's stating that their background report information disclosed that they are sex offenders?
MS. LAMAR: Objection; vague and ambiguous.
MR. DRURY: Join in the objection.
THE DEPONENT: Anyone who fails is going to get the pre-adverse action and then the FCRA 613 in their

consumer report. If they remain a fail after the waiting period, they're going to get the adverse action.
BY MR. KIM:
Q And if their highest crime is sex offender, it'll state in the adverse action notice "sex offender"?
MS. LAMAR: Asked and answered.
THE DEPONENT: Yes, because that's the format we have to follow in California.
BY MR. KIM:
Q Was this information obtained from the Asurint portal or from Vons's records?
A From the Asurint portal.
MR. DRURY: I'd just object to the form.
I'm not sure what you mean by "this information."
BY MR. KIM:
Q Was this information contained in this report that we are looking at, Bates Number 138, obtained from the Asurint portal or from Vons's records?
THE DEPONENT: Thank you for the clarification, Mr. Drury. I answered that incorrectly.
The vast majority of this information comes from Asurint, but the stuff that's logged manually is from Vons.
So Columns G through N are all manually input

by Courtney Jones and myself.
BY MR. KIM:
Q How about the other columns?
A I would have to see what has been redacted to answer that question.
Q So, Ms. North, to make sure that I'm understanding your testimony, are you stating that the information contained in this report, here it would be Columns A through AL, Rows 1 through 173, this information was manually entered into this spreadsheet?
A It was pulled from reports, and then it was put together --
(Failure of transmission.)
BY MR. KIM:
Q I'm sorry. I couldn't hear you.
A I get reports each month. And so I took each of those reports and put them together to create what you see before you.
Q Are the reports in this same format?
A No.
Q Do the reports contain the same columns reflected, A through AL, in this document?
A No. I add G through N because those are manual to Vons --
(Failure of transmission.)

BY MR. KIM:
Q I'm sorry. You said you added Columns G through N because they are?
A That's from our manual adjudication logs that Courtney Jones and I keep.
Q So Order Score, Final Score, for instance, in Columns G and H, they do not exist in the original report that you receive on a monthly basis?
MS. LAMAR: Asked and answered.
THE DEPONENT: They might have the -- Column G might have the order score, but we're going to look it up on our log in case it has changed due to a dispute process.
BY MR. KIM:
Q So you created this record based on information from the Asurint portal and based on information from Vons's adjudication log --
MS. LAMAR: Asked and answered.
BY MR. KIM:
Q -- and combined that information to create this spreadsheet; is that correct?
MS. LAMAR: Asked and answered.
THE DEPONENT: Yes.
BY MR. KIM:
Q So when did you create this spreadsheet?

A In some form or another, I do it every month. So it looks just like this for each fiscal month, and then at the end of the year, I do one for the full year.
But what you see in front of you, I created just for this request for information.
Q So would you be able to produce the end-of-the-year reports for 2021 to 2024?
A Yes, but they wouldn't look any different than what you see in front of you.
Q How would they be different?
MS. LAMAR: She said they wouldn't look any different.
MR. KIM: Oh, they would not look any different.
I'd like to see those, the original business record that's being produced -- or that's being created at the end of every year and for each fiscal month.
And information can be redacted, but I think that information should be limited to personal identifying information.
Ray, follow up.
DEPOSITION REPORTER: I'm sorry to do this, but I need a break.
MR. KIM: Okay. Ten-minutes?
DEPOSITION REPORTER: Yes, please. Thank you.

(A recess was held.)
MR. KIM: Okay. Back on the record.
BY MR. KIM:
Q Going back to Exhibit 7 --
MS. LAMAR: When you say "Exhibit 7," are you referencing --
MR. KIM: Bates 138, the spreadsheet.
MS. LAMAR: That was Exhibit 9.
DEPOSITION REPORTER: We don't have an Exhibit 9.
MS. LAMAR: It was the last one we were discussing, so I expect he meant to mark it as Exhibit 9.
MR. KIM: That was Exhibit 7, Bates 138, and then Exhibit 8 was Bates 137.
MS. LAMAR: Then what are you saying was Exhibit 7?
MR. KIM: Bates 138, the spreadsheet.
MS. LAMAR: Then what was the last exhibit that we were discussing that you didn't mark?
MR. KIM: I think we had gone back to Exhibit 7 at that point, 138, the one that you see on the screen.
MS. LAMAR: So Exhibit 7, 138. Exhibit 8?
MR. KIM: 137.
MS. LAMAR: There's no Exhibit 9 then?
MR. KIM: There's no Exhibit 9 at this time,

no.
MS. LAMAR: Okay. We're ready.
BY MR. KIM:
Q Okay. So, Ms. North, going back to this Column I, Reason for Fail, I just want to make sure I understand.
So Reason for Fail, on the drop-down. So there's a Both option, a Disclosure option, and a Job Related option.
Do you see that?
A I do.
Q Okay. So please correct me if I'm wrong, but Both means that the candidate did not tell you about their previous conviction and the job-related conviction; however, it was on their background report?
MS. LAMAR: Asked and answered.
THE DEPONENT: Yes.
BY MR. KIM:
Q Okay. And then Job Related here means that the conviction did appear on the background report and Vons, based on its assessment, determined that it was job-related, and therefore, the candidate was not fit for the position?
MS. LAMAR: Asked and answered.
THE DEPONENT: Yes.

BY MR. KIM:
Q Okay. And then Disclosure means the conviction was disclosed by the candidate.
Could you explain disclosure again?
MS. LAMAR: Asked and answered.
THE DEPONENT: Yes. Disclosure means that they disclosed a criminal conviction at offer but their criminal background check from Asurint was clear.
BY MR. KIM:
Q Okay. But the background -- so the prospective employee disclosed the conviction at the time of the conditional offer, but the background report did not disclose that conviction?
MS. LAMAR: Misstates the testimony, asked and answered.
THE DEPONENT: Yes.
BY MR. KIM:
Q Okay. But there is no option here for the candidate disclosed the previous conviction and the previous conviction was on the background report?
MS. LAMAR: Asked and answered.
THE DEPONENT: Yes.
BY MR. KIM:
Q And why is that?
A I think that there --

(Failure of transmission.)
THE DEPONENT: -- we have two Boths, which would be incredibly confusing. So we would just use the package to determine whether the person disclosed or not.
BY MR. KIM:
Q Okay. That was a little hard for me to hear. Could you say that one more time, please?
A I think part of it is that we would have two different Boths, which would be incredibly confusing, one meaning one thing and one meaning another.
But the other is that we've always been able to look at the package to determine whether the person disclosed or did not disclose.
Q So the package I think you referred to as Package 2 or Package 3; right?
A No, Package 3 or Package 4.
Q I'm sorry. Package 3 or Package 4.
And Package 3 did not disclose anything, and Package 4 was disclosed at the time of offer?
A Yes.
Q Okay. But that package information doesn't address the reason for fail, does it?
A No, that would still be in Column I.
Q So would it be fair to say that there is no reason for fail where a conviction is disclosed in the

background report and a candidate also discloses the conviction?

MS. LAMAR: Lacks foundation, vague and ambiguous.

MR. DRURY: Join.

THE DEPONENT: Yes, but there's never -- or there's not always -- excuse me -- a direct relationship between what they disclosed and what Asurint finds or it's not clear, necessarily.

They might say felony 2018, and we see a felony DUI, but it's from a different year. We're not sure if they're disclosing the same thing when we find it.

BY MR. KIM:

Q So is that the reason why?

A Is that the reason why -- I'm sorry. Why what?

MR. KIM: Okay. So, Madam Court Reporter, could you repeat my last question?

(Record read.)

MS. LAMAR: Lacks foundation, vague and ambiguous.

MR. KIM: And then could you read the response, please?

(Record read.)

BY MR. KIM:

Q So, Ms. North, is that -- are you saying that

is the reason why there is no option for Reason for Fail based on the conviction appearing in the background report and also being disclosed by the candidate because the candidate's disclosure could potentially be, like you said, nebulous or ambiguous or just doesn't necessarily match with the conviction that appears in the report?

MS. LAMAR: Lacks foundation, vague and ambiguous, compound.

THE DEPONENT: No, I think that's partially it. But like I said, we can always look at the package to see if they disclosed something.

MR. KIM: Okay. Should we go off record now?

MR. DRURY: Yeah, if we could. Yeah, I'd appreciate it.

MR. KIM: Okay.

(A recess was held.)

MR. KIM: Back on the record.

BY MR. KIM:

Q Ms. North, we're going to go back to Exhibit 7, Bates 138. I'll put that back on the screen.

So Column M here, Number Job Related, does that relate to the package number that you had been talking about earlier?

A No, that's the number of criminal convictions found on the background check report that we consider to

be job-related.

Q Got it. All right.

And going to Major Category. So there are a number of major categories here: Disclosure, Falsification, Property Crimes, Selling to Minors, and Violence.

Do you see that?

A Yes.

Q Okay. And so earlier I believe you testified the Disclosure means that the candidate disclosed the conviction at the time of the offer that Vons believes is job-related; is that right?

A Yes.

Q And then what is Violence?

A Violence would be any crime against persons. So it ranges from assault all the way up to manslaughter and murder.

Q And how about Falsification?

A Falsification means that the crime on their background check report was not something we consider job-related, but they didn't disclose it, and it's very recent or they have a number of convictions.

We don't use it very often, but occasionally, there will be somebody that'll be really obvious that they should have disclosed something and didn't.

Q Okay. So it's when the candidate fails to disclose the conviction?

A Yes.

Q Okay. So the candidate failed to disclose the conviction after they received their conditional offer, but then the conviction appeared on the background report; is that right?

A Yes.

Q Okay. How about Property Crimes?

A Property Crimes would be literally crimes against property. So it would range from low-level theft, criminal mischief, probably up to embezzlement, fraud, forgery, grand theft, burglary, et cetera.

Q And then I think you said "selling to minors."

Is that selling alcohol to minors?

A It's selling any substance that's prohibited.

So it could be selling tobacco to minors.

Q Okay.

A I should call it a controlled substance. Excuse me.

Q So with respect to the major category of disclosure, would it be fair to say that if the candidate disclosed the conviction at the time of the conditional offer and Vons believes that's job-related and, therefore, renders the candidate unfit for the job, would

Vons put Disclosure as the major category?
A Yes.
Q Going to Column K. I'm going to go back to this drop-down, and then there is a category for sex crimes.
Are you aware of any candidate who falls into the category of sex crimes who was hired by Vons since January of 2021?
A No.
Q How about by Pavilions?
A I don't know.
MS. LAMAR: Objection; outside the scope of the depo topics, calls for speculation.
BY MR. KIM:
Q How about Albertsons?
MS. LAMAR: Objection; outside the scope of the deposition topics, calls for speculation.
THE DEPONENT: I don't know.
BY MR. KIM:
Q But you are the AEC manager for Albertsons as well; isn't that right?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: Yes.
///

BY MR. KIM:
Q How about Safeway?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: Yes.
BY MR. KIM:
Q I'm sorry. Yes to what?
A Yes to --
(Simultaneous colloquy.)
MS. LAMAR: Give me a second.
Same objection; outside the scope of the notice topics.
THE DEPONENT: Yes to Safeway.
BY MR. KIM:
Q Okay. So you are aware of candidates who fall under the category of sex crimes who were hired by Safeway since January 2021?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: Yes.
BY MR. KIM:
Q How do you know that?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: Because it was an exception. It

was someone who was working in our corporate offices and who had a conviction for viewing child pornography.
BY MR. KIM:
Q Viewing child pornography?
A Yes.
Q So that was similar, then, to Mr. Carrillo; isn't that right?
A Yes.
Q So why was an exception made for this individual?
A They weren't going to be --
(Simultaneous colloquy.)
MS. LAMAR: Mr. Kim cut off.
Would you mind repeating your question?
And then I'm going to insert an objection, but I didn't because I thought he was pausing.
DEPOSITION REPORTER: Did you need it read back, Mr. Kim?
MR. KIM: I could repeat it.
BY MR. KIM:
Q Why was an exception made for this individual?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: This person was not going to have contact with the public as part of his job, so there

were no at-risk minors or at-risk adults that he was going to be around.
BY MR. KIM:
Q And who would be considered an at-risk adult?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: We would say anybody that's elderly, has any sort of disability, anything that would be considered an elderly dependent, child, all of those at-risk categories.
BY MR. KIM:
Q And who would be considered an at-risk minor?
A I would say any minor would be an at-risk minor.
Q What position was this candidate hired for?
MS. LAMAR: Objection --
(Simultaneous colloquy.)
MS. LAMAR: So for all of these, this has nothing to do with Vons. So I'll be objecting that it's outside the scope, so just give me a second to object.
THE DEPONENT: Sorry.
MS. LAMAR: No apologies needed.
Objection; outside the scope of the notice topics.
THE DEPONENT: I don't remember. I believe it

might have been risk management.
BY MR. KIM:
Q Do you recall when this was?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: I don't remember.
BY MR. KIM:
Q Are you aware of any other exceptions for Safeway?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: No.
BY MR. KIM:
Q Was this individual to work in the corporate office or work remotely?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: In the office, until COVID when they worked remotely.
BY MR. KIM:
Q Okay. So his or her hiring predates March 2020?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: I don't remember.

BY MR. KIM:
Q How about any other banners under Albertsons? Are you --
MS. LAMAR: Objection --
MR. KIM: Sorry. I didn't finish.
BY MR. KIM:
Q Are you aware of any candidate who falls under the category of sex crimes who was hired by any other banner under Albertsons?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: I believe we hired a person in our supply and distribution plant as well.
BY MR. KIM:
Q Where is the supply and distribution plant?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: There are 35 of them in various locations.
BY MR. KIM:
Q Where is the one that this individual was hired for?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: I believe it was the

manufacturing plant in La Brea.
BY MR. KIM:
Q I'm sorry. Manufacturing plant in?
A La Brea.
Q La Brea? La Brea, California?
A Yes.
Q Why was an exception made for this individual?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: The same as for the person in corporate. They would not have interaction with minors or with any at-risk adult.
BY MR. KIM:
Q Do you recall their conviction?
A I don't remember.
Q Do you recall when this was?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: I don't remember.
BY MR. KIM:
Q So the supply and distribution plant, does that fall under which banner?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: It would be Albertsons.

BY MR. KIM:
Q Are you aware of any others?
MS. LAMAR: Outside the scope of the notice topics.
THE DEPONENT: No.
BY MR. KIM:
Q So looking at Exhibit 7 here. We are under the 2022 tab. We see the category has been filtered to sex crimes only.
And then in Column J we see Highest Crime, a number of sex offenders, sexual battery, rape in the third degree, sex offense/lewd act against child or adult, another same offense, a failure to register as sex offender, travel to meet after use comput to lure child, contacting minor with intent to commit sex offense, and lewd conduct in public place.
So from Vons's perspective, are all of these sex crimes treated equally in terms of the hiring process?
MS. LAMAR: Objection; relevance, outside the scope of the notice topics.
THE DEPONENT: It would depend on whether or not they disclosed, and it would also depend on what they disclosed. So we're always going to be looking at the previous conviction as well.

BY MR. KIM:
Q But for purposes of the Highest Crime information here, from Vons's perspective, because they fall under Sex Crimes, for hiring purposes, are they effectively considered the same sex crime that would preclude hiring?
MS. LAMAR: Objection; asked and answered, outside the scope of the notice topics.
THE DEPONENT: We don't look at them in isolation. We're going to be looking at all the other things and, potentially, also any mitigating information they provide.
BY MR. KIM:
Q So you'll notice here Column N is redacted for 2022. For 2023, the Latest Year is included.
Do you know why that's the case?
A I don't know.
Q But you created this document; correct?
A I did not redact anything. That was done by someone else.
Q Do you know who that was?
A I don't know.
MR. KIM: Okay. I'm going to turn now to Exhibit --
Are we on Exhibit 9?

DEPOSITION OFFICER: Yes.
MR. KIM: Okay. So this is Exhibit 9.
(Exhibit 9 was marked for identification.)
MR. KIM: So this is Exhibit 9, the services agreement between Safeway Inc. and One Source Technology, LLC, dba Asurint, effective November 1, 2011.
BY MR. KIM:
Q Ms. North, do you see this document?
A Yes.
MR. KIM: Okay. And this is -- was produced by Vons, and it's Bates Numbers 121 to 136.
BY MR. KIM:
Q Okay. So are you familiar with this document?
A Yes.
Q Okay. Why is this -- are you able to tell me why the document is between Safeway and Asurint versus Vons Companies, Inc. and Asurint?
MS. LAMAR: Objection; outside the scope of the notice topics.
THE DEPONENT: That was the company we were part of at that time, was Safeway.
BY MR. KIM:
Q So Vons was a part of Safeway?
A Vons --
MS. LAMAR: Let me get my objection in.

Objection; outside the scope of the notice topics.
THE DEPONENT: Vons would have been part of Safeway at this point, yes.
BY MR. KIM:
Q Okay. But this services agreement still governs the relationship between The Vons Companies and Asurint; is that right?
A Yes.
Q And --
MR. DRURY: I'm sorry. If I can just interject an objection just to the form of the question and to anything touching on a legal conclusion regarding this contract.
MS. LAMAR: Join.
BY MR. KIM:
Q So is this the services agreement currently in effect between Asurint and Vons Companies?
A Yes.
MR. DRURY: Same objection.
MS. LAMAR: Join.
THE DEPONENT: Yes.
BY MR. KIM:
Q Okay. And is this the same services agreement in effect between Asurint and Albertsons Companies?

MS. LAMAR: Objection; outside the scope of the notice topics.
MR. DRURY: Join.
THE DEPONENT: Yes.
BY MR. KIM:
Q Okay. Could you describe what this services agreement is?
MS. LAMAR: Objection; outside the scope of the notice topics. Also to the extent it calls for a legal conclusion, I'm also objecting.
MR. DRURY: Join.
THE DEPONENT: It sets forth the services that we are asking Asurint to provide for us in regards to background checks.
BY MR. KIM:
Q So I'm going to scroll down here. This is Section 2, Services, and then Section 2.1, Services and Deliverables.
If you can take a moment to review 2.1 here on this page.
A Okay.
Q Did you also read 2.1.1 and 2.1.2?
A I did.
Q Okay. So 2.1.1, it states:
"Contractor will perform the Services,

including the preparation and dissemination of reports for employment purposes."

So is this the creation of background reports for Vons?

A Yes.

Q Okay. And then 2.1.2, it states:

"In compliance with the Fair Credit Reporting Act and applicable state laws, Contractor will disclose, upon request from the subject of any report" --

Subject of any report being the candidate; is that right?

A Yes.

Q (Reading):

-- "the information reported and Contractor will reinvestigate upon request and take such corrective action as required by the FCRA and applicable state laws with regard to any information reported that is disputed or incorrect."

What does this mean?

MS. LAMAR: Objection --

(Simultaneous colloquy.)

MS. LAMAR: Go ahead.

MR. DRURY: I was going to say same objection as before.

This is obviously a legal document, and you're asking for a legal conclusion as to the meaning of the contract.

So I just raise that objection and also beyond the scope of the deposition topics.

MS. LAMAR: Join.

THE DEPONENT: And I would have to say I would be guessing at the interpretation. I would ask the lawyer to look at this. The lawyers all reviewed this contract before signing it.

BY MR. KIM:

Q Okay. Well, I will tell you that this contract was signed, to the extent it makes a difference, by Michele Silva, the VP of HR.

Do you know Michele, Ms. Silva?

A I know Michele, yes.

Q Okay. Is she still with Vons or Albertsons?

A No.

Q No? Okay.

Okay. Do you know where she is now?

MS. LAMAR: Objection; outside the scope of the notice topics.

THE DEPONENT: I don't know.

BY MR. KIM:

Q Okay. So does Asurint provide reinvestigation services where the candidate disputes information?

MS. LAMAR: Vague and ambiguous.

THE DEPONENT: There's two different kinds of disputes when there's a Fair Credit Reporting Act dispute, which I believe is what this is about, which is that the contents of the criminal report are incorrect.

Whether that be substantive issues or dates or levels of the conviction or whatever it might be, they will open a dispute with Asurint, and Asurint notifies us that that dispute has been opened.

They won't show on that background report so that I can't look at it until the dispute was resolved. Then they notify us, and we score the report based on the new findings.

BY MR. KIM:

Q And what is the other kind of dispute?

A The other kind of dispute would be a job-related dispute. Those are the ones that are spelled out in the pre-adverse action letter. So that's if the person does not agree with the hiring decision, that we're saying something is job-related but they disagree with that.

They call an 800 number or send an e-mail to

the criminal.checks box, and we're notified that they're opening a job-related dispute.

In some cases, they also call Asurint because it's very confusing. So sometimes they'll call Asurint when they are opening a job-related dispute.

Asurint takes that information for us, posts it on the background check report, and notifies us that a note has been posted to the background check report and a dispute has been opened.

Q So I'm a little unclear about the difference.

So is the first dispute, the FCRA dispute, is that challenging the accuracy of the, for instance, conviction information in the report?

A Yes.

Q And then the second, the job-related dispute, is that when the candidate provides, for instance, mitigating or rehabilitative evidence to show that the conviction is not related to the job and, therefore, they are fit for the position?

A Yes.

Q Who makes the determination that it is a FCRA dispute versus a job-related dispute?

A It can come from a variety of sources.

If it comes directly to us from the criminal.checks box or a phone call, we will ask them if

they're disputing the contents of their criminal record.

And if they are, we'll refer them to compliance@asurint.com. If not, we'll ask for mitigating information.

Q Okay. So 2.1.2, does this relate to one of the two disputes that we just discussed?

MR. DRURY: Objection; asked and answered, legal conclusion.

MS. LAMAR: Join.

THE DEPONENT: This appears to me to be talking about an FCRA dispute.

BY MR. KIM:

Q Are you aware of instances where Asurint will conduct the investigation into a job-related dispute?

A No.

Q How does Asurint notify -- strike that.

Does Asurint notify Vons that a candidate is making a job-related dispute?

A Yes, sometimes.

If the dispute comes to them directly, then they're going to, again, post a note on the background check report that includes, basically, the verbiage that the candidate explained to them.

Then they'll send an e-mail to criminal.checks and let us know that the person is opening a dispute with

Vons, a job-related dispute with Vons.

Q Do you know if that happened with respect to Mr. Carrillo?

A We got information directly from Mr. Carrillo, but we also got information from Asurint regarding Mr. Carrillo.

Q So then Asurint will e-mail Vons to notify them about a job-related dispute that comes in from the candidate to Asurint?

A Yes.

Q At that point, what does Vons do?

MR. DRURY: Objection; asked and answered.

MS. LAMAR: Join.

THE DEPONENT: We're going to review the criminal conviction and the disclosures. Then we'll review all the mitigating evidence that they provided and determine whether we still think that person is a risk.

BY MR. KIM:

Q Now, is this assessment memorialized in writing anywhere?

A In two ways.

One, we're going to change the status of the person to a post-dispute status so that they're going to get another adverse action letter. So it's logged in the Asurint site when we make that change when the score is

changed.

We also may have a lot of documentation related to the mitigating evidence in the criminal.checks mailbox.

Q But the actual -- for instance, the information that was reviewed, the time of the review, the reviewer, the thought process or reasoning in reaching the adjudication, is that information memorialized in writing anywhere by Vons?

A It would be in the background check report. It has the name of the person who scored the person, the date and time that it was scored, and any remarks such as falsification, falsification and job-related, are also included.

Q I'm sorry. Could you say that again?

You said in the background check report, there is the?

A There's a scoring section that actually documents every time anybody goes in and changes the score on the report.

So we would change the score again to a post-dispute. So they'll get another adverse action letter saying that we reviewed it, and we still say that they're a fail or they'll get a pass.

And then we also -- it also notes on there who

scored the person, the date and time they scored them, and the reason for the fail, if they're a fail again, whether it's, again, disclosure, falsification, job-related, or both.

Q So that is in the background report that is maintained by Vons?

A It's part of the Asurint website.

Q So this information is contained in the background report that is contained in the Asurint website?

MS. LAMAR: Asked and answered.

THE DEPONENT: Yes.

BY MR. KIM:

Q Okay. So then the background report that Vons produced for Mr. Carrillo would include this information; is that correct?

A I don't know.

Q Okay.

A I don't think I've seen it.

Q You don't think you've seen the background report or --

A I've seen his background check report. I don't know that I've seen the one that was given to you as part of the discovery process.

Q Okay.

A I don't know if it contains this specific information.

MR. KIM: So I'm going to introduce Exhibit 10, background report produced by Plaintiff.

I didn't see one produced by Vons, but the one produced by Plaintiff, it is Bates Numbers 1 -- so the complete document, including a summary of rights and everything, is Bates Numbers PLAINTIFF 1 through 18.

(Exhibit 10 was marked for identification.)

BY MR. KIM:

Q So where in this report would we find the information you just referenced about the scoring section?

A You need to scroll down to see the whole report to see whether it's in the report.

Q I think --

A It's not on here. It's not on there.

Q Any idea why it's not on here?

A I don't know. It may be to protect the privacy of the adjudicators so that they don't have their name.

Q Where would it normally -- where would it normally be on this background report?

A I believe it's right after the Self-Disclosed Offense section.

Q Is that right here at the bottom of Bates

Number 1?

A Yes.

Q Would it be under the section QA process?

A No, it's in a section that's different than an adverse action would be on. It wouldn't be under QA process.

Q What would that section be entitled?

A I don't know.

Q If the scoring was not conducted, then that section would not appear in the background report; is that right?

MR. DRURY: Object to the form of the question.

THE DEPONENT: No, the section would still appear; it would just be blank.

But he would have to have been scored in order to get an adverse action, in order to be noted as a fail in the applicant tracking system, et cetera.

BY MR. KIM:

Q Okay. Any thoughts as to why it's not here?

MS. LAMAR: Objection; calls --

MR. DRURY: Objection; asked and --

Sorry.

MS. LAMAR: Objection; calls for speculation, asked and answered.

MR. DRURY: Join.

THE DEPONENT: I don't know. I think it's the privacy issue, but I don't know for sure.

BY MR. KIM:

Q Do you know if it's normally included in background reports provided to the candidates?

A I don't know.

Q Okay. Then just looking -- since we're here.

Looking at the top here, do you know what Reference 1 refers to?

A Yes, that is the individual candidate ID that is generated as somebody opens an application.

Q What about Reference 2?

A Reference 2 is the job requisition.

Q I'm sorry. You said "job acquisition"?

A Job requisition.

Q Requisition? And what does that mean?

A It's basically the way to post --

(Failure of transmission.)

DEPOSITION REPORTER: Can you repeat that?

THE DEPONENT: It's basically a way to say you have an open position in order to post it and prove you have approval, et cetera.

BY MR. KIM:

Q Who posts the open position description?

A I don't know.

Q Is it Asurint?

MS. LAMAR: Objection; asked and answered, calls for speculation.

MR. DRURY: Join.

THE DEPONENT: No, it would be someone on the Vons side.

BY MR. KIM:

Q What about Reference 5? What does that signify here?

A Reference 5 is the title of the position that this person was applying for.

Q How about Order ID?

A That's the unique number that's assigned by Asurint when they open the order.

Q Okay. And going back to Reference 5, what is GM/HBC Clerk?

A It's a general merchandise health and beauty clerk.

That's a clerk who works in the middle of the store, is what they like to call it, center of the store. It's somebody who handles makeup and diapers to just about anything you can think of in the center of the store.

So they're not dealing with produce. They're not dealing with floral.

Q So would a deli associate fall under GM/HBC?
A No.
Q Are you aware that Mr. Carrillo applied for a deli associate position?
A Yes.
Q So why is this referenced general merchandise health and beauty clerk?
A He must have applied to more than one position.
Q Who creates this reference?
A It comes from our applicant tracking system. So it's part of an integration between Oracle and Asurint.
Q I'm sorry. You said "integration between Oracle"?
A Our ATS system comes from Oracle.
Q And what does "ATS" stand for?
A Applicant tracking system.
Q So is this background report uploaded by Asurint into the ATS?
MR. DRURY: Object to the form, calls for speculation.
THE DEPONENT: No.
BY MR. KIM:
Q I guess maybe I missed it.
So who is the one that selects the position

under Reference 5?
A That's being fed from our ATS system to Asurint.
Q So is that like AI, or is there a person on the other end that says Mr. Carrillo has applied to be a deli associate and then inputs this information?
MS. LAMAR: Calls for speculation.
THE DEPONENT: I don't know. It --
MR. DRURY: Join.
THE DEPONENT: -- used to be what they call an XML transfer. I don't know how this happens now.
It's a system integration, so it's -- it doesn't have any involvement with Vons.
BY MR. KIM:
Q Is there a reference for deli clerk or deli associate on Reference 5?
A Yes, it would show up as deli clerk.
Q I'm sorry?
A Yes, it would say "deli clerk."
Q Oh, okay. Would the adjudication have been different if it stated "deli clerk" under Reference 5?
A No.
Q Why not?
A All our clerks in the store have access to at-risk people, whether it's customers or whether they're

meeting them in the bathroom or they're meeting minor employees in the break room or the receiving areas.
So in every case, they have potential contact with at-risk people.
Q You said they have potential contact with at-risk?
A Yes.
Q I'm sorry. At-risk what?
A People.
Q People. Would that also apply to a stocking clerk working in the warehouse?
A When you say "warehouse," what are you talking about? Like supply and distribution or someone in the store?
Q For instance, supply and distribution.
MS. LAMAR: Objection; outside the scope of the notice topics.
MR. DRURY: Join.
THE DEPONENT: It would depend on which area they were working in.
In some cases, they don't have a lot of at-risk employee interaction, if any, and in others, they do work with at-risk employees.
BY MR. KIM:
Q What is Customer: Vons - San Diego?

A That's the specific store number that's going to be billed for the background check.
Q What is Order Date?
A The date that the order came over from the ATS system.
Q The order came from?
A The ATS system.
Q Who initiates the order?
A As soon as an offer is extended, then the order is generated.
Q So this is an order for the background report; is that correct?
A Yes.
Q So once an order is generated, how long does it generally take to obtain the background report?
A That's a really difficult question to answer.
It depends a lot on the state that person lives in, whether or not they have a very common name.
It depends on whether it's a county that is clerk-assisted and requires someone to actually go open a physical paper file.
There's a lot of different things that come into it.
Q Does Vons generally expect the report to be provided within a certain time period?

A No.

Q Does Vons prohibit the inclusion of any type of information in the background report?

A Yes, those things we reviewed earlier.

So anything that is not a conviction, anything older than seven years, anything that has been statutorily erased.

So all of those things -- and I don't have a complete list in front of me. But all of those that were listed on that SOP, those are all the things that do not appear on this report.

Q How about information from a sex offender registry?

Does Vons prohibit Asurint from including that information in a background report?

A No.

Q Okay. What is -- does Vons have a target that it sets for Asurint to provide the background report once the order is entered?

MR. DRURY: Object to the form, vague and ambiguous.

MS. LAMAR: Join.

THE DEPONENT: No, we do not have a service level agreement.

///

BY MR. KIM:

Q I'm sorry. We do not have a?

A Service level agreement.

Q By that, are you saying that Vons doesn't have any type of target set for Asurint to provide a background report once the order is entered?

MS. LAMAR: Objection --

THE DEPONENT: Yes --

MS. LAMAR: -- misstates testimony.

MR. DRURY: Join.

MS. LAMAR: I know it's getting late, but just try to give me a few seconds so I can object.

THE DEPONENT: Yes, we do not have targets.

BY MR. KIM:

Q Okay. And then what is the completion date?

A The completion date is the date that Asurint has gone out and pulled all the records after its quality assurance process and posted it to their website.

Q So that's not just the background report, then; is that right?

MR. DRURY: Object to the form.

THE DEPONENT: The completion date is when the background check report is completed.

BY MR. KIM:

Q What is Package?

And then here it's "4 Data plus 1 Recommendation No Auto Score."

A So the package is exactly what kind of a criminal search we're going to do.

In California, we run Package 3 or Package 4. Again, Package 3 means that they did not close a previous conviction, and Package 4 means they did disclose a previous conviction.

Q So as a part of the post-conditional offer application that the candidate did disclose a previous criminal conviction?

A Yes. So that's what the No Auto Score means. It means it will not clear. It will come to an adjudicator for review.

Q How about if it was a Package 3?

MS. LAMAR: Asked and answered.

MR. DRURY: Object to the form.

THE DEPONENT: Package 3 is described as the data plus 1 recommendation.

BY MR. KIM:

Q I'm sorry. I missed that. Could you say that again, please?

A Package 3 is defined as data plus recommendation.

Q And it doesn't include no auto score?

A Yes.

Q So what does "no auto score" mean?

A It means that the system is never going to clear this person. They're going to have to either be a passed or a fail. It would have to come to the adjudicator for review.

Q And then what is Reference 6?

A I don't know.

Q Should there be a Reference 3 and 4?

A I don't know. I have never seen a Reference 3 or 4.

Q So going back to Exhibit 9.

So under Section 2, Services, 2.1.5, could you read that for us, please, Ms. North?

A (Reading):

"Contractor shall not return Sex Offender Registry information in the states of California and Nevada."

Q So here, isn't Vons saying we don't want information from the sex offender registry?

MS. LAMAR: Objection; misstates the document, the document speaks for itself, calls for speculation.

MR. DRURY: I'll just object as well also based on legal conclusion.

And she's obviously not looking at the full

document either.
THE DEPONENT: Part of what we did -- and you have it at the end -- is that we created an addendum around the sex offender process and created a specific process in California and Nevada for sex offender registry.
BY MR. KIM:
Q Okay.
A We have a pricing addendum at the end of this.
Q So does that pricing addendum mean that this provision is essentially superseded?
MS. LAMAR: Objection to the extent it calls for a legal conclusion, calls for speculation.
BY MR. KIM:
Q So I guess my question is -- so are you saying that Vons wanted information from the sex offender registry as a part of its background reports?
MS. LAMAR: Objection; outside the scope of the notice topics, calls for speculation.
THE DEPONENT: Again, I'd refer you to the addendum which goes through the process that we ask for them to follow.
BY MR. KIM:
Q Okay. So we're going to Bates page 136 in Exhibit 9.

Is this the addendum you were referring to?
A Yes.
Q Okay. So the Asurint's Pricing Schedule.
So what here, I guess, is applicable to the issue of whether or not registry information should be returned in the background report?
A So basically what it's saying here is if someone is a sex offender, we're going to go through and check all of these things on this list.
Q And so this addendum, it appears, was signed by Debbie Eaton on December 12, 2012; is that correct?
MS. LAMAR: Objection; misstates the document, and the document speaks for itself --
THE DEPONENT: Yes.
MS. LAMAR: -- calls for speculation.
BY MR. KIM:
Q Is Debbie Eaton still with Safeway or Vons?
A No.
Q Okay. Is it your understanding that this addendum was -- became effective in December of 2012?
MS. LAMAR: Objection to the extent it calls for a legal conclusion, calls for speculation, also outside the scope of the notice topics.
THE DEPONENT: Yes.
///

BY MR. KIM:
Q Do you know what Vons's reasoning was in obtaining the sex offender registry information as a part of background reports after the contract provided that Asurint would not return that information?
MS. LAMAR: Objection; outside the scope of the notice topics, also misstates the document as it references this addendum, calls for speculation.
THE DEPONENT: I don't remember.
BY MR. KIM:
Q And, Ms. North, when did -- I should have asked this sooner.
When did you start working at Safeway?
MS. LAMAR: Asked and answered.
THE DEPONENT: 2006.
MR. DRURY: Join.
THE DEPONENT: 2006.
BY MR. KIM:
Q And in 2011, were you working in the HR department?
MS. LAMAR: Objection --
THE DEPONENT: Yes.
MS. LAMAR: -- outside the scope of the notice topics, relevance.
THE DEPONENT: Yes.

BY MR. KIM:
Q Did you work with Ms. Eaton?
MS. LAMAR: Outside the scope of the notice topics, relevance.
THE DEPONENT: Yes.
BY MR. KIM:
Q So is this addendum in effect today with Asurint?
A Yes.
Q Okay.
THE DEPONENT: I apologize if we're getting close to the end, but I really need to take a short break.
DEPOSITION REPORTER: Same.
MR. KIM: Okay. Should we take ten minutes?
MS. LAMAR: Yes.
MR. KIM: Okay.
(A recess was held.)
MR. KIM: Back on the record.
All right. I'm going to go back to Exhibit 9.
BY MR. KIM:
Q So, Ms. North, we're back at Exhibit 9, as you can see. It's the services agreement between Safeway and Asurint. I'm going to go down to the schedule, Schedule 1.1 to Services Agreement.

Do you see this here?
A Yes. Can I ask you to scroll down so I can see the entire document first, though?
Q Yes. If you want me to stop, please let me know.
A No, keep going.
Q That's the end.
A Thank you.
Q Okay. So I'm going up to the schedule.
Could you take a look at this section under Services, Performance Warranty?
A Okay. Didn't know that.
Q So would you agree with me, then, that the parties contracted to have Asurint guarantee an average completion turnaround of three business days for background reports?
MS. LAMAR: Objection; calls for speculation, the document speaks for itself.
MR. DRURY: Join in the objection. Also calls for a legal conclusion and interpretation of the document.
MS. LAMAR: Join.
THE DEPONENT: Yes, I would agree.
BY MR. KIM:
Q Okay.

A Although it doesn't really give any repercussions for not doing it in three days, so I don't know that it matters.
Q I'm sorry?
A It doesn't really give any repercussions for not doing it in three days, so I'm not sure it matters. But yes, it's here.
Q Okay. All right. And then here towards the bottom, Access to Services section, if you can take a moment just to read this.
A Yes.
Q Okay. So is this referencing the Asurint portal on the website that you had mentioned earlier?
A Yes.
Q Okay.
MR. DRURY: And I'll just object again to questions around the contract as calling for a legal conclusion and speculation.
BY MR. KIM:
Q And then this user, the user ID, that is the user ID that, for instance, you have to enter into the Asurint portal; is that right?
A Yes.
MR. KIM: Okay. So that's it for Exhibit 9. I'm just going to fly through these.

Okay. So this is going to be, on the screen, Exhibit 10.
DEPOSITION REPORTER: We've already marked a 10, according to my notes.
MR. KIM: Yeah, we probably did.
MS. LAMAR: Exhibit 10 is Plaintiff's 1 through 18.
MR. KIM: So this is Exhibit 11.
(Exhibit 11 was marked for identification.)
BY MR. KIM:
Q So this is going to be a little hard to read on the screen, Ms. North, but this --
Do you recall looking at the pre-adverse action notice earlier?
A Yes.
Q Okay.
MS. LAMAR: Before we start -- wait.
Just before we start questioning in Exhibit 10, it's Plaintiff's -- what's the Bates range?
MR. KIM: You're right. Bates PLAINTIFF 44 to 45.
DEPOSITION REPORTER: And, Ms. Lamar, you just said Exhibit 10. This is being marked as Exhibit 11.
MS. LAMAR: Thank you.
MR. KIM: Exhibit 11. That's right.

BY MR. KIM:
Q Okay. And then do you see right above that -- so this is an e-mail chain. So this is Mr. Carrillo, on February 28th, e-mailing compliance@asurint.com.
Do you see that?
A Yes.
Q Okay. Have you seen this e-mail before?
A No.
Q Okay. Would you have -- so here Mr. Carrillo states:
"Should I not return to work for the rest of the week? I will be submitting documentation regarding mitigation and rehabilitation within the next few days."
Would this trigger a job-related dispute notice from Asurint to Vons?
MS. LAMAR: Vague and ambiguous --
MR. DRURY: Objection --
I'm sorry. Please go ahead.
MS. LAMAR: Objection; vague and ambiguous.
What is the "this" you're referring to?
BY MR. KIM:
Q Would this statement in the e-mail, these statements in the e-mail, trigger a job-related dispute notice from Asurint to Vons?

A I don't know.

MR. DRURY: I'll just object; calls for speculation.

You're not showing the entire e-mail chain as well.

MR. KIM: Well, we'll get there.

BY MR. KIM:

Q I'm sorry. You said you don't know?

A I don't know.

Q Okay. So I'm moving up the chain, and this is now a response from Compliance at Asurint to Mr. Carrillo, dated Wednesday, March 1, 2023, at 6:10 a.m.

If you can just take a moment to look at this.

A Okay.

Q Have you seen this e-mail before?

A No.

Q Okay. Do you have access to this e-mail chain through the Asurint portal?

A No.

MR. DRURY: Objection; calls for speculation, outside the scope of topics.

MS. LAMAR: Join.

THE DEPONENT: No, I don't have access to compliance@asurint.com.

BY MR. KIM:

Q Okay. Well, why is that, that you don't have access to these communications relating to Mr. Carrillo's job-related dispute?

MS. LAMAR: Objection; calls for speculation.

MR. DRURY: Objection; calls for speculation.

THE DEPONENT: I don't know.

BY MR. KIM:

Q Is that a part of the standard process and procedure between Asurint and Vons?

MR. DRURY: Objection; calls for speculation.

He's the one that e-mailed Asurint.

MS. LAMAR: Join.

THE DEPONENT: I don't know.

MR. KIM: Okay. I'm going to continue to scroll down here.

We are now looking at Bates -- so this is going to be Exhibit 12, and this is Bates page PLAINTIFF 48, an e-mail from Mr. Sandoval Carrillo to Crystal Maving at Albertsons, copying compliance@asurint.com, Subject: Roberto Sandoval - mitigation and rehabilitation.

(Exhibit 12 was marked for identification.)

BY MR. KIM:

Q Have you seen this e-mail before, Ms. North?

A No.

Q I'll give you a second to review it.

A Okay.

Q Who is Crystal Maving?

A I don't know her. I understand from preparing for the deposition that she's a person who works in Vons.

Q I'm sorry. You said you understand her preparing for the deposition, and she is a person that works in --

A I apologize. I don't know, but I understand from the preparation for the deposition that she works for Vons. I've never heard of her before.

Q Okay. So you don't know what her title is at Vons?

A I do not.

Q Before preparation of the deposition, have you heard of Ms. Maving?

A No.

Q Do you have any idea why Mr. Carrillo Sandoval would be e-mailing her here?

MS. LAMAR: Objection; calls for speculation.

THE DEPONENT: No. In fact, in the pre-adverse action letter, it tells him to contact Asurint and/or contact criminal.checks.

BY MR. KIM:

Q Would you agree with me, though, that he did

copy Asurint here?

MS. LAMAR: Objection; calls for speculation, also the document speaks for itself.

MR. DRURY: Join.

THE DEPONENT: In the pre-adverse action, I think it's pretty clear in saying if you want to dispute the decision and provide mitigating evidence, to contact criminal.checks.

BY MR. KIM:

Q But would you agree with me that here, compliance@asurint.com is Asurint's e-mail address?

MS. LAMAR: Objection; the document speaks for itself, calls for speculation.

Again, she said she's never seen this document before.

THE DEPONENT: Yes, that's the e-mail address on the document.

MR. KIM: Okay. I'm sorry. Exhibit 12 includes -- it's 48 through -- actually, I take that back.

It's 48 and then PLAINTIFF 34, 35, 36, 37, 38.

MS. LAMAR: So Exhibit 12 is PLAINTIFF 48 and then PLAINTIFF 34 through 38?

MR. KIM: Correct.

///

BY MR. KIM:
Q So, Ms. North, have you seen this document before?
A I believe this is part of the e-mail that was sent to criminal.checks by Mr. Carrillo.
Q Okay. Did the AEC department, you, and/or Ms. Courtney Jones review this information?
A Courtney Jones reviewed his entire e-mail, yes.
Q And how do you know that Ms. Jones reviewed this e-mail?
A The scoring summary on the report indicates that Courtney reviewed it, the date she reviewed it, and her final decision.
Q But earlier when we looked at the report, we did not see a scoring decision; isn't that right?
A Yes.
Q So then how do you know that Ms. Jones reviewed this?
MS. LAMAR: Asked and answered.
THE DEPONENT: I looked at the report on my end, and my copy shows all that information.
MR. KIM: Ray, follow up.
I need Vons to produce that report. There was no background report produced by Vons in this case.
///

BY MR. KIM:
Q So, Ms. North, you never personally reviewed this document; is that right?
A Yes.
Q Okay. Do you know how much time -- so do you know how much time Ms. Jones spent reviewing this document?
A No.
Q So this is a letter from a lead teacher at Chula Vista High Learning Center, a high school.
Among other things, as you can see here, it states, during Mr. Sandoval's work there as a teacher:
"The students responded well, and they never had any incidents with Mr. Sandoval. At work he carried himself professionally, and I, as a lead teacher, never saw anything that would suggest otherwise."
Is this information that Ms. Jones took into account in adjudicating Mr. Carrillo?
A Yes, she would have read all this information.
Q And then how would this information have been applied in her adjudication process?
MS. LAMAR: Objection; vague.
THE DEPONENT: She would have looked and tried to figure out what date this was sent, which is,

unfortunately, not here, and what time frame he was referring to.
It's not clear to me, as I sit here and look at it, when Mr. Sandoval was a teacher and whether his conviction occurred before or after that time frame.
BY MR. KIM:
Q But she didn't follow up with Mr. Sandoval to inquire, did she?
MS. LAMAR: Calls for speculation.
THE DEPONENT: I don't think so.
BY MR. KIM:
Q Why not?
MS. LAMAR: Calls for speculation.
MR. DRURY: Join.
THE DEPONENT: If it was me, I would look at the totality of the evidence and say that it's not enough to convince me that there was rehabilitation.
BY MR. KIM:
Q So what would convince you that there was rehabilitation?
A All of those things in the EEOC guidelines.
MR. DRURY: Objection; calls for speculation.
MS. LAMAR: Join.
BY MR. KIM:
Q I'm sorry. All of those things in the what

guideline?
A In the EEOC guidelines.
So I would want to know has he held a similar position without any incidences? Has he not violated probation? What was the seriousness of his crime? How long ago did it occur? Did he serve jail time? When was he released from jail?
Q Did Vons produce a copy of these guidelines?
A No.
Q Are you representing that Vons relies on these guidelines as a part of its assessment?
A Yes.
MR. KIM: Ray, follow up.
BY MR. KIM:
Q Why were these guidelines not produced?
A I don't know.
Q This is wild.
So are these guidelines a part of Vons's standard policies and procedures for conducting assessments?
A I'd hate to give you a no and yes, but it's kind of a compound-asked question.
We don't use them in the original assessment. We use them as part of reviewing mitigating information provided by the applicant. It's part of the dispute

process.
MR. KIM: Okay. I would ask that Vons produce this, Ms. Lamar.
BY MR. KIM:
Q So going down to Bates 35, this letter dated August 13, 2017.
Ms. North, have you seen this document before?
A Yes.
Q Okay. Did you review this document as a part of Mr. Carrillo's assessment?
A No.
Q Okay. Do you know if Ms. Jones reviewed this document as a part of Mr. Carrillo's assessment?
A Yes.
Q How do you know that?
A We talked about it.
Q So you recall discussing this specific document?
A All the documents, yes.
Q And where is this discussion memorialized?
MS. LAMAR: Lacks foundation.
BY MR. KIM:
Q Is this discussion memorialized?
A No.
Q So you recall having a discussion with

Ms. Jones about this document in early 2023?
A Yes.
Q So how did this document impact her decision to adjudicate Mr. Carrillo as a "no hire"?
MS. LAMAR: Objection; vague, calls for speculation.
THE DEPONENT: Again, I can only answer for myself.
But he's referring to a time period that is prior to his conviction.
BY MR. KIM:
Q So then the fact that he had served time and rehabilitated through the system, wouldn't that be a plus in terms of hiring Mr. Carrillo?
MS. LAMAR: Objection; lacks foundation.
THE DEPONENT: I don't know that there's anything in these documents -- and perhaps I'm misremembering -- that says that he served time.
BY MR. KIM:
Q I'm scrolling down to Bates page 36, a letter dated August 11, 2017, from Dr. James Reavis.
Ms. North, have you seen this document before?
A Yes.
Q Okay. When did you see this document?
A In preparation for the day today, the

deposition today.
Q Okay. Did you review this document as a part of assessing Mr. Carrillo for the deli clerk position?
A I did not review it as part of his mitigating information, no.
Q Is it your position that Courtney Jones did?
A Yes.
Q Do you know for a fact that she reviewed this specific document?
A No.
Q Okay. Looking at this letter dated -- this is Bates page 37, a letter dated August 12, 2017, from Jeff Mechling, a Southwest High School Learning Center teacher there.
Did you review this document as a part of assessing Mr. Carrillo for employment?
A No.
Q Do you know whether Ms. Jones reviewed this document in assessing Mr. Carrillo?
A Yes.
Q So going down to Bates page 38, this is a certificate of achievement that Mr. Carrillo produced for successfully completing the residential portion of the dual diagnosis residential drug abuse treatment program on July 15, 2022.

Aside from preparing for this deposition, have you seen this document before?
A No.
Q Do you know if Ms. Jones reviewed this document in assessing Mr. Carrillo for the deli clerk position?
A We didn't assess him for deli clerk. We assessed him for GM/HBC.
But yes, I know she reviewed this one.
Q How do you know that?
A We discussed the fact that he provided a certificate of achievement related to a drug abuse treatment program, which had nothing to do with his conviction.
Q Is there -- what information could he have submitted that would have helped him getting hired?
MS. LAMAR: Objection; calls for speculation, improper hypothetical.
MR. DRURY: Join.
THE DEPONENT: Something proving that -- again, the EEOC guidelines I went through before: that he had a similar position that he hadn't gotten into any problems; that he had no probation violations if he had been released from jail.
So I went through those earlier, and those would be the same things that would be in the background

report.
BY MR. KIM:
Q And again, Ms. Jones did not ask him for this information; is that right?
MS. LAMAR: Calls for speculation.
THE DEPONENT: Yes.
MR. KIM: Okay. So Exhibit 13. This is Bates PLAINTIFF 544, an e-mail from Mr. Sandoval Carrillo to Ms. Maving, dated March 6, 2023, at 8:51 a.m.
(Exhibit 13 was marked for identification.)
BY MR. KIM:
Q Ms. North, have you seen this e-mail before?
MS. LAMAR: Before you answer --
Is Exhibit 13 only PLAINTIFF 544?
MR. KIM: Sorry. PLAINTIFF 544 to 546.
MS. LAMAR: All right. Make sure you look at all of the exhibit, Ms. North.
BY MR. KIM:
Q So this is --
A Okay.
Q So this is an e-mail chain, so I'm going to go backwards here.
So we're looking at the bottom of 545 to 546, an e-mail from Mr. Sandoval Carrillo to Ms. Maving, March 6th.

Have you seen this e-mail before, aside from preparing for this deposition?
A I have seen the contents of this e-mail before. It appears in the summary notes that Asurint provided on March 6th.
MS. LAMAR: Mr. Kim, can you scroll down to the bottom so we could see the Bates stamp number, please?
MR. KIM: It's 546.
BY MR. KIM:
Q Those summary notes, were they produced in this case, Ms. North?
A The summary notes and the scoring is here in what I'm seeing that apparently you do not see on the copy you received.
MR. KIM: Ray, follow up.
I would ask that Vons produce these summary notes --
BY MR. KIM:
Q -- which, Ms. North, if I'm not mistaken, those summary notes are a part of the scoring information in the background report?
A The summary notes are going to tell us every time a document or a communication from -- with mitigating circumstances is coming from the applicant.
So what I'm seeing on the summary notes are the

day that the FCRA 613 was e-mailed, the day the consumer report was e-mailed, the date that Mr. Sandoval went in and reviewed his consumer report using the Asurint website.
And then there are two statements that you just read to me in these e-mails that were given by Mr. Sandoval: one on March 6th at one o'clock, one on March 6th at 3:53.
And then we have a notification of an adverse action, and then we have a notification that he went in and used his pin and viewed his adverse action report.
MR. KIM: Ms. Lamar, I would ask that this information be produced.
At this point, I'm just -- I'm just really frustrated. I don't know what more I could say.
BY MR. KIM:
Q And then there's Ms. Maving's response on March 6th, Ms. Maving from Albertsons:
"Good morning,
"I have no access to background checks, and I am not informed when an applicant fails to pass. I do not have the ability to override your background check. You will need to go through Asurint."

Do you know why Ms. Maving sent this e-mail?
MR. DRURY: Objection; calls for speculation.
She said before that she doesn't know Crystal Maving.
MS. LAMAR: Join. And I'll also add this is outside the scope of the notice topics.
THE DEPONENT: I do not know.
MR. KIM: So are we on Exhibit 13?
DEPOSITION REPORTER: This will be 14.
MR. KIM: Okay. Exhibit 14 will be Bates Numbers 548 to 549.
(Exhibit 14 was marked for identification.)
BY MR. KIM:
Q Ms. North, this is an e-mail from Mr. Sandoval Carrillo dated March 8th, Subject: Roberto Sandoval mitigating and rehabilitative evidence, to criminal.checks@albertsons.com.
Do you see that?
A Yes.
Q Have you seen this e-mail before, aside from in preparation for this deposition?
A No.
MS. LAMAR: Hold on. It's two pages, so make sure you review both pages before you say that you haven't seen it before.

MR. KIM: And I was referring specifically to this one e-mail.
BY MR. KIM:
Q So here he states:
"I would like to know if I can apply for other positions for which my offense is not related, such as overnight stocking clerk."
Did Vons take into account Mr. Carrillo's request to be employed as an overnight stocking clerk?
A I don't know because it wouldn't have made any difference. It requires the same contact with at-risk people, so we would have had the same decision.
Q Who would the at-risk people be working overnight in stocking?
MS. LAMAR: Objection; assumes facts.
THE DEPONENT: Our overnight stocking clerks work during the day as well. They work in the early morning when we have a lot of elderly, at-risk people coming in.
But also, they're going to be working side by side, again, with minors in the stores.
BY MR. KIM:
Q Does --
A The other thing to note is that we don't do

background checks when we move people into other positions except for in pharmacy.
So we consider every position in the store to be in contact with people because somebody could be moving around.
So whether they have a small amount of contact or a large amount of contact, they all have contact, and they all can go in the back restrooms with people.
But, in addition, we're not going to do another check to move somebody to deli clerk from stocking clerk.
Q Okay. Then I'm scrolling down to Bates 549, an e-mail from Mr. Carrillo to, again, criminal.checks@albertsons.com, dated Friday, March 10th, Subject: Can I apply for overnight positions?
If you can take a moment to review that.
A Yes.
Q Have you seen this e-mail before, aside from in preparation for this deposition?
A No.
MR. KIM: Okay. I'm going to put Exhibit 15.
(Exhibit 15 was marked for identification.)
BY MR. KIM:
Q Ms. North, do you see this document?
A Yes.
Q Does this look familiar to you at all?

A No.
MS. LAMAR: Hold on. What Bates stamp number is Exhibit 15?
MR. KIM: This has not been produced. This is -- well, I think maybe Ms. North will tell us what it is, possibly.
MS. LAMAR: What are the pages? We need to know what the full content of this document is. Stop showing her parts of exhibits.
MR. KIM: Stop trying to what?
MS. LAMAR: I didn't say stop trying to do anything. I said stop showing her parts of exhibits.
MR. KIM: Well, that's not my intention.
BY MR. KIM:
Q So, Ms. North, is this a job description for deli associate for Albertsons Companies?
A I don't know. I've never seen this before.
Q Okay. Have you ever seen job descriptions for Albertsons deli associates?
MS. LAMAR: Objection; outside the scope.
THE DEPONENT: No.
BY MR. KIM:
Q Okay. Do you know if -- so does Vons hire deli associates that are minors?
A Yes.

Q They do? Okay.
So I'm going to scroll down here. Here it says:
"What you bring to the table:
"You are 18 years of age or older."
So doesn't this mean that Albertsons does not hire minors?
MS. LAMAR: Objection; misstates her prior testimony, argumentative.
She's already answered that question.
THE DEPONENT: The one you're looking at is for California, and in California, there are minor work rules that do not allow them to run a slicer. But in a lot of states, there's minors.
BY MR. KIM:
Q Okay. So in California, Albertsons does not hire minors to work as a deli clerk; is that right?
MS. LAMAR: Objection; misstates testimony.
She said the minors are not allowed to run slicers.
MR. DRURY: Join.
THE DEPONENT: I have absolutely no idea.
And again, I want to go back to the fact that he did not apply for a deli clerk position.
///

BY MR. KIM:

Q Okay. Then let me go to -- so but is it your testimony that Albertsons does not hire minors in California for the deli clerk positions?

A No.

Q Then why does it say here that you have to be 18 years of age or older?

MS. LAMAR: Objection; calls for speculation.

And she said she's never seen this document before. We don't even know that it applies to Vons.

MR. DRURY: And I don't think we know the authenticity of the document. It's a non-produced document that in hour seven of the deposition we're now being shown.

MS. LAMAR: And also, it's outside the scope.

THE DEPONENT: And I have absolutely no idea what the labor relations agreements are from store to store, which could potentially also impact where minors could work.

And it may be on a store-by-store basis. I don't know.

BY MR. KIM:

Q Okay. This is -- going back to Exhibit 1, this is Vons Production 33.

Do you see this document here, "Albertsons Vons

Pavilions, Southern California Division, Notice of Availability"?

A Yes.

Q Okay. Have you seen this document before?

A Only as part of the preparation.

Q Okay. So --

MS. LAMAR: And this is not Exhibit 1. Exhibit 1 was Plaintiff's amended deposition notice.

MR. KIM: You're correct. Thank you. Thank you, Ms. Lamar.

This is Exhibit 2.

BY MR. KIM:

Q So do you see the position that Mr. Sandoval applied for beside the word "position"?

A This is not the position he applied for. The position he applied for is on the background check report as a GM/HBC clerk.

They may have moved him to a deli clerk position. I don't know.

Q So how do you know that this is not correct and the background report is correct?

MS. LAMAR: Objection; misstates the document.

And we got like a minute left.

THE DEPONENT: As I was describing earlier, the background check report is coming directly from the ATS

system. So that's the position that he applied for online, was the GM/HBC position.

BY MR. KIM:

Q I'm going to scroll down here to Bates 49.

Do you see here "Code of Safe Work Practices, Deli Department"?

Why is it that Vons would have provided him the code of safe work practices for the deli department?

MS. LAMAR: Objection. It's misstating her testimony.

And just to clarify, you're asking about what position he applied for; correct?

MR. KIM: I'm asking why Vons provided Mr. Carrillo and had him sign this code of safe work practices for the deli department.

MS. LAMAR: These are documents he signed after he was extended an offer. This has nothing to do with what he applied for.

That's why I want to make sure that you're asking the correct question, because I think you're conflating two different things.

MR. KIM: Well, my question is my question, Ms. Lamar. So I'd just ask that you let your client respond.

MS. LAMAR: All right. This is the last

question. It's six o'clock. We've gone beyond 40 minutes.

THE DEPONENT: I don't know the answer to that. You would have to talk to the hiring people in the store. I assume they decided to move him from GM/HBC to deli clerk.

BY MR. KIM:

Q Okay. Last question here. This is -- we're looking at Bates 115 in Exhibit 2.

So this is a job description for deli clerk for March 2015.

Why did Vons produce this service deli clerk job description?

A I don't know. I assume you asked for it.

Q Well, not for anything that's not pertinent.

Do you know if this was the job description for a deli clerk in January of 2023?

A I don't know.

MR. KIM: Okay. Those are all of my questions, Ms. North. Thank you so much.

And I'm reserving the right to call a Vons PMK back for further deposition following its production of the numerous documents that were withheld and should have been produced in response to discovery.

MS. LAMAR: We'll be objecting.

MR. DRURY: And Asurint will just reserve its right, but it has no questions at this point.

DEPOSITION REPORTER: Ms. Lamar, would you like a copy order?

MS. LAMAR: Yes.

DEPOSITION REPORTER: Mr. Drury?

MR. DRURY: Yes, please.

DEPOSITION REPORTER: Thank you.

MR. KIM: Ms. Dichirico, how -- so I just want to put on the record I would like a copy, no exhibits.

There's always this funny thing that happens with Hines and exhibits, for some reason, but --

DEPOSITION REPORTER: If you're marking exhibits, you're going to give them to me, and they're going to get attached.

MR. KIM: Yeah, but can you just put on the record I don't want hard copies of exhibits, please.

DEPOSITION REPORTER: Absolutely. You can get a digital copy.

(Ending time: 6:03 p.m.)

REPORTER'S CERTIFICATE

I, MICHELLE DICHIRICO, Certified Shorthand Reporter, California Certificate Number 13779, certify:

That the foregoing proceedings were taken before me at the time therein set forth, at which time the witness was put under oath by me;

That the testimony of the witness, the questions propounded, and all objections and statements made at the time of the examination were recorded stenographically by me and were thereafter transcribed;

That the foregoing is a true and correct transcript of my shorthand notes so taken.

I further certify that I am not a relative or employee of any attorney of the parties, nor financially interested in the action.

I declare under penalty of perjury under the laws of California that the foregoing is true and correct.

Dated this 10th day of November, 2025.

_____
MICHELLE DICHIRICO, CSR 13779

STATE OF CALIFORNIA)
) SS.
COUNTY OF LOS ANGELES)

I, the undersigned, declare under penalty of perjury:

That I have read the foregoing transcript;

That I have made any corrections, additions, or deletions that I was desirous of making;

That the foregoing is a true and correct transcript of my testimony contained therein.

EXECUTED this _____ day of _____, 20 _____, at _____ [City], _____ [State].

_____
[Toni North]

EXHIBIT 5

RAY KIM LAW, APC
Raymond Y. Kim (SBN 251210)
112 E. Amerige Avenue, Suite 240
Fullerton, CA 92832
Telephone: 833-729-5529
Facsimile: 833-972-9546
E-mail: ray@raykimlaw.com

Attorneys for Plaintiff
Roberto Sandoval Carrillo

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiffs,

vs.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT, and DOES 1-5.

Defendants.

Case No.: 8:25−cv−00191−SRM−KES

AMENDED NOTICE OF DEPOSITION OF THE PERSON MOST KNOWLEDGEABLE FOR THE VONS COMPANIES, INC.

Date: Wednesday, October 29, 2025
Time: 9:00 a.m. PST
Place: Virtual - Zoom

TO ALL PARTIES AND THEIR RESPECTIVE ATTORNEYS OF RECORD:

Pursuant to Federal Rule of Civil Procedure 30(b)(6), please take notice that plaintiff Roberto Sandoval Carrillo ("Plaintiff"), though his counsel of record, will take the deposition of the person most knowledgeable of THE VONS COMPANIES, INC. ("Vons") on **October 29, 2025, at 9:00 a.m**. This deposition will be taken pursuant to FRCP 30 *et seq*. The deposition shall take place virtually via Zoom videoconference. The deposition will be taken before a duly certified shorthand reporter and will continue thereafter day-to-day, Saturdays, Sundays and statutory holidays excepted, until completed. Additionally, this deposition is intended for possible use at trial.

Examination of the designated agent(s) or representative(s) will be directed to, but not limited, the person most knowledgeable on the following matters:

DEFINITIONS

1. "ASURINT" refers to defendant One Source Technology LLC d/b/a Asurint ("Asurint") or anyone acting on behalf of Asurint, including but not limited to the employees, agents, representatives, and attorneys of Asurint.

2. "CARRILLO" or "Plaintiff" refers to plaintiff Roberto Sandoval Carrillo.

3. "COMMUNICATION" means any transmission or exchange of information, statements, ideas, thought or sentiment between or among two or more PERSONS, orally or in writing, and include any conversation or discussion, whether face-to-face or by means of a telephone, telegraph, telex, telecopier, facsimile transmission, letter, e-mail, electronic or other medium.

4. "CONSUMER REPORT" means any written, oral, or other communication of any information by a consumer reporting agency bearing on a consumer's credit worthiness, credit standing, credit capacity, character, general reputation, personal characteristics, or mode of living which is used or expected to be used or collected in whole or in part for the purpose of serving as a factor in

establishing the consumer's eligibility for credit or insurance to be used primarily for personal, family, or household purposes; employment purposes; or another purpose authorized by Section 1681b of the federal Fair Credit Reporting Act. CONSUMER REPORT also means an "investigative consumer report" as defined in Cal. Civ. Code § 1786.2.

5. "DOCUMENTS" means written, printed, typed, or visually or orally reproduced material of any kind, whether or not privileged, including, but not limited to, all letters, emails, correspondence, contracts, agreements, bills, orders, receipts, records, books, computer tapes and printouts, memoranda, notes, notebooks, maps, sketches, cablegrams, telegrams, reports, press releases, advertising and promotional literature, prints, drawings, plans, photographs, printed forms, manuals, brochures, lists, publications, videotapes, other tape recordings, films, microfilm, electronic media and all other writings, including drafts, typings, printings, minutes or copies or reproductions thereof in the possession, custody, or control of YOU.

6. "FAIR CHANCE ACT" means the California Fair Chance Act, Government Code § 12952.

7. "MEGAN'S LAW" means California Megan's Law, Penal Code § 290.46 ("Megan's Law"), which prohibits the use of information from the Megan's Law Website from being used for employment purposes.

8. "PERSON(S)" mean natural persons as well as other entities, including but not limited to businesses, corporations, associations, partnerships, firms, organizations, and governmental (municipal, state, or federal) agencies or bodies.

9. "RELATING TO" means all DOCUMENTS and/or COMMUNICATIONS constituting, containing, evidencing, showing, relating, recording, or referring in any way, directly or indirectly, to the subject matter of the Request, as well as all DOCUMENTS and/or COMMUNICATIONS underlying, supporting, attached or appended to such DOCUMENTS and/or COMMUNICATIONS.

10. "YOU," "VONS" and "YOUR" refer to defendant The Vons Companies, Inc. ("Vons") or anyone acting on behalf of Vons, including but not limited to the employees, agents, representatives, and attorneys of Vons.

MATTERS FOR EXAMINATION

CATEGORY NO. 1:

DOCUMENTS produced by YOU in this action.

CATEGORY NO. 2:

YOUR responses to CARRILLO's written discovery in this action, including responses and supplemental responses to Requests for Admission, Requests for Production, and Interrogatories.

CATEGORY NO. 3:

The roles and responsibilities of ASURINT RELATING TO YOUR employee hiring process and procedures from January 2023 to the present.

CATEGORY NO. 4:

YOUR and ASURINT's agreement RELATING TO recruiting, background checks, and all other services provided by ASURINT for VONS from January 2023 to the present

CATEGORY NO. 5:

The total number of PERSONS in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history.

CATEGORY NO. 6:

The total number of PERSONS in California who applied for employment with YOU and were granted employment (e.g. employment offer given, conditional offer of employment not rescinded) despite their conviction history.

CATEGORY NO. 7:

The total number of PERSONS in California who applied for employment with

YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry.

CATEGORY NO. 8:

The total number of PERSONS in California who applied for employment with YOU and were granted employment (e.g. employment offer given, conditional offer of employment not rescinded) despite information from the MEGAN'S LAW registry on their CONSUMER REPORT.

CATEGORY NO. 9:

YOUR policies and procedures for conducting individualized assessments of prospective employees from January 2023 to the present.

CATEGORY NO. 10:

YOUR policies and procedures RELATING TO the handling of prospective employee applications with conviction histories from January 2023 to the present.

CATEGORY NO. 11:

YOUR policies and procedures RELATING TO compliance with the FAIR CHANCE ACT.

CATEGORY NO. 12:

YOUR COMMUNICATIONS RELATING TO compliance with the Fair Chance Act from January 2023 to the present.

CATEGORY NO. 13

YOUR employee training manuals RELATING TO compliance with the FAIR CHANCE ACT.

CATEGORY NO. 14

YOUR policies and procedures RELATING TO compliance with the MEGAN'S LAW.

CATEGORY NO. 15:

YOUR COMMUNICATIONS RELATING TO compliance with the

MEGAN'S LAW from January 2023 to the present.

CATEGORY NO. 16:

YOUR employee training manuals RELATING TO compliance with the MEGAN'S LAW.

CATEGORY NO. 17:

YOUR policies and procedures RELATING TO conducting an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position.

CATEGORY NO. 18:

YOUR employee training manuals RELATING TO conducting an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position.

CATEGORY NO. 19:

YOUR department/team responsible for compliance with the FAIR CHANCE ACT, including the name of the department, the number of employees in the department, the titles of each employee, and the number of employees with each title.

CATEGORY NO. 20:

YOUR "individualized assessment" (as that term is used in the FAIR CHANCE ACT) of CARRILLO in 2023, if any.

CATEGORY NO. 21:

Facts RELATING TO YOUR individualized assessments for the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16,** from Plaintiff's document requests served on or about July 23, 2025.

CATEGORY NO. 22:

CONSUMER REPORTS for the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16,** from Plaintiff's document requests

served on or about July 23, 2025.

CATEGORY NO. 23:

The job description (including posting, title, role, and responsibilities) for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO (or rescinded CARRILLO's employment offer) since January 2023.

CATEGORY NO. 24:

The job requirements (including posting, title, role, and responsibilities) for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO (or rescinded CARRILLO's employment offer) since January 2023.

CATEGORY NO. 25:

YOUR hiring policies and procedures for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO (or rescinded from CARRILLO).

CATEGORY NO. 26:

All COMMUNICATIONS (e.g. written notices, emails, or letters) YOU provided to the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16** stating YOUR final decision to deny an application solely or in part because of the applicant's conviction history, pursuant to the FAIR CHANCE ACT.

CATEGORY NO. 27:

YOUR policies and procedures RELATING TO any procedure YOU have for the applicant to challenge the decision to deny employment or request reconsideration, pursuant to the FAIR CHANCE ACT.

CATEGORY NO. 28:

Written complaints to YOU relating to compliance with the MEGAN'S LAW.

CATEGORY NO. 29:

Written complaints to YOU relating to compliance with the FAIR CHANCE ACT.

CATEGORY NO. 30:

ASURINT's communications with YOU RELATING TO ASURINT's relationship and services with YOU.

CATEGORY NO. 31:

The total number of persons in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information relating to sex offender information.

CATEGORY NO. 32:

The total number of persons in California who applied for employment with YOU and were granted employment (e.g. employment offer given, conditional offer of employment not rescinded) despite sex offender information being present in their CONSUMER REPORT.

CATEGORY NO. 33:

A summary of the results of YOUR individualized assessments for the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 33** from Plaintiff's document requests served on or about July 23, 2025.

The corporate relationship between and among YOU and Albertsons Companies, Inc.

CATEGORY NO. 34:

The role of Albertsons Companies, Inc. in YOUR hiring process since January 2021.

DATED: October 15, 2025

RAY KIM LAW APC

By: _____
Raymond Y. Kim
Attorneys for Plaintiff
Roberto Sandoval Carrillo

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of **AMENDED NOTICE OF DEPOSITION OF THE PERSON MOST QUALIFIED FOR THE VONS COMPANIES, INC.** was served on all counsel of record below via electronic mail.

Rod M. Fliegel (SBN 168289) rfliegel@littler.com LITTLER MENDELSON, P.C. 101 Second Street, Suite 1000 San Francisco, California 94105 Tel: (415) 433-1940 Fax: (415) 399-8490 Karimah J. Lamar (SBN 246862) klamar@littler.com Christine Fitzgerald (SBN 259014) cfitzgerald@littler.com Robert Geiger (SBN 322914) rgeiger@littler.com LITTLER MENDELSON, P.C. 501 W. Broadway, Suite 900 San Diego, California 92101 Tel (619) 232 -0441 Fax: (619) 232-4302 Attorneys for Defendant THE VONS COMPANIES, INC.	SEYFARTH SHAW LLP Jasmine Stanzick (SBN 354704) jstanzick@seyfarth.com 2029 Century Park East, Suite 3500 Los Angeles, California 90067-3021 Telephone: (310) 277-7200 Facsimile: (310) 201-5219 Attorneys for Defendant ONE SOURCE TECHNOLOGY, LLC d/b/a ASURINT

Executed on October 15, 2025, at Fullerton, CA.

By: */s/ Thu Tran*

EXHIBIT 6

Rod M. Fliegel, Bar No. 168289
rfliegel@littler.com
LITTLER MENDELSON, P.C.
101 Second Street, Suite 1000
San Francisco, California 94105
Telephone: 415.433.1940
Facsimile: 415.399.8490

Karimah J. Lamar, Bar No. 246862
klamar@littler.com
Christine Fitzgerald, Bar No. 259014
cfitzgerald@littler.com
Robert Geiger, Bar No. 322914
rgeiger@littler.com
LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
Telephone: 619.232.0441
Facsimile: 619.232.4302

Attorneys for Defendant
THE VONS COMPANIES, INC.

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiff,

v.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURING; and DOES 1-5,

Defendants.

Case No. 8:25-cv-00191-SRM-KES

DEFENDANT THE VONS COMPANIES, INC.'S SECOND SUPPLEMENTAL OBJECTIONS AND RESPONSES TO PLAINTIFF ROBERTO SANDOVAL CARRILLO'S INTERROGATORIES, SET ONE

Trial Date: Not Yet Set
Complaint Filed: February 6, 2025

PROPOUNDING PARTY: Plaintiff ROBERTO SANDOVAL CARRILLO

RESPONDING PARTY: Defendant THE VONS COMPANIES, INC.

SET NUMBER: ONE

TO PLAINTIFF ROBERTO SANDOVAL CARRILLO AND HIS ATTORNEYS OF RECORD:

Pursuant to Federal Rule of Civil Procedure 33, Defendant The Vons Companies, Inc. (hereinafter "Defendant") hereby provides responses to the Interrogatories, Set One, served upon it by Plaintiff Roberto Sandoval Carrillo ("Plaintiff") as follows:

PRELIMINARY STATEMENT

The following answers are based upon information presently known and available to Defendant. Discovery, both internal and external, is still ongoing, and Defendant reserves the right to supplement these answers with subsequently discovered information and/or to introduce such information at trial. Each answer is subject to all objections as to competence, relevance, materiality, propriety, admissibility, and any and all other objections or grounds that would require exclusion of the answers produced by Defendant, or any part thereof, if any of these answers were presented in court. All appropriate objections and grounds are hereby reserved and may be interposed at trial regarding the introduction into evidence of an answer produced by Defendant herein.

The fact that Defendant has responded to or objected to any interrogatory or part thereof may not be taken as an admission that they admit the existence of any fact set forth in or assumed by such interrogatory or that such answer constitutes relevant evidence other than as expressly admitted herein. No implied admissions whatsoever are intended by these answers. The fact that Defendant has answered part or all of any interrogatory shall not be construed to be a waiver by Defendant of any objections to part or all of any interrogatory.

To the extent that part or all of any interrogatory calls for information which constitutes material prepared in anticipation of litigation or for trial, information or material covered by the work-product doctrine or information protected from disclosure by virtue of a privilege including, but not limited to, the attorney-client communication privilege, Responding Party objects to each and every such interrogatory and will not supply or render any information or material protected from discovery by virtue of the work-product

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San Diego, California 92101
619.232.0441

doctrine or any privilege including, but not limited to, the attorney-client communication privilege. Also, Responding Party objects to the extent the interrogatories seek information relating to Defendant's and its counsel's legal conclusions and research and will not provide such information.

To the extent that any interrogatory seeks to discover the residence address and/or telephone number of any individual, Responding Party objects to each and every such interrogatory on the grounds that such interrogatory seeks information privileged from disclosure on the basis of said individual's right to privacy and confidentiality and because such interrogatory seeks information which is not relevant to the subject matter of this action nor reasonably calculated to lead to the discovery of admissible evidence.

The above-stated objections are hereby made applicable to each and all of the interrogatories and are incorporated by reference as though fully set forth in each answer to each interrogatory. Without waiving any of the foregoing objections, Defendant responds as follows:

RESPONSES TO INTERROGATORIES

INTERROGATORY NO. 1:

State in detail the roles and responsibilities of ASURINT RELATING TO YOUR employee hiring process and procedures from January 2023 to the present.

RESPONSE TO INTERROGATORY NO. 1:

Responding Party objects to the term "in detail" because it is vague and calls for irrelevant information not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this interrogatory to the extent it seeks the production of confidential and proprietary business information. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

ASURINT provides background check services for Responding Party.

INTERROGATORY NO. 2:

State all facts RELATING TO YOUR department/team responsible for compliance with the FAIR CHANCE ACT, including the name of the department, the number of

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619.232.0441

employees in the department, the titles of each employee, and the number of employees with each title.

RESPONSE TO INTERROGATORY NO. 2:

Responding Party objects to this interrogatory because it is irrelevant to Plaintiff's inadequacy as a class representative, and discovery should be phased to address Plaintiff's inadequacy first. Responding Party objects to the term "RELATING TO" because it is overbroad. Responding Party objects to this interrogatory to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this interrogatory to the extent it seeks the production of confidential and proprietary business information.

SUPPLEMENTAL RESPONSE TO INTERROGATORY NO. 2:

Responding Party objects to the term "RELATING TO" because it is overbroad. Responding Party objects to this interrogatory to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this interrogatory to the extent it seeks the production of confidential and proprietary business information. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Toni North (AEC Onboarding Manager), and Courtney Jones (HR Compliance Analyst) were the team responsible for conducting Plaintiff's individualized assessment to be compliant with the Fair Chance Act.

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

INTERROGATORY NO. 3:

State all facts RELATING TO why YOU hired CARRILLO for the Deli Clerk position with Vons in San Diego, California in 2023, including specifically what information regarding CARRILLO was considered and evaluated and the PERSONS (name and title) who were involved in the decision- making process.

RESPONSE TO INTERROGATORY NO. 3:

Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this interrogatory to the extent it seeks the production of confidential and proprietary business information. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Plaintiff was hired for the Deli Clerk position at Vons in San Diego, California in 2023 due to an urgent operational need for deli clerks at the store. At the time of hire, the store was experiencing a staffing shortage that impacted its ability to maintain service levels and meet customer demand. As a result, Plaintiff was hired prior to the completion of a background check, consistent with the company's practice of extending conditional offers of employment subject to satisfactory completion of pre-employment screening. The information considered at the time of hire included Plaintiff's application materials, prior work experience in food service, and his interview. Hiring decisions are generally made by the Store Director.

INTERROGATORY NO. 4:

State all facts RELATING TO why YOU denied CARRILLO employment (or rescinded CARRILLO's employment offer) in 2023, including specifically what information regarding CARRILLO was considered and evaluated and the PERSONS (name and title) who were involved in the decision- making process.

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RESPONSE TO INTERROGATORY NO. 4:

Responding Party objects to the phrase "denied CARRILLO employment" as vague, ambiguous, and irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this interrogatory to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objection, Responding Party responds as follows:

Importantly, Plaintiff was hired for the Deli Clerk position at Vons in San Diego, California in 2023 due to an urgent operational need for deli clerks at the store. At the time of hire, the store was experiencing a staffing shortage that impacted its ability to maintain service levels and meet customer demand. As a result, Plaintiff was hired prior to the completion of a background check, consistent with the company's practice of extending conditional offers of employment subject to satisfactory completion of pre-employment screening. His continued employment was contingent upon successful completion of a background check. After Plaintiff had worked for a period of time, the results of his background check were received and revealed that Plaintiff had a conviction requiring registration as a sex offender. In accordance with California Government Code section 12952, the Responding Party conducted an individualized assessment to determine whether Plaintiff's conviction history had a direct and adverse relationship with the specific duties of the Deli Clerk position. Plaintiff was provided written notice of the preliminary decision to rescind his employment offer, along with a copy of the conviction history report, and an opportunity to respond with evidence of rehabilitation or mitigating circumstances. After considering all information submitted, the Responding Party made a final decision to terminate Plaintiff's employment based on the conclusion that his conviction history had a direct and adverse relationship to the duties of the Deli Clerk position, including but not limited to interaction with minors. The individuals involved in

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619.232.0441

the decision-making process included Toni North, AEC Onboarding Manager, and Courtney Jones, HR Compliance Analyst.

INTERROGATORY NO. 5:

State all facts RELATING TO any "individualized assessment" (as that term is used in the FAIR CHANCE ACT) of CARRILLO YOU conducted in 2023, including the names and titles of the PERSONS who conducted the assessment, the date when it was conducted, specifically what information regarding CARRILLO was considered and evaluated, and whether YOU communicated with CARRILLO in connection with the assessment.

RESPONSE TO INTERROGATORY NO. 5:

Responding Party objects to this interrogatory to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this interrogatory on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this interrogatory to the extent it seeks the production of confidential and proprietary business information. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

In accordance with California Government Code section 12952, on February 28, 2023, Toni North conducted an individualized assessment to determine whether Plaintiff's conviction history had a direct and adverse relationship with the specific duties of the Deli Clerk position. She determined his conviction history did have a direct and adverse relationship with the specific duties of the Deli Clerk position because Plaintiff interacted with children at work (as customers and as coworkers), among other concerns. On March 6, 2023, Courtney Jones reviewed Plaintiff's appeal and additional documents Plaintiff submitted to support his appeal. Based on Ms. Jones's individualized assessment, she independently determined that Plaintiff's conviction history had a direct and adverse relationship with the specific duties of the Deli Clerk position.

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INTERROGATORY NO. 6:

State the total number of PERSONS in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history.

RESPONSE TO INTERROGATORY NO. 6:

Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects on the grounds this interrogatory is overbroad in scope and time and therefore calls for irrelevant information not reasonably calculated to lead to the discovery of admissible evidence.

SUPPLEMENTAL RESPONSE TO INTERROGATORY NO. 6:

Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects on the grounds this interrogatory is overbroad in scope and time and therefore calls for irrelevant information not reasonably calculated to lead to the discovery of admissible evidence. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

There are approximately 717 persons in California through February 2025 with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not denied employment *as a result of* their conviction history. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes reviews of background check reports that include whether the applicant has criminal or conviction history and includes a process to allow the applicant to provide mitigating information.

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SECOND SUPPLEMENTAL RESPONSE TO INTERROGATORY NO. 6:

Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects on the grounds this interrogatory is overbroad in scope and time and therefore calls for irrelevant information not reasonably calculated to lead to the discovery of admissible evidence. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

There are approximately 901 persons in California through September 2025 with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party, which includes Vons and Pavilions banner stores. However, they were not denied employment *as a result of* their conviction history. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes reviews of background check reports that include whether the applicant has criminal or conviction history and includes a process to allow the applicant to provide mitigating information.

INTERROGATORY NO. 7:

Identify by name, employment application number or some other unique identifying indicator each PERSON in California who applied for employment with YOU and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history.

RESPONSE TO INTERROGATORY NO. 7:

Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles.

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SUPPLEMENTAL RESPONSE TO INTERROGATORY NO. 7:

Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will provide a list of persons (identified by a unique identifier) in California with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not denied employment specifically *as a result of* their conviction history. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant has criminal or conviction history and includes a process to allow the applicant to provide mitigating information.

SECOND SUPPLEMENTAL RESPONSE TO INTERROGATORY NO. 7:

Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will provide a list of persons (identified by a unique identifier) in California with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party, which

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San Diego, California 92101
619.232.0441

includes Vons and Pavilions banner stores. However, they were not denied employment specifically *as a result of* their conviction history. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant has criminal or conviction history and includes a process to allow the applicant to provide mitigating information.

INTERROGATORY NO. 8:

State the total number of PERSONS in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry.

RESPONSE TO INTERROGATORY NO. 8:

Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects on the grounds this interrogatory is overbroad in scope and time and therefore calls for irrelevant information not reasonably calculated to lead to the discovery of admissible evidence. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

There are approximately 35 persons in California through February 2025 who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not necessarily denied employment specifically *as a result of* their registry information, as there may have been other information provided on their background check unrelated to their appearance on the Megan's Law Website. Additionally, Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

reports that include whether the applicant appears on the Megan's Law Website and includes a process to allow the applicant to provide mitigating information.

SUPPLEMENTAL RESPONSE TO INTERROGATORY NO. 8:

Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects on the grounds this interrogatory is overbroad in scope and time and therefore calls for irrelevant information not reasonably calculated to lead to the discovery of admissible evidence. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

There are approximately 43 persons in California through September 2025 who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with Responding Party, which includes Vons and Pavilions banner stores. However, they were not necessarily denied employment specifically *as a result of* their registry information, as there may have been other information provided on their background check unrelated to their appearance on the Megan's Law Website. Additionally, Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant appears on the Megan's Law Website and includes a process to allow the applicant to provide mitigating information.

INTERROGATORY NO. 9:

Identify by name, employment application number or some other unique identifying indicator each PERSON in California who applied for employment with YOU and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry.

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619.232.0441

RESPONSE TO INTERROGATORY NO. 9:

Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will provide a list of persons (identified by a unique identifier) in California through February 2025 who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not necessarily denied employment specifically *as a result of* their registry information, as there may have been other information provided on their background check unrelated to their appearance on the Megan's Law Website. Additionally, Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant appears on the Megan's Law Website and includes a process to allow the applicant to provide mitigating information.

SUPPLEMENTAL RESPONSE TO INTERROGATORY NO. 9:

Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

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San Diego, California 92101
619.232.0441

Responding Party will provide a list of persons (identified by a unique identifier) in California through September 2025 who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with Responding Party, which includes Vons and Pavilions banner stores. However, they were not necessarily denied employment specifically *as a result of* their registry information, as there may have been other information provided on their background check unrelated to their appearance on the Megan's Law Website. Additionally, Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant appears on the Megan's Law Website and includes a process to allow the applicant to provide mitigating information.

INTERROGATORY NO. 10:

Describe the job description (including title, role, and responsibilities) for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO in March 2023.

RESPONSE TO INTERROGATORY NO. 10:

Responding Party refers Plaintiff to the Deli Clerk job description, which is being produced herewith.

INTERROGATORY NO. 11:

State the salary and/or hourly wage that YOU were paying CARRILLO for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO in March 2023.

RESPONSE TO INTERROGATORY NO. 11:

Plaintiff's hourly rate was $17.50 per hour.

INTERROGATORY NO. 12:

Explain in detail the benefits (e.g. medical, dental, retirement) that YOU were going to provide CARRILLO for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO in March 2023.

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501 W. Broadway, Suite 900
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619.232.0441

RESPONSE TO INTERROGATORY NO. 12:

Responding Party objects to the term "in detail" because it is vague and calls for irrelevant information not reasonably calculated to lead to the discovery of admissible evidence. Subject to and without waiving the foregoing objection, Defendant responds as follows:

Plaintiff was not entitled to benefits.

INTERROGATORY NO. 13:

State the salary and/or hourly wage that YOU were going to pay each of the PERSONS identified in YOUR response to **Interrogatory No. 7**.

RESPONSE TO INTERROGATORY NO. 13:

Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles.

INTERROGATORY NO. 14:

State the benefits (e.g. medical, dental, retirement) that YOU were going to provide each of the PERSONS identified in YOUR response **to Interrogatory No. 7**.

RESPONSE TO INTERROGATORY NO. 14:

Responding Party objects to this interrogatory on the grounds that it is grossly overbroad and disproportionate to the needs of this case. Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles.

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619.232.0441

INTERROGATORY NO. 15:

State the salary and/or hourly wage that YOU were going to pay each of the PERSONS identified in YOUR response to **Interrogatory No. 9**.

RESPONSE TO INTERROGATORY NO. 15:

Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles.

INTERROGATORY NO. 16:

State the benefits (e.g. medical, dental, retirement) that YOU were going to provide each of the PERSONS identified in YOUR response to **Interrogatory No. 9**.

RESPONSE TO INTERROGATORY NO. 16:

Responding Party objects to this interrogatory on the grounds that it is grossly overbroad and disproportionate to the needs of this case. Responding Party objects to this interrogatory on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this interrogatory on the ground that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles.

INTERROGATORY NO. 17:

Explain in detail the information YOU reviewed and/or relied on in terminating CARRILLO's employment (or rescinding his employment offer) in March 2023.

RESPONSE TO INTERROGATORY NO. 17:

Responding Party objects to the term "in detail" because it is vague and calls for irrelevant information not reasonably calculated to lead to the discovery of admissible

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San Diego, California 92101
619.232.0441

evidence. Subject to without waiving the foregoing objection, Responding Party responds as follows:

Responding Party reviewed Plaintiff's background check and further documentation provided by Plaintiff in conducting its individualized assessment that resulted in Plaintiff's employment offer being rescinded.

Dated: November 21, 2025

Rod M. Fliegel
Karimah J. Lamar
Christine Fitzgerald
Robert Geiger
LITTLER MENDELSON, P.C.
Attorneys for Defendant
THE VONS COMPANIES, INC.

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

VERIFICATION

I, Toni North, declare:

I am an AEC Onboarding Manager of The Vons Companies, Inc. and as such, I am authorized to make this verification for and on behalf of The Vons Companies, Inc.

I have read the foregoing **DEFENDANT'S THE VONS COMPANIES, INC.'S SUPPLEMENTAL OBJECTIONS AND RESPONSES TO PLAINTIFF ROBERTO SANDOVAL CARRILLO'S INTERROGATORIES, SET ONE** and know the contents thereof. The information contained in these responses however, is not within my personal knowledge. I have been informed of these responses based on facts compiled from employees and business records of Defendant. Based on the information which has been compiled, I believe the matters stated therein are true and on that ground declare under penalty of perjury under the laws of the United States and the State of California that the same are true and correct.

Executed on November 21, 2025, at Pleasanton, California.

Signed by:
Toni North
8DD245053BF4436...

TONI NORTH

4917-7174-1528 / 116930.1061

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

EXHIBIT 7

Rod M. Fliegel, Bar No. 168289
rfliegel@littler.com
LITTLER MENDELSON, P.C.
101 Second Street, Suite 1000
San Francisco, California 94105
Telephone: 415.433.1940
Facsimile: 415.399.8490

Karimah J. Lamar, Bar No. 246862
klamar@littler.com
Christine Fitzgerald, Bar No. 259014
cfitzgerald@littler.com
Robert Geiger, Bar No. 322914
rgeiger@littler.com
LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
Telephone: 619.232.0441
Facsimile: 619.232.4302

Attorneys for Defendant
THE VONS COMPANIES, INC.

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiff,

v.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURING; and DOES 1-5,

Defendants.

Case No. 8:25-cv-00191-SRM-KES

DEFENDANT THE VONS COMPANIES, INC.'S SECOND SUPPLEMENTAL OBJECTIONS AND RESPONSES TO PLAINTIFF ROBERTO SANDOVAL CARRILLO'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE

Trial Date: Not Yet Set
Complaint Filed: February 6, 2025

PROPOUNDING PARTY: Plaintiff ROBERTO SANDOVAL CARRILLO

RESPONDING PARTY: Defendant THE VONS COMPANIES, INC.

SET NUMBER: ONE

TO PLAINTIFF ROBERTO SANDOVAL CARRILLO AND HIS ATTORNEYS OF RECORD:

Pursuant to Federal Rule of Civil Procedure 34, Defendant The Vons Companies, Inc. (hereinafter "Defendant") hereby provides responses to the Requests for Production of Documents, Set One, served upon it by Plaintiff Roberto Sandoval Carrillo ("Plaintiff") as follows:

PRELIMINARY STATEMENT

The following answers are based upon information presently known and available to Defendant. Discovery, both internal and external, is still ongoing, and Defendant reserves the right to supplement these answers with subsequently discovered information and/or to introduce such information at trial. Each answer is subject to all objections as to competence, relevance, materiality, propriety, admissibility, and any and all other objections or grounds that would require exclusion of the answers produced by Defendant, or any part thereof, if any of these answers were presented in court. All appropriate objections and grounds are hereby reserved and may be interposed at trial regarding the introduction into evidence of an answer produced by Defendant herein.

The fact that Defendant has responded to or objected to any request or part thereof may not be taken as an admission that it admits the existence of any fact set forth in or assumed by such request or that such answer constitutes relevant evidence other than as expressly admitted herein. No implied admissions whatsoever are intended by these answers. The fact that Defendant has answered part or all of any request shall not be construed to be a waiver by Defendant of any objections to part or all of any request.

To the extent that part or all of any request calls for information which constitutes material prepared in anticipation of litigation or for trial, information or material covered by the work-product doctrine or information protected from disclosure by virtue of a privilege including, but not limited to, the attorney-client communication privilege, Responding Party objects to each and every such request and will not supply or render any information or material protected from discovery by virtue of the work-product doctrine or

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

any privilege including, but not limited to, the attorney-client communication privilege. Also, Responding Party objects to the extent the requests seek information relating to Defendant's and his counsel's legal conclusions and research and will not provide such information.

To the extent that any request seeks to discover the residence address and/or telephone number of any individual, Responding Party objects to each and every such request on the grounds that such request seeks information privileged from disclosure on the basis of said individual's right to privacy and confidentiality and because such request seeks information which is not relevant to the subject matter of this action nor reasonably calculated to lead to the discovery of admissible evidence.

The above-stated objections are hereby made applicable to each and all of the requests and are incorporated by reference as though fully set forth in each answer to each request. Without waiving any of the foregoing objections, Defendant responds as follows:

RESPONSES TO REQUESTS FOR PRODUCTION

REQUEST FOR PRODUCTION NO. 1:

YOUR and ASURINT's agreement RELATING TO recruiting, background checks, and all other services provided by ASURINT for VONS from January 2023 to the present.

RESPONSE TO REQUEST FOR PRODUCTION NO. 1:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles.

Responding Party will produce its agreement with Asurint after entering into a Stipulated Protective Order.

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

REQUEST FOR PRODUCTION NO. 2:

YOUR policies and procedures for conducting individualized assessments of prospective employees from January 2023 to the present.

RESPONSE TO REQUEST FOR PRODUCTION NO. 2:

Responding Party objects to this request because it is vague as to the term "individualized assessments" without further context. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will produce its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories.

REQUEST FOR PRODUCTION NO. 3:

YOUR policies and procedures RELATING TO the handling of prospective employee applications with conviction histories from January 2023 to the present.

RESPONSE TO REQUEST FOR PRODUCTION NO. 3:

Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will produce its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories.

REQUEST FOR PRODUCTION NO. 4:

YOUR policies and procedures RELATING TO compliance with the FAIR CHANCE ACT.

RESPONSE TO REQUEST FOR PRODUCTION NO. 4:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

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San Diego, California 92101
619.232.0441

Responding Party will produce its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories.

REQUEST FOR PRODUCTION NO. 5:

YOUR COMMUNICATIONS RELATING TO compliance with the Fair Chance Act from January 2023 to the present.

RESPONSE TO REQUEST FOR PRODUCTION NO. 5:

Responding Party objects to this request on the grounds it is grossly overbroad in scope and is therefore unduly burdensome, requiring Defendant to conduct an unreasonable search for communications. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation.

SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 5:

Responding Party objects to this request on the grounds it is grossly overbroad in scope and is therefore unduly burdensome, requiring Defendant to conduct an unreasonable search for communications. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

improper at this stage of the litigation. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

After agreement with counsel, Responding Party searched for non-privileged communications from Toni North that are reasonably identifiable without an ESI search and did not locate documents responsive to this request.

REQUEST FOR PRODUCTION NO. 6:

YOUR employee training manuals RELATING TO compliance with the FAIR CHANCE ACT.

RESPONSE TO REQUEST FOR PRODUCTION NO. 6:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information.

SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 6:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party has conducted a reasonable and diligent search, and no non-privileged documents exist.

REQUEST FOR PRODUCTION NO. 7:

YOUR policies and procedures RELATING TO compliance with the MEGAN'S LAW.

RESPONSE TO REQUEST FOR PRODUCTION NO. 7:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request because it is unintelligible. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

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501 W. Broadway, Suite 900
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619.232.0441

Responding Party will produce its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories.

REQUEST FOR PRODUCTION NO. 8:

YOUR COMMUNICATIONS RELATING TO compliance with the MEGAN'S LAW from January 2023 to the present.

RESPONSE TO REQUEST FOR PRODUCTION NO. 8:

Responding Party objects to this request on the grounds it is grossly overbroad in scope and is therefore unduly burdensome, requiring Defendant to conduct an unreasonable search for communications. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request because it is unintelligible.

SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 8:

Responding Party objects to this request on the grounds it is grossly overbroad in scope and is therefore unduly burdensome, requiring Defendant to conduct an unreasonable search for communications. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request because it is unintelligible. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

After agreement with counsel, Responding Party searched for non-privileged communications from Toni North that are reasonably identifiable without an ESI search and did not locate documents responsive to this request.

REQUEST FOR PRODUCTION NO. 9:

YOUR employee training manuals RELATING TO compliance with the MEGAN'S LAW.

RESPONSE TO REQUEST FOR PRODUCTION NO. 9:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request because it is unintelligible.

SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 9:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request because it is unintelligible. Subject to and without waiving the foregoing objections Responding Party responds as follows:

Responding Party has conducted a reasonable and diligent search, and no non-privileged documents exist.

REQUEST FOR PRODUCTION NO. 10:

All COMMUNICATIONS RELATING TO CARRILLO between YOU and any PERSONS, including ASURINT and CARRILLO.

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619.232.0441

RESPONSE TO REQUEST FOR PRODUCTION NO. 10:

Responding Party objects to this request on the grounds it is grossly overbroad in scope and is therefore unduly burdensome, requiring Defendant to conduct an unreasonable search for communications. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will produce non-privileged communications that are reasonably identifiable and relevant to Plaintiff's hiring, background check, individualized assessment, and subsequent termination in March 2023.

REQUEST FOR PRODUCTION NO. 11:

All DOCUMENTS RELATING TO CARRILLO, including all DOCUMENTS in his employment file and employment application file.

RESPONSE TO REQUEST FOR PRODUCTION NO. 11:

Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will produce Plaintiff's personnel file.

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

REQUEST FOR PRODUCTION NO. 12:

YOUR policies and procedures RELATING TO conducting an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position.

RESPONSE TO REQUEST FOR PRODUCTION NO. 12:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will produce its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories.

REQUEST FOR PRODUCTION NO. 13:

YOUR employee training manuals RELATING TO conducting an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position.

RESPONSE TO REQUEST FOR PRODUCTION NO. 13:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information.

SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 13:

YOUR employee training manuals RELATING TO conducting an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position. Subject to and without waiving the foregoing objections Responding Party responds as follows:

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Responding Party has conducted a reasonable and diligent search, and no non-privileged documents exist.

REQUEST FOR PRODUCTION NO. 14:

All DOCUMENTS RELATING TO YOUR "individualized assessment" (as that term is used in the FAIR CHANCE ACT) of CARRILLO in 2023, if any.

RESPONSE TO REQUEST FOR PRODUCTION NO. 14:

Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will produce non-privileged communications that are reasonably identifiable without an ESI search.

SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 14:

Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party identifies relevant portions of Plaintiff's application wherein he indicates he was convicted of receipt of an image of a minor (Vons (Carrillo) 000021-22), The pre- and post-adverse action notices (Vons (Carrillo) 000056-58), and documentation provided by Plaintiff after he received his pre-adverse action notice (Vons (Carrillo) 000063-68).

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

REQUEST FOR PRODUCTION NO. 15:

All DOCUMENTS showing the total number of persons in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history.

RESPONSE TO REQUEST FOR PRODUCTION NO. 15:

Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles.

SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 15:

Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will provide a list of persons (identified by a unique identifier) in California with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not denied employment specifically *as a result of* their conviction

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

history. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant has criminal or conviction history and includes a process to allow the applicant to provide mitigating information.

SECOND SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 15:

Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will provide a list of persons (identified by a unique identifier) in California with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party, which includes Vons and Pavilions banner stores. However, they were not denied employment specifically *as a result of* their conviction history. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant has criminal or conviction history and includes a process to allow the applicant to provide mitigating information.

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501 W. Broadway, Suite 900
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619.232.0441

REQUEST FOR PRODUCTION NO. 16:

All DOCUMENTS identifying (by name, employment application number or some other unique identifying indicator) each PERSON in California who applied for employment with Vons and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history.

RESPONSE TO REQUEST FOR PRODUCTION NO. 16:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation.

SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 16:

Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will provide a list of persons (identified by a unique identifier) in California with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party.

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619.232.0441

However, they were not denied employment specifically *as a result of* their conviction history. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant has criminal or conviction history and includes a process to allow the applicant to provide mitigating information.

SECOND SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 16:

Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will provide a list of persons (identified by a unique identifier) in California with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party, which includes Vons and Pavilions banner stores. However, they were not denied employment specifically *as a result of* their conviction history. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant has criminal or conviction history and includes a process to allow the applicant to provide mitigating information.

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REQUEST FOR PRODUCTION NO. 17:

All DOCUMENTS showing the results of YOUR individualized assessments for the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16**.

RESPONSE TO REQUEST FOR PRODUCTION NO. 17:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation.

SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 17:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party conducted a reasonable and diligent search and will produce relevant data points regarding its individualized assessments of putative class members, including the Order Score, Final Score, Reason for Fail, Highest Crime Committed, Category, Major Category, Number Job Related, and Latest Year. Responding Party does not have responsive documents other than the types of documents identified in its

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619.232.0441

supplemental response to Request for Production 14 and will not provide that information as it is overbroad and seeks merits-based discovery.

REQUEST FOR PRODUCTION NO. 18:

All CONSUMER REPORTS for the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16**.

RESPONSE TO REQUEST FOR PRODUCTION NO. 18:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation.

REQUEST FOR PRODUCTION NO. 19:

The job description (including posting, title, role, and responsibilities) for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO (or rescinded CARRILLO's employment offer) in March 2023.

RESPONSE TO REQUEST FOR PRODUCTION NO. 19:

Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will produce the job description for Plaintiff.

REQUEST FOR PRODUCTION NO. 20:

YOUR hiring policies and procedures for the position (e.g. Deli Clerk at Vons) that YOU denied CARRILLO (or rescinded from CARRILLO).

RESPONSE TO REQUEST FOR PRODUCTION NO. 20:

Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Subject to and without waiving the foregoing objection, Responding Party responds as follows:

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Defendant does not have hiring policies for the Deli Clerk position.

REQUEST FOR PRODUCTION NO. 21:

All DOCUMENTS showing the salary and/or hourly wage that YOU were going to pay CARRILLO for the position (e.g. Deli Clerk at Vons in San Diego) that YOU denied CARRILLO (or rescinded from CARRILLO) in March 2023.

RESPONSE TO REQUEST FOR PRODUCTION NO. 21:

Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work product doctrine. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will produce Plaintiff's offer letter and wage statements.

REQUEST FOR PRODUCTION NO. 22:

All DOCUMENTS showing the benefits (e.g. medical, dental, retirement) that YOU were going to provide CARRILLO for the position (e.g. Deli Clerk at Vons in San Diego) that YOU denied CARRILLO (or rescinded from CARRILLO) in March 2023.

RESPONSE TO REQUEST FOR PRODUCTION NO. 22:

Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Subject to and without waiving the foregoing objection, Responding Party responds as follows:

Plaintiff was not entitled to benefits.

REQUEST FOR PRODUCTION NO. 23:

All DOCUMENTS showing the salary and/or hourly wage that YOU were going to pay the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16**.

RESPONSE TO REQUEST FOR PRODUCTION NO. 23:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of

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third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation.

REQUEST FOR PRODUCTION NO. 24:

All DOCUMENTS showing the benefits (e.g. medical, dental, retirement) that YOU were going to provide the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16.**

RESPONSE TO REQUEST FOR PRODUCTION NO. 24:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation.

REQUEST FOR PRODUCTION NO. 25:

All COMMUNICATIONS (e.g. written notices, emails, or letters) YOU provided to the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 16** stating YOUR final decision to deny an application solely or in part because of the applicant's conviction history, pursuant to the FAIR CHANCE ACT.

RESPONSE TO REQUEST FOR PRODUCTION NO. 25:

Responding Party objects to this request on the grounds it is grossly overbroad in scope and is therefore unduly burdensome, requiring Defendant to conduct an unreasonable search for communications. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the

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Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation.

REQUEST FOR PRODUCTION NO. 26:

YOUR policies and procedures RELATING TO any procedure YOU have for the applicant to challenge the decision to deny employment or request reconsideration, pursuant to the FAIR CHANCE ACT.

RESPONSE TO REQUEST FOR PRODUCTION NO. 26:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will produce its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories.

REQUEST FOR PRODUCTION NO. 27:

YOUR organization chart (showing the titles, roles, and responsibilities) RELATING TO department/team responsible for compliance with the FAIR CHANCE ACT.

RESPONSE TO REQUEST FOR PRODUCTION NO. 27:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it seeks the production of confidential and proprietary business information. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds

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that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles.

REQUEST FOR PRODUCTION NO. 28:

DOCUMENTS supporting CARRILLO's and class members' damages.

RESPONSE TO REQUEST FOR PRODUCTION NO. 28:

Responding Party objects to this request because it assumes facts not in evidence. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles.

REQUEST FOR PRODUCTION NO. 29:

Written complaints to YOU relating to compliance with the MEGAN'S LAW.

RESPONSE TO REQUEST FOR PRODUCTION NO. 29:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request because it is unintelligible.

REQUEST FOR PRODUCTION NO. 30:

Written complaints to YOU relating to compliance with the FAIR CHANCE ACT.

RESPONSE TO REQUEST FOR PRODUCTION NO. 30:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation.

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REQUEST FOR PRODUCTION NO. 31:

ASURINT's communications with YOU RELATING TO ASURINT's relationship and services with YOU.

RESPONSE TO REQUEST FOR PRODUCTION NO. 31:

Responding Party objects to this request on the grounds it is grossly overbroad in scope and is therefore unduly burdensome, requiring Defendant to conduct an unreasonable search for communications. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles.

REQUEST FOR PRODUCTION NO. 32:

All DOCUMENTS showing the total number of persons in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry.

RESPONSE TO REQUEST FOR PRODUCTION NO. 32:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles.

SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 32:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine.

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619.232.0441

Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will provide a list of persons (identified by a unique identifier) in California who appeared on the Megan's Law Website and who applied for employment and were denied employment with Responding Party. However, they were not necessarily denied employment specifically *as a result of* their registry information, as there may have been other information provided on their background check unrelated to their appearance on the Megan's Law Website. Additionally, Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant appears on the Megan's Law Website and includes a process to allow the applicant to provide mitigating information.

SECOND SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 32:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will provide a list of persons (identified by a unique identifier) in California who appeared on the Megan's Law Website and who applied for employment and were denied employment with Responding Party, which includes Vons and Pavilions banner stores. However, they were not necessarily denied employment specifically *as a*

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result of their registry information, as there may have been other information provided on their background check unrelated to their appearance on the Megan's Law Website. Additionally, Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant appears on the Megan's Law Website and includes a process to allow the applicant to provide mitigating information.

REQUEST FOR PRODUCTION NO. 33:

All DOCUMENTS identifying (by name, employment application number or some other unique identifying indicator) each PERSON in California who applied for employment with Vons and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry.

RESPONSE TO REQUEST FOR PRODUCTION NO. 33:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles.

SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 33:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

Responding Party will provide a list of persons (identified by a unique identifier) in California who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not necessarily denied employment specifically *as a result of* their registry information, as there may have been other information provided on their background check unrelated to their appearance on the Megan's Law Website. Additionally, Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant appears on the Megan's Law Website and includes a process to allow the applicant to provide mitigating information.

SUPPLEMENTAL RESPONSE TO REQUEST FOR PRODUCTION NO. 33:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party will provide a list of persons (identified by a unique identifier) in California who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with Responding Party, which includes Vons and Pavilions banner stores. However, they were not necessarily denied employment specifically *as a result of* their registry information, as there may have been other information provided on their background check unrelated to their appearance on the Megan's Law Website. Additionally, Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

is not limited to reviews of background check reports that include whether the applicant appears on the Megan's Law Website and includes a process to allow the applicant to provide mitigating information.

REQUEST FOR PRODUCTION NO. 34:

All DOCUMENTS showing the results of YOUR individualized assessments for the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 33**.

RESPONSE TO REQUEST FOR PRODUCTION NO. 34:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation.

REQUEST FOR PRODUCTION NO. 35:

All CONSUMER REPORTS for the PERSONS identified in the DOCUMENTS responsive to **Request for Production No. 33**.

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501 W. Broadway, Suite 900
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619.232.0441

RESPONSE TO REQUEST FOR PRODUCTION NO. 35:

Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation.

Dated: November 21, 2025

Rod M. Fliegel
Karimah J. Lamar
Christine Fitzgerald
Robert Geiger
LITTLER MENDELSON, P.C.
Attorneys for Defendant
THE VONS COMPANIES, INC.

4931-1214-9336 / 116930.1061

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

EXHIBIT 8

Rod M. Fliegel, Bar No. 168289
rfliegel@littler.com
LITTLER MENDELSON, P.C.
101 Second Street, Suite 1000
San Francisco, California 94105
Telephone: 415.433.1940
Facsimile: 415.399.8490

Karimah J. Lamar, Bar No. 246862
klamar@littler.com
Christine Fitzgerald, Bar No. 259014
cfitzgerald@littler.com
Robert Geiger, Bar No. 322914
rgeiger@littler.com
LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
Telephone: 619.232.0441
Facsimile: 619.232.4302

Attorneys for Defendant
THE VONS COMPANIES, INC.

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiff,

v.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT; and DOES 1-5,

Defendants.

Case No. 8:25-cv-00191-SRM-KES

DEFENDANT THE VONS COMPANIES, INC.'S OBJECTIONS AND RESPONSES TO PLAINTIFF ROBERTO SANDOVAL CARRILLO'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO

Trial Date: Not Yet Set
Complaint Filed: February 6, 2025

PROPOUNDING PARTY: Plaintiff ROBERTO SANDOVAL CARRILLO

RESPONDING PARTY: Defendant THE VONS COMPANIES, INC.

SET NUMBER: TWO

TO PLAINTIFF ROBERTO SANDOVAL CARRILLO AND HIS ATTORNEYS OF RECORD:

Pursuant to Federal Rule of Civil Procedure 34, Defendant The Vons Companies, Inc. (hereinafter "Defendant") hereby provides responses to the Requests for Production of Documents, Set One, served upon it by Plaintiff Roberto Sandoval Carrillo ("Plaintiff") as follows:

PRELIMINARY STATEMENT

The following answers are based upon information presently known and available to Defendant. Discovery, both internal and external, is still ongoing, and Defendant reserves the right to supplement these answers with subsequently discovered information and/or to introduce such information at trial. Each answer is subject to all objections as to competence, relevance, materiality, propriety, admissibility, and any and all other objections or grounds that would require exclusion of the answers produced by Defendant, or any part thereof, if any of these answers were presented in court. All appropriate objections and grounds are hereby reserved and may be interposed at trial regarding the introduction into evidence of an answer produced by Defendant herein.

The fact that Defendant has responded to or objected to any request or part thereof may not be taken as an admission that they admit the existence of any fact set forth in or assumed by such request or that such answer constitutes relevant evidence other than as expressly admitted herein. No implied admissions whatsoever are intended by these answers. The fact that Defendant has answered part or all of any request shall not be construed to be a waiver by Defendant of any objections to part or all of any request.

To the extent that part or all of any request calls for information which constitutes material prepared in anticipation of litigation or for trial, information or material covered by the work product doctrine or information protected from disclosure by virtue of a privilege including, but not limited to, the attorney-client communication privilege, Defendant objects to each and every such request and will not supply or render any information or material protected from discovery by virtue of the work-product doctrine or

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any privilege including, but not limited to, the attorney-client communication privilege. Also, Defendant objects to the extent the requests seek information relating to Defendant's and his counsel's legal conclusions and research and will not provide such information.

To the extent that any request seeks to discover the residence address and/or telephone number of any individual, Defendant objects to each and every such request on the grounds that such request seeks information privileged from disclosure on the basis of said individual's right to privacy and confidentiality and because such request seeks information which is not relevant to the subject matter of this action nor reasonably calculated to lead to the discovery of admissible evidence.

The above-stated objections are hereby made applicable to each and all of the requests and are incorporated by reference as though fully set forth in each answer to each request. Without waiving any of the foregoing objections, Defendant responds as follows:

RESPONSES TO REQUESTS FOR PRODUCTION

REQUEST FOR PRODUCTION NO. 36:

A DOCUMENT showing the total number of PERSONS in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history.

RESPONSE TO REQUEST FOR PRODUCTION NO. 36:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product

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619.232.0441

doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party previously provided a list of persons (identified by a unique identifier) in California with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not denied employment specifically *as a result of* their conviction history. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant has criminal or conviction history and includes a process to allow the applicant to provide mitigating information.

REQUEST FOR PRODUCTION NO. 37:

A DOCUMENT identifying (by name, employment application number or some other unique identifying indicator) each PERSON in California who applied for employment with YOU and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history. This DOCUMENT must be produced in **unredacted form**, except YOU may redact names, phone numbers, addresses, and email addresses.

RESPONSE TO REQUEST FOR PRODUCTION NO. 37:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it is

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party previously provided a list of persons (identified by a unique identifier) in California with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not denied employment specifically *as a result of* their conviction history. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant has criminal or conviction history and includes a process to allow the applicant to provide mitigating information.

REQUEST FOR PRODUCTION NO. 38:

A DOCUMENT showing the total number of PERSONS in California who applied for employment with YOU and were denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry.

RESPONSE TO REQUEST FOR PRODUCTION NO. 38:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it is

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party previously provided a list of persons (identified by a unique identifier) in California who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not denied employment specifically *as a result of* their appearance on the Megan's Law Website. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant appears on the Megan's Law Website and includes a process to allow the applicant to provide mitigating information.

REQUEST FOR PRODUCTION NO. 39:

A DOCUMENT identifying (by name, employment application number or some other unique identifying indicator) each PERSON in California who applied for employment with YOU and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry. This DOCUMENT must be produced in **unredacted form**, except YOU may redact names, phone numbers, addresses, and email addresses.

RESPONSE TO REQUEST FOR PRODUCTION NO. 39:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in

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San Diego, California 92101
619.232.0441

Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party previously provided a list of persons (identified by a unique identifier) in California who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not denied employment specifically *as a result of* their appearance on the Megan's Law Website. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant appears on the Megan's Law Website and includes a process to allow the applicant to provide mitigating information.

REQUEST FOR PRODUCTION NO. 40:

A DOCUMENT similar to the excel spreadsheet Vons produced in October 2025 as Bates No. Vons (Carrillo) 000138 identifying each PERSON in California who applied for employment with YOU (***including*** Albertsons, Vons, Pavilions, Safeway, and Andronico's) and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history. This DOCUMENT must be produced in **unredacted form**, except YOU may redact names, phone numbers, addresses, and email addresses.

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501 W. Broadway, Suite 900
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619.232.0441

RESPONSE TO REQUEST FOR PRODUCTION NO. 40:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party previously provided a list of persons (identified by a unique identifier) in California with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not denied employment specifically *as a result of* their conviction history. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant has criminal or conviction history and includes a process to allow the applicant to provide mitigating information.

REQUEST FOR PRODUCTION NO. 41:

A DOCUMENT similar to the excel spreadsheet Vons produced in October 2025 as Bates No. Vons (Carrillo) 000137 identifying each PERSON in California who applied for employment with YOU (including Albertsons, Vons, Pavilions, Safeway, and Andronico's) and was denied employment (e.g. no employment offer given, conditional

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offer of employment rescinded, employment terminated) as a result of their conviction history. This DOCUMENT must be produced in **unredacted form**, except YOU may redact names, phone numbers, addresses, and email addresses.

RESPONSE TO REQUEST FOR PRODUCTION NO. 41:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party previously provided a list of persons (identified by a unique identifier) in California with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not denied employment specifically *as a result of* their conviction history. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant has criminal or conviction history and includes a process to allow the applicant to provide mitigating information.

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619.232.0441

REQUEST FOR PRODUCTION NO. 42:

A DOCUMENT similar to the excel spreadsheet Vons produced in October 2025 as Bates No. Vons (Carrillo) 000138 identifying each PERSON in California who applied for employment with YOU (including Albertsons, Vons, Pavilions, Safeway, and Andronico's) and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry. This DOCUMENT must be produced in **unredacted form**, except YOU may redact names, phone numbers, addresses, and email addresses.

RESPONSE TO REQUEST FOR PRODUCTION NO. 42:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party previously provided a list of persons (identified by a unique identifier) in California who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with Responding Party. However, they were not denied employment specifically *as a result of* their appearance on the Megan's Law Website. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use

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and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant appears on the Megan's Law Website and includes a process to allow the applicant to provide mitigating information.

REQUEST FOR PRODUCTION NO. 43:

A DOCUMENT similar to the excel spreadsheet Vons produced in October 2025 as Bates No. Vons (Carrillo) 000137 identifying each PERSON in California who applied for employment with YOU (including Albertsons, Vons, Pavilions, Safeway, and Andronico's) and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry. This DOCUMENT must be produced in **unredacted form**, except YOU may redact names, phone numbers, addresses, and email addresses.

RESPONSE TO REQUEST FOR PRODUCTION NO. 43:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

Responding Party previously provided a list of persons (identified by a unique identifier) in California who appeared on the Megan's Law Website and who applied for

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employment, went through the background check process, and were denied employment with Responding Party. However, they were not denied employment specifically *as a result of* their appearance on the Megan's Law Website. Responding Paty conducts individualized assessments in accordance with its Standard Operating Procedures re Use and Review of Retail Job Applicants' Criminal Conviction Histories, which includes but is not limited to reviews of background check reports that include whether the applicant appears on the Megan's Law Website and includes a process to allow the applicant to provide mitigating information.

REQUEST FOR PRODUCTION NO. 44:

All ADVERSE ACTION NOTICES YOU sent to PERSONS containing the phrase: "sex offender" or "Sex Offender."

RESPONSE TO REQUEST FOR PRODUCTION NO. 44:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party further objects to this request on the grounds it is harassing in that the Court has already determined the documents sought are merit-based, and the Parties already agreed no further documents are required. (See IDC Transcript, 29:5-18 (Sept. 29, 2025).)

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San Diego, California 92101
619.232.0441

REQUEST FOR PRODUCTION NO. 45:

All ADVERSE ACTION NOTICES YOU sent to PERSONS containing the statement: "We have identified the following convictions on your report to be job-related: Sex Offender"

RESPONSE TO REQUEST FOR PRODUCTION NO. 45:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party further objects to this request on the grounds it is harassing in that the Court has already determined the documents sought are merit-based, and the Parties already agreed no further documents are required. (See IDC Transcript, 29:5-18 (Sept. 29, 2025).)

REQUEST FOR PRODUCTION NO. 46:

All ADVERSE ACTION NOTICES YOU sent to PERSONS: (i) who were labeled as having committed "Sex Crimes" under the column named "Category" (i.e. Column K) in the DOCUMENT (excel spreadsheet) Vons produced in October 2025 as Bates No. Vons (Carrillo) 000138. The column named "Category" (i.e. Column K) can be found in the excel spreadsheets tabs labeled "[Year] CA Vons All Division." This DOCUMENT

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must be produced in **unredacted form**, except YOU may redact names, phone numbers, addresses, and email addresses.

RESPONSE TO REQUEST FOR PRODUCTION NO. 46:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party further objects to this request on the grounds it is harassing in that the Court has already determined the documents sought are merit-based, and the Parties already agreed no further documents are required. (See IDC Transcript, 29:5-18 (Sept. 29, 2025).)

REQUEST FOR PRODUCTION NO. 47:

All ADVERSE ACTION NOTICES YOU sent to PERSONS: (i) who were labeled as having committed "Sex Crimes" under the column named "Category" (i.e. Column K) in the DOCUMENT (excel spreadsheet) Vons produced in October 2025 as Bates No. Vons (Carrillo) 000137. The column named "Category" (i.e. Column K) can be found in the excel spreadsheet tab labeled "P1 through P7." This DOCUMENT must be produced in **unredacted form**, except YOU may redact names, phone numbers, addresses, and email addresses.

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RESPONSE TO REQUEST FOR PRODUCTION NO. 47:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party further objects to this request on the grounds it is harassing in that the Court has already determined the documents sought are merit-based, and the Parties already agreed no further documents are required. (See IDC Transcript, 29:5-18 (Sept. 29, 2025).)

REQUEST FOR PRODUCTION NO. 48:

All ADVERSE ACTION NOTICES YOU sent to PERSONS who were labeled as having committed "Sex Crimes" under the column named "Category" in the DOCUMENT YOU produce in response to Request for Production No. 40. This DOCUMENT must be produced in **unredacted form**, except YOU may redact names, phone numbers, addresses, and email addresses.

RESPONSE TO REQUEST FOR PRODUCTION NO. 48:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc.

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Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party further objects to this request on the grounds it is harassing in that the Court has already determined the documents sought are merit-based, and the Parties already agreed no further documents are required. (See IDC Transcript, 29:5-18 (Sept. 29, 2025).)

REQUEST FOR PRODUCTION NO. 49:

All ADVERSE ACTION NOTICES YOU sent to PERSONS who were labeled as having committed "Sex Crimes" under the column named "Category" in the DOCUMENT YOU produce in response to Request for Production No. 42. This DOCUMENT must be produced in **unredacted form**, except YOU may redact names, phone numbers, addresses, and email addresses.

RESPONSE TO REQUEST FOR PRODUCTION NO. 49:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this

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San Diego, California 92101
619.232.0441

request on the grounds that it is overbroad in scope and time. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party further objects to this request on the grounds it is harassing in that the Court has already determined the documents sought are merit-based, and the Parties already agreed no further documents are required. (See IDC Transcript, 29:5-18 (Sept. 29, 2025).)

REQUEST FOR PRODUCTION NO. 50:

A DOCUMENT showing the total number of PERSONS in California who applied for employment with YOU and were granted employment (e.g. employment offer given, conditional offer of employment not rescinded) despite information from the MEGAN'S LAW registry on their CONSUMER REPORT.

RESPONSE TO REQUEST FOR PRODUCTION NO. 50:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

There are no responsive documents in the relevant time period as to Responding Party, i.e., The Vons Companies, Inc.

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

REQUEST FOR PRODUCTION NO. 51:

A DOCUMENT identifying (by name, employment application number or some other unique identifying indicator) each PERSON in California who applied for employment with YOU and was granted employment (e.g. employment offer given, conditional offer of employment not rescinded) despite information from the MEGAN'S LAW registry on their CONSUMER REPORT. This DOCUMENT must be produced in **unredacted form**, except YOU may redact names, phone numbers, addresses, and email addresses.

RESPONSE TO REQUEST FOR PRODUCTION NO. 51:

Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request to the extent it calls for information protected by the attorney-client privilege and/or attorney work-product doctrine. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Subject to and without waiving the foregoing objections, Responding Party responds as follows:

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LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

There are no responsive documents in the relevant time period as to Responding Party, i.e., The Vons Companies, Inc.

Dated: December 1, 2025

Rod M. Fliegel
Karimah J. Lamar
Christine Fitzgerald
Robert Geiger
LITTLER MENDELSON, P.C.
Attorneys for Defendant
THE VONS COMPANIES, INC.

4923-5246-4247 / 116930.1061

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501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

EXHIBIT 9

Raymond Y Kim

From: Geiger, Robert <RGeiger@littler.com>
Sent: Tuesday, December 9, 2025 4:15 PM
To: Raymond Y Kim
Cc: Fitzgerald, Christine; Fliegel, Rod; Mendoza, Jenae; Drudge, Jennifer; Durazo, Sylvia; Swanson, Janey; jstanzick@seyfarth.com; jdrury@seyfarth.com; pdevata@seyfarth.com; Lamar, Karimah J.
Subject: RE: Carrillo/Vons - Meet & Confer re Vons' Response to RFPs, Set 2

Categories: Blue category

Ray,

Please allow this to serve as Vons's response to your meet and confer email. What times are you available tomorrow to discuss?

Class Certification Dates

Please send a draft stipulation to continue the dates for our consideration.

Asurint PMK

We are available on December 23.

Requests for Production 40, 42.

Vons has already responded fully to the request by providing responsive documents from The Vons Companies, Inc. Albertsons, Safeway, and Andronicos are not associated with The Vons Companies, Inc. The Vons Companies, Inc. is the entity Mr. Carrillo was hired by and is the entity sued. He was never employed by the Albertsons Companies, Safeway, or Andronicos.

We are willing to discuss a potential stipulation to not challenge numerosity, but it would be without prejudice. Please let me know when you're available to discuss.

Requests for Production 44-49

Your email below fails to address our objections. You previously sought copies of all pre- and post-adverse action notices via RFP 17. At the September 29 IDC, you agreed those documents did not need to be provided for the class:

THE COURT: Okay. So I think that's all that we're saying. Is that it sounds like you can supplement No. 17 in a way that says, look, it's not our normal policy to keep other kinds of documents that would be responsive to this request, except for the documents, the kind of documents that we've already identified in No. 14, because those are the documents that you're going to identify and say, here are the documents that we contend reflect our individual assessment of plaintiff. And again Mr. Kim may disagree that they reflect an individualized assessment, but you can assert that they do and then identify them, and that's responsive.

MS. LAMAR: All right. We can agree with that.

THE COURT: Okay.

MR. KIM: And that works for plaintiff.

In our response to RFP 14 (documents related to Plaintiff's individualized assessment), we identify his application, **the pre- and post-adverse action notices**, and documentation provided by Plaintiff after he received his pre-adverse action notice. There is no basis to provide them now.

And while RFPs 44-49 are narrower than any document related to an individualized assessment (like RFP 17), they remain merits discovery, and we have not heard any reason as to how dozens of copies of pre- and post-adverse action notices satisfy your burden under Rule 23. At the September 29 IDC, the Court identified that these documents constitute merits discovery before we met the above compromise:

Now, Ms. Lamar mentioned, hey, well you know, we have this notice that we sent to the plaintiff. Well, those are notices are all required, right, by the Fair Credit Reporting Act, the pre-adverse action notice stating based on this background check and this background report, we intend to take an adverse action against you.

And after the adverse action is taken here, a denial of employment or recission of conditional employment, they have to send a post adverse action notice, which they sent. But that doesn't have anything to do with an individualized assessment. Right?

THE COURT: Well, it would be more fundamental, though, I guess my question was is to the timing of this discovery request. I don't doubt that this is relevant to the merits, but is there some later period for merits discovery for -- and if it -- if there's not, if I've misunderstood the case management order then you can tell me that, but if it's just about class certification, then what aspect of Rule 23 are you trying to demonstrate here?

Robert Geiger
Attorney at Law
+1 619.515.1815 direct, +1 818.519.2846 mobile
501 W. Broadway, Suite 900, San Diego, CA 92101-3577
RGeiger@littler.com

Littler
Labor & Employment Law So
LOCAL EVERYWHERE

From: Raymond Y Kim <ray@raykimlaw.com>
Sent: Tuesday, December 9, 2025 10:24 AM
To: Geiger, Robert <RGeiger@littler.com>; Lamar, Karimah J. <KLamar@littler.com>
Cc: Fitzgerald, Christine <CFitzgerald@littler.com>; Fliegel, Rod <RFliegel@littler.com>; Mendoza, Jenae <JMendoza@littler.com>; Drudge, Jennifer <JDrudge@littler.com>; Durazo, Sylvia <SDurazo@littler.com>; Swanson, Janey <JSwanson@littler.com>; jstanzick@seyfarth.com; jdrury@seyfarth.com; pdevata@seyfarth.com
Subject: RE: Carrillo/Vons - Meet & Confer re Vons' Response to RFPs, Set 2

Hi Bobby,

I left you a voicemail a moment ago and went ahead and served the Amended PMK deposition notice for Asurint for Dec. 23.

For the time being, please let the parties know whether Vons will stipulate to a continuance of the class certification deadlines. We can discuss the outstanding discovery issues tomorrow if Vons needs additional time, or feel free to call my cell today to discuss: 562-640-1785.

Ray
213-204-3547

From: Raymond Y Kim <ray@raykimlaw.com>
Sent: Monday, December 8, 2025 10:05 PM
To: Geiger, Robert <RGeiger@littler.com>; Lamar, Karimah J. <KLamar@littler.com>
Cc: Fitzgerald, Christine <CFitzgerald@littler.com>; Fliegel, Rod <RFliegel@littler.com>; Mendoza, Jenae <JMendoza@littler.com>; Drudge, Jennifer <JDrudge@littler.com>; Durazo, Sylvia <SDurazo@littler.com>; Swanson, Janey <JSwanson@littler.com>; jstanzick@seyfarth.com; jdrury@seyfarth.com; pdevata@seyfarth.com
Subject: Re: Carrillo/Vons - Meet & Confer re Vons' Response to RFPs, Set 2

Hi Bobby, how's tomorrow at 10am?

Ray
213-240-3547

From: Geiger, Robert <RGeiger@littler.com>
Sent: Monday, December 8, 2025 4:13 PM
To: Raymond Y Kim <ray@raykimlaw.com>; Lamar, Karimah J. <KLamar@littler.com>
Cc: Fitzgerald, Christine <CFitzgerald@littler.com>; Fliegel, Rod <RFliegel@littler.com>; Mendoza, Jenae <JMendoza@littler.com>; Drudge, Jennifer <JDrudge@littler.com>; Durazo, Sylvia <SDurazo@littler.com>; Swanson, Janey <JSwanson@littler.com>; jstanzick@seyfarth.com <jstanzick@seyfarth.com>; jdrury@seyfarth.com <jdrury@seyfarth.com>; pdevata@seyfarth.com <pdevata@seyfarth.com>
Subject: RE: Carrillo/Vons - Meet & Confer re Vons' Response to RFPs, Set 2

Ray,

Ray,

Thanks for your email. Let me know when you're available to discuss tomorrow or the next day. We will respond in writing beforehand.

Bobby

Robert Geiger
Attorney at Law
+1 619.515.1815 direct, +1 818.519.2846 mobile
501 W. Broadway, Suite 900, San Diego, CA 92101-3577
RGeiger@littler.com

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From: Raymond Y Kim <ray@raykimlaw.com>
Sent: Monday, December 8, 2025 2:26 PM
To: Lamar, Karimah J. <KLamar@littler.com>; Geiger, Robert <RGeiger@littler.com>
Cc: Fitzgerald, Christine <CFitzgerald@littler.com>; Fliegel, Rod <RFliegel@littler.com>; Mendoza, Jenae <JMendoza@littler.com>; Drudge, Jennifer <JDrudge@littler.com>; Durazo, Sylvia <SDurazo@littler.com>; Swanson, Janey <JSwanson@littler.com>; jstanzick@seyfarth.com; jdrury@seyfarth.com; pdevata@seyfarth.com
Subject: RE: Carrillo/Vons - Meet & Confer re Vons' Response to RFPs, Set 2

Hi Bobby and Karimah,

Following up on my voicemail and email below, please let me know:

1. When you have time to discuss Vons' responses to Plaintiff's RFPs Set. No. 2
2. If Vons will stipulate to a short continuance of the class deadlines (Asurint has agreed)
3. Whether you are available on Dec. 23 for Asurint's PMK deposition.

Ray
213-204-3547

From: Raymond Y Kim
Sent: Thursday, December 4, 2025 5:03 PM
To: Lamar, Karimah J. <KLamar@littler.com>; Geiger, Robert <RGeiger@littler.com>
Cc: Fitzgerald, Christine <CFitzgerald@littler.com>; Fliegel, Rod <RFliegel@littler.com>; Mendoza, Jenae <JMendoza@littler.com>; Drudge, Jennifer <JDrudge@littler.com>; Durazo, Sylvia <SDurazo@littler.com>; 'Swanson, Janey' <JSwanson@littler.com>; jstanzick@seyfarth.com; jdrury@seyfarth.com; pdevata@seyfarth.com
Subject: Carrillo/Vons - Meet & Confer re Vons' Response to RFPs, Set 2

Hi Bobby and Karimah,

Vons' responses to RFP Nos. 40, 42, and 44 thru 49 are deficient. Please let me know when you have a few minutes tomorrow for a meet and confer call. If Vons will stand on its objections and you don't believe a call is necessary, please let me know your availability next week for another informal discovery conference (IDC) with Judge Scott.

Documents Requests at Issue

RFP Nos. 40, 42

RFP No. 40 seeks "A DOCUMENT similar to the excel spreadsheet Vons produced in October 2025 as Bates No. Vons (Carrillo) 000138 identifying each PERSON in California who applied for employment with YOU (***including*** Albertsons, Vons, Pavilions, Safeway, and Andronico's) and was denied employment

(e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of their conviction history."

RFP No. 42 seeks, "A DOCUMENT similar to the excel spreadsheet Vons produced in October 2025 as Bates No. Vons (Carrillo) 000138 identifying each PERSON in California who applied for employment with YOU (including Albertsons, Vons, Pavilions, Safeway, and Andronico's) and was denied employment (e.g. no employment offer given, conditional offer of employment rescinded, employment terminated) as a result of information from the MEGAN'S LAW registry."

- **Plaintiff's position regarding RFP Nos. 40 and 42**: With respect to RFP Nos. 40 and 42, if Vons will stipulate that it will not challenge numerosity in opposition to the class certification motion, the parties can preserve this dispute until after the Court issues a ruling on the class certification motion. Whether or not Vons should produce class data for other banners of Albertsons Companies can be determined after a ruling on class certification, if Vons agrees it will not challenge numerosity.

RFP Nos. 44-49

RFP No. 44 seeks, "All ADVERSE ACTION NOTICES YOU sent to PERSONS containing the phrase: 'sex offender' or 'Sex Offender.'"

RFP No. 45 seeks, "All ADVERSE ACTION NOTICES YOU sent to PERSONS containing the statement: 'We have identified the following convictions on your report to be job-related: Sex Offender.'"

RFP Nos. 46, 47, 48, and 49 all similarly seek copies of adverse action notices.

In response to these RFPs, Vons simply objects, "Responding Party objects to this request on the grounds that the definition of "YOU" is overbroad. Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Responding Party objects to this request on the grounds that it seeks merits-based discovery before the determination of certification and, therefore, is premature and improper at this stage of the litigation. Responding Party objects to this request on the grounds that it is overbroad in scope and time. Responding Party objects to this request on the grounds that it seeks private information of third parties to this litigation, which is protected by the Federal and/or California Constitutions and/or common law privacy principles. Responding Party further objects to this request on the grounds it is harassing in that the Court has already determined the documents sought are merit-based, and the Parties already agreed no further documents are required. (See IDC Transcript, 29:5-18 (Sept. 29, 2025).)

- **Plaintiff's Position regarding RFP Nos. 44 thru 49**: For the time being, at the very least Vons/Pavilions must produce adverse action notices sent to the prospective employees whose offers were rescinded by **Vons and Pavilions**. These are the persons identified in Vons' Supplemental Response to Interrogatory No. 8 and in Vons' recent spreadsheet production, Bates No. Vons (Carrillo) 139 and Bates Nos. Vons (Carrillo) 137-138, whose Category (Column J) of crime is identified as "Sex Crimes" and Order Score (Column G) is "Fail." The content of these

adverse action notices is relevant to nearly all of Rule 23's factors of Plaintiff's class certification motion, including commonality and typicality.

Please let me know if Vons will produce this information or your availability for a call tomorrow. If Vons will stand on its objections, I will seek another informal discovery conference (IDC) with Judge Scott (we had previewed this issue at the last Nov. IDC). Please let me know three dates next week when you are available for the IDC.

Ray
213-204-3547

From: Swanson, Janey <JSwanson@littler.com>
Sent: Monday, December 1, 2025 5:10 PM
To: jstanzick@seyfarth.com; jdrury@seyfarth.com; Raymond Y Kim <ray@raykimlaw.com>; Thu Tran <thutran@raykimlaw.com>; pdevata@seyfarth.com
Cc: Fitzgerald, Christine <CFitzgerald@littler.com>; Fliegel, Rod <RFliegel@littler.com>; Lamar, Karimah J. <KLamar@littler.com>; Geiger, Robert <RGeiger@littler.com>; Mendoza, Jenae <JMendoza@littler.com>; Drudge, Jennifer <JDrudge@littler.com>; Durazo, Sylvia <SDurazo@littler.com>
Subject: E-Service | Sandoval Carrillo v. The Vons Companies, Inc. et al | Supplemental Discovery Responses

Dear Counsel:

Enclosed please find Defendant The Vons Companies, Inc.'s Objections and Responses to Plaintiff Roberto Sandoval Carrillo's Requests for Production of Documents, Set Two.

Thank you,

Janey Swanson
Attorney Practice Coordinator
+1 619.515.1843 direct, +1 816.718.5561 mobile
501 W. Broadway, Suite 900, San Diego, CA 92101-3577
JSwanson@littler.com

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EXHIBIT 10

Standard Operating Procedures Regarding Use and Review of Retail Job Applicants' Criminal Conviction Histories - California

This document sets forth standard operating procedures to be implemented in adjudicating criminal conviction histories for retail job applicants in order to ensure compliance with California law.

(1) The Company currently conducts criminal background checks on retail job applicants after a conditional offer of employment has been made.
   a. Prior to making a conditional offer of employment, no application for employment shall include any question that seeks the disclosure of an applicant's conviction history. Reference: Cal. Gov't Code § 12952(a)(1).
   b. Prior to making a conditional offer of employment, there shall be no inquiry into or consideration of the conviction history (if any) of any applicant. Reference: Cal. Gov't Code § 12952(a)(2).

(2) While conducting a conviction history background check in connection with any application for employment, no consideration shall be afforded to any of the following:
   a. an arrest not followed by conviction;
   b. referral to or participation in a pretrial or post-trial diversion program; and
   c. convictions that have been sealed, dismissed, expunged, or statutorily eradicated pursuant to law. Reference: Cal. Gov't Code § 12952(a)(3).

(3) After a conditional offer of employment is extended, if the intent is to deny an applicant a position of employment solely or in part because of the applicant's conviction history, an individualized assessment shall be made of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position, which shall include consideration of the following:
   a. the nature and gravity of the offense(s) or conduct;
   b. the time that has passed since the conviction for a criminal offense(s) or conduct and/or completion of any related sentence; and
   c. the nature of the job held or sought. Reference: Cal. Gov't Code § 12952(c)(1)(A), subds. (i)-(iii).

(4) If, after undertaking the individualized assessment described above, a preliminary decision is made that an applicant's conviction history

disqualifies the applicant from employment, written notification shall be provided to the applicant of this preliminary decision (the "Pre-Adverse Action Letter"), which shall include the following information:

a. notice of the disqualifying conviction or convictions that are the basis for the preliminary decision to rescind the job offer;
b. a copy of the conviction history report, if any;
c. an explanation of the applicant's right to respond to the notice of the Company's preliminary decision before the decision becomes final, and the deadline by which to respond; and
d. notice that the applicant's response to the preliminary decision may include submission of evidence challenging the accuracy of the conviction history report that is the basis for rescinding the job offer, evidence of rehabilitation and evidence of mitigating circumstances, or both. Reference: Cal. Gov't Code § 12952(c)(2), subds. (A)-(C).

(5) If a final decision is made to deny an applicant employment solely or in part because of an applicant's conviction history, written notification shall be provided to the applicant (the "Adverse Action Letter") of the following:

a. the final denial or disqualification;
b. any existing procedure for the applicant to challenge the decision or request reconsideration with Company; and
c. the applicant's right to file a complaint with the Department of Fair Employment and Housing regarding the final decision. Reference: Cal. Gov't Code § 12952(c)(5), subds. (A)-(C).

The Company also will comply with applicable local laws, including local laws in the City of Los Angeles and the City of San Francisco.

Nothing in this standard operating procedures document is intended to impose obligations on the Company beyond or greater than what applicable law specifically requires.